

Long Service Leave Masterclass

2026



 1300 749 749

 info@austpayroll.com.au

 www.austpayroll.com.au

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OVERVIEW

History of Long Service Leave

Long Service Leave is generally defined as a period of paid leave for employees who have been working for the same business for a long period of time.

Long Service Leave began in South Australia and Victoria in the 1860s as a scheme that allowed civil servants 6-12 months leave to go home to Britain after 10 years' service in the colonies - given the lengthy transit times, a substantial period off work was necessary to make the trip to Europe. As a consequence, Australia is one of the only countries where there is a legislated right to LSL – although in some countries, an employee's entitlement to annual leave is directly related to their length of service.

It wasn't until the 1950s that long service leave became widespread in the public sector, and it is now a statutory right. The concept spread beyond the public service over the period 1950 to 1975, mainly as a result of pressure from employees seeking comparability with the public service.

Over time, a number of rationales have underpinned the provision of LSL – these being: to provide employees with an extended leave of absence in order to renew their energies; to reward long and faithful service with an employer; and to reduce labour turnover. However, interestingly, it is often not taken when it falls due.

Is Long Service Leave Covered by the National Employment Standards (NES)?

Yes. Long Service Leave is covered in the NES.

For modern awards (from 1 January 2010), terms dealing with long service leave cannot be included. Usually, long service leave entitlements come from the state or territory long service legislation, based on where the employee is working. However, there are certain circumstances when the state/territory legislation will not apply.

Other Types of Long Service Leave

- Pre-Modern Awards
- Portable Long Service Leave Schemes
- Commonwealth Long Service Leave

Pre – Modern Awards

When LSL in a Pre-modern Award Applies

If a federal pre-modern award (a type of workplace rule that existed before 1 January 2010) included long service leave, then the state or territory long service leave laws don't apply.

Instead, the long service leave rules in the pre-modern award apply. These rules will say things like:

How long someone has to work before they qualify for long service leave (for example, after 7 years), and How much leave do they get?

Example 1:

Real Meats Butchers has several stores in Melbourne, Victoria, and follows the Meat Award. Lesley has worked part-time there for 12 years.

Her old federal pre-modern award included a clause about long service leave. So, her entitlement to long service leave comes from that award—not from Victoria's state laws.

Example 2: Long Service Leave in a Pre-Modern Award

Joan started working as a graphic designer at a company in New South Wales on 1 March 2015. The company was established before 1 January 2010. After checking with their lawyer, the company confirmed that Joan's long service leave (LSL) is based on the rules in the **Graphics Arts - General - Award 2000**. This is because both the employer and employees were covered by this award before 1 January 2010.

The LSL entitlement under this award is as follows:

- After **15 years** of service:
 - **13 weeks** of leave for 15 years of service, and
 - **8 and 2/3 weeks** for each additional 10 years worked since the last LSL entitlement.

If Joan leaves or passes away before reaching 15 years, she will get a proportionate amount of leave based on the 13 weeks for 15 years' service.

Even though state law in New South Wales says employees get **8.667 weeks** of LSL after **10 years** of service, Joan doesn't qualify for state LSL because her company is covered by the old pre-modern award (Graphics Arts - General - Award 2000), not the state law. Joan won't be eligible for LSL until she reaches **15 years of service**.

If Joan had joined a company that started after 1 January 2010, she would be covered by modern state laws instead.

When LSL in a Pre Modern Award Does Not Apply

Modern awards (from 1 January 2010) **cannot** include rules about long service leave.

Exceptions to this rule. An employee's long service leave entitlement from a pre-modern award **won't apply** if any of the following conditions are true:

1. A collective agreement, Australian Workplace Agreement (AWA), or Individual Transitional Employment Agreement (ITEA) was in place before the NES started, and it applies to the employee.
2. **One of these types of agreements** was in place before the NES started and deals with long service leave:
 - **Enterprise agreements** (made after 1 July 2009 and approved by the Fair Work Commission)
 - **Preserved State agreements** (made in the State system before 26 March 2006)
 - **Workplace determinations** (decided by the Fair Work Commission)
 - **Certified agreements** (made before 26 March 2006)
 - **AWAs** (made before 26 March 2006)
 - **Section 170MX awards** (awards made by the Australian Industrial Relations Commission before 26 March 2006)
 - **Old IR agreements** (approved by the AIRC before December 1996)

If any of these agreements or instruments **end** (stop being in effect), the employee is then entitled to long service leave according to their **pre-modernised award**.

How Does This Effect Enterprise Agreements?

Agreements made between 1 July 2009 – 31 December 2009 that have any Long Service Leave terms in the Agreement will prevail over State or Territory long service leave laws.

State or Territory long service leave laws generally prevail over any provisions in an EA to the extent that they are inconsistent with those laws.

Employers who have LSL provisions in registered agreements that came into effect after 1 January 2010 should seek legal advice regarding how their agreement and the state/territory LSL legislation interact.

What If a Pre-Modernised or Modern Award or Agreement Doesn't Apply?

From 1 January 2010, if a pre-modernised award does not apply to an employee, any entitlement to long service leave will be derived from applicable State or Territory long service leave laws.

If the award or agreement has no terms regarding long service leave as set out above, then entitlement comes from State and Territory laws. These laws are subject to the interaction with any transitional instrument that applies to the employees. Generally, these transitional instruments prevail to the extent of any inconsistency with any State or Territory long service leave laws.

Agreement Derived Long Service Leave Entitlements

The FWC can make an order which preserves long service leave entitlements contained in a collectively bargained agreement (such as enterprise agreements, collective agreements, pre-reform certified agreements and old IR agreements). In this instance, the agreement terms prevail over the State or Territory long service leave laws.

This can occur where:

- The agreement came into operation prior to 1 January 2010
- The agreement has terms dealing with long service leave
- The agreement applies to employees in more than one State or Territory
- The agreement provides entitlements which are equal to or greater than the relevant State or Territory long service leave laws
- There are no applicable long service leave entitlements derived from a pre-modernised award that applies to the employees.

Portable Long Service Leave

Industry	States Available
Building and Construction	All States and Territories
Contract Cleaning	ACT, NSW, QLD and VIC
Community Services	ACT, NSW, QLD, SA and VIC
Security	ACT and VIC

Commonwealth Long Service Leave

This is covered by the Long Service Leave (Commonwealth Employees) ACT 1976

https://www.austlii.edu.au/cgi-bin/viewdb/au/legis/cth/consol_act/llea1976415/

Who is Covered?

- Working in an Australian Public Sector (APS) agency
- Other Government agencies or working in the public service before commencing in the APS
- Government service includes non-APS Commonwealth agencies, such as CSIRO or the AFP
- Previous employment with the public service of a State or Territory may also count towards long service leave qualification and accrual
- The Long Service Leave (Commonwealth Employees) Regulation 2016 lists other organisations that may also count towards service.

Who is not covered?

- Members of Parliament
- Ministers of State
- Judges
- Members of the Defence Forces
- Employment in the Commonwealth in an honorary capacity
- Employees in the Public Service of a Territory
- Employees in ACT or NT Teaching services
- Employees under the Reserve Bank Act or the Commonwealth Banks Act
- Employees engaged locally for employment outside of Australia
- Employees remunerated by fees, allowances or commissions

Entitlement

- 3 months after 10 years of continuous service
- 0.3 months (9 days) for each year thereafter
- Can be taken on completed years only
- Is provided in calendar days rather than working days, therefore LSL must be taken in blocks of a minimum of 7 days and is inclusive of weekends and public holidays.
- Annual leave cannot break LSL, e.g. no patterns of leave LSL/Annual Leave/LSL. However, Annual Leave/LSL/Annual Leave is allowable
- Agencies can modify the minimum period of LSL granted, e.g. they can require a minimum of 15 calendar days rather than 7 days

What does not count as Service?

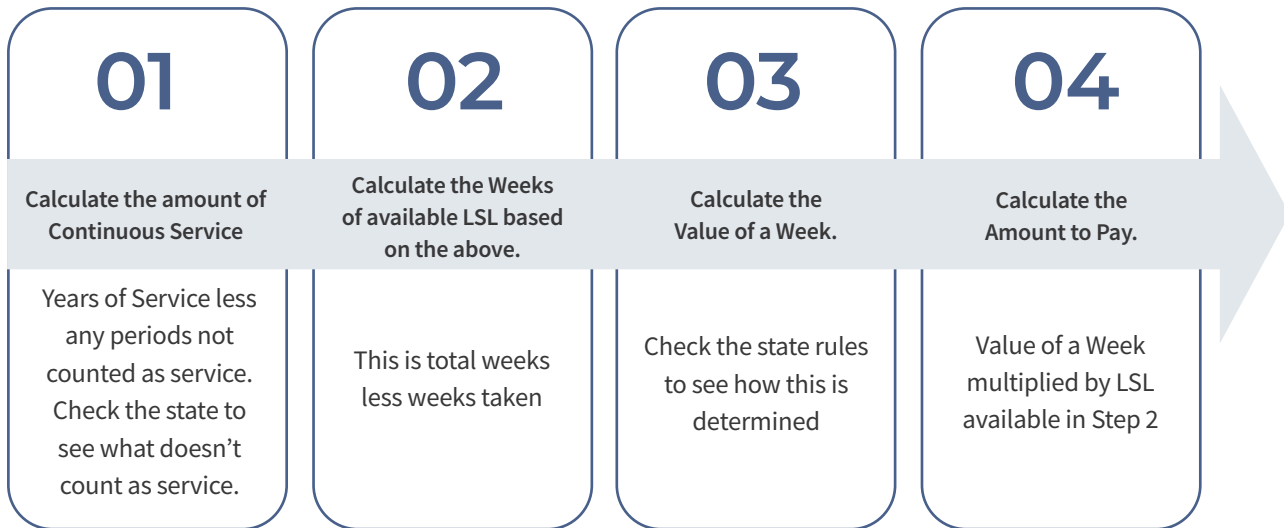
Periods of unpaid leave do not count towards service (except illness or defence service)

Other key points:

- Cannot be cashed out
- Cannot be taken in advance of entitlement
- Can be taken at half pay
- Rates of pay are based on the employee's pay category, and their current employment status
- On termination, LSL is paid out using the formula (Annual Salary/12) x LSL credits

Steps Required to Calculate the Value of Long Service Leave

We have 4 key steps in working out Long Service Leave as per the diagram below. In this course we will be going through each step in the process.



What Is Continuous Service?

A key factor in determining an employee's LSL entitlements is "what constitutes continuous service" i.e. Which absences do not count towards service and situations that break continuous service.

Break in Service Vs Not Counting Towards Service

Break in Service – essentially, this means what stops service completely.

Example of Broken Service	
Start Date:	7/03/2013
End Date:	28/04/2022 (employee has resigned)
Re-Employment Date:	1/08/2022 (employee is re-hired in a new role)
Service is broken as the employee resigned, so when they recommence, LSL will start accruing from the new start date, 1/08/2022	



PRO TIP

The rules on what breaks service in each state/territory will vary. Make sure you understand the rules for each state/territory to ensure you are compliant.

Not Counting Towards Service – This means over the span of employment, you deduct these periods from the whole time of employment.

Example of Not Counting Towards Service	
Start Date:	7/03/2013
End Date:	28/04/2022 (employee has resigned)
Unpaid Annual Leave (does not count as service):	1/07/2018 to 30/6/2019 (1 year)
Whole Term of employment:	End Date - Start Date - 28/04/2022 – 7/03/2013 = 9 years, 1 month, 21 days
Period of Continuous Service:	(End Date - Start Date) – any periods not counting Towards Service - (28/04/2022 – 7/03/2013) – 1 year = 8 years, 1 month, 21 days
Unpaid leave in this case does not count towards service, so it should be deducted. In this case, continuous service is 1 year less than the whole term of employment.	

How to Work out the Accrual?

The basic formula to work out how many weeks have accrued in LSL is as follows:

Years of Continuous Service x (Weeks at first entitlement milestone / Year where first entitlement is reached) = Weeks of Accrued LSL.

Looking at the table below the formulas in each state are as follows:

NSW, QLD, TAS and WA

Years of Continuous Service x (8.6667 / 10)

Example: 11 years continuous service is:

$11 \times (8.6667 / 10)$

$11 \times 0.8667 = 9.5333$ weeks accrued

ACT and VIC

Years of Continuous Service x (6.0667 / 7)

Example: 11 years continuous service is:

$11 \times (6.0667 / 7)$

$11 \times 0.8667 = 9.5333$ weeks accrued

N.B – you can also use the NSW formula for VIC and ACT as essentially both have 8.6667 weeks by the 10 years mark

SA and NT

Years of Continuous Service x (13 / 10)

Example: 11 years continuous service is:

$11 \times (13 / 10)$

$11 \times 1.3 = 14.3$ weeks accrued

WARM UP ACTIVITY

Using the Formula's work out the Weeks of Accrual (round to 4 decimal places):

	Continuous Service	Weeks of Accrual
NSW	18 years	
QLD	4 years	
TAS	12 years 6 months	
WA	14.87 years	
VIC	11.63 years	
ACT	8.8 years	
SA	16 years	
NT	10.4 years	

STATE LEGISLATION NSW

Long Service Leave Act 1955 - <https://legislation.nsw.gov.au/view/whole/html/inforce/current/act-1955-038> 

Resources: <https://www.nsw.gov.au/employment/rights-responsibilities/leave/long-service-leave> 



Long Service Leave NSW Entitlements

Who Is Entitled?

- Full-time, Part-time and Casual employees.
- Each employee will be entitled to the same number of weeks of long service leave, regardless of their current or previous status of employment.
- Refer to Section 3 (4) of the Act; however, the definition of an employee is covered by the Industrial Relations Act 1996, Chapter 1 (5).

What Is the Entitlement?

- 2 months (8.6667 weeks) after 10 years of continuous service, then
- A further 1 month (4.3333 weeks) for each additional 5 years of continuous service.
- Refer to Section 4 (2) of the Act

How to Work Out Accrual:

Years of Continuous Service x (8.6667 / 10)



PRO TIP

It is important to note that long service leave in NSW does not accrue the same way as annual and personal leave does.

Employees become entitled to take fixed amounts of LSL once they hit certain milestones, like 10 years of continuous service.

Example 1:

Alicia is leaving due to redundancy and has a pro-rata entitlement of 5.75 years of continuous service. Work out the entitlement.

Years of Continuous Service	5.75 (Alicia is entitled to the pro rata of LSL as she is being made redundant and she has more than 5 years of Continuous service.)
Entitlement in Weeks	$5.75 \times (8.6667/10) = 4.9833$ weeks

Example 2:

Will has had 11 years of Continuous Service and has resigned. He has already taken 3 weeks of LSL. Work out the entitlement.

Years of Continuous Service	11
Entitlement in Weeks	$11 \times (8.6667/10) = 9.5333$ weeks
Less Leave Taken	3
Entitlement Remaining	$9.5333 - 3 = 6.5333$ weeks

Continuous Service NSW

What Constitutes Continuous Service?

- This is covered in Section 4 (11) of the Act
- Counting as Service means - accrual will continue
Example: Natal has taken 3 weeks' annual leave in the past year; his service will still accrue during this time off.
- Does not count as Service means that accrual is paused, and this effectively pushes out the employee's entitlement date.
Example: Soria has a start date of 1/07/2014, and she has taken 1 year of unpaid parental leave. Without taking the year's leave, her entitlement would have been ten years from 1/07/2014, but this has now been pushed out by 1 year, so her entitlement date is now 1/07/2025.

NSW – Continuous Service	
Does Count	Does not Count
An absence in accordance with the terms of employment. Example: Paid Annual Leave, Paid Long Service Leave and Christmas Close Down Paid Parental leave.	Leave taken due to Industrial Action, either directly or indirectly. Example: An employee who is part of strike action for 1 week would not have this service counted towards LSL.
An absence due to illness or injury (paid or unpaid) – includes Workers' Compensation	Stood down due to slackness of trade
Transmission of business Example: The business is sold to another company, and the employee is kept on doing the same or a similar role.	Absence made by the employer with the intention of avoiding any obligation imposed on the employer by this Act or by any obligation in relation to sick leave imposed on the employer by a State industrial instrument.
Transferring within a company or group.	Any leave caused by the employer and the employee returns within 2 months, other than the above 3 items
Apprentices who have entered into a contract of service with that employer within 12 months of completion of the apprenticeship. Example: Walid's apprenticeship with ABC Kitchen ceases on 30/6/24. He comes back as a qualified tradesperson on 1/10/24 as one of the other tradies has retired. As Walid is re-employed within 12 months, his prior service as an apprentice is recognised.	Agreed periods of unpaid leave, including unpaid parental leave (unless the unpaid parental leave has service recognised as part of a contract or leave policy). E.g. LWOP, Unpaid Parental Leave and GPPL

Casual or Employees with Varying Ordinary Hours?

Workers with variable hours are:

- Casuals with varying hours each week
- Part-time workers who get additional ordinary hours (i.e. not overtime hours) above their contracted hours.
- Workers whose hours vary significantly week to week.

Note on Casuals

Essentially, each casual shift (engagement) is strung together so that the shifts constitute a series or pattern which gives rise to an ongoing employment relationship which is necessary for continuous service.

Employers should analyse each gap between shifts to see if it was due factors that would not normally count as service e.g. unpaid leave, other than due to illness or injury.

Things to consider are:

- Regularity of casual work
- Time between engagement
- Reasons for interruptions

Type of Absence	Breaks Continuous Service?	Counts Toward Period of Service?
A term of the worker's employment causes the worker to be absent from work	No	Yes
The worker is absent from work because they are ill or injured	No	Yes
A worker is absent from work because they are subject to a JobKeeper enabling direction	No	Yes
A worker is absent from work because they are subject to a COVID-19 stand-down	No	Yes
A worker is absent from work because their employer is avoiding obligations under the LSL Act or sick leave	No	No
A worker is absent from work in connection with an industrial dispute	No	No
The employer does not require a worker to work because of slackness of trade	No	No
The employer agrees to a period of unpaid leave for the worker	No	No
A worker is absent from work for any other reason and is re-employed within 2 months	No	No
A worker is absent from work on unpaid parental leave	No	No

Example 1:

Candice is a casual bar attendant at the local pub.

She has marked herself as unavailable (NA'd) for 1 week from next Friday (an interruption arising from the worker for any cause by leave of the employer).

- Time off will not count towards service, and
- Is not included in her average hours calculation

Example 2:

Yamala has been off with COVID for 2 weeks.

- Time off will still count towards her service, but
- It will not be included as part of her average weekly hours calculation, as this is an absence due to illness.

This means the average weekly hours over 12 months would be in a 365 day period, total ordinary hours worked / (365 - 14) x 7.

Terminated and Re-employed?

Interruption to service or re-employment within 2 months after service is interrupted.

- **Only applies** if the employer instigated termination.
- If the employee has resigned, then service will start anew.

Time off between the employer terminating the employee and re-hiring will not count towards service.

Example 1:

Ying has resigned as her mother is sick and resides overseas, and she was unsure how long she would need to be away. After 6 weeks, Ying's mother is better, and she can return to Australia.

Her employer had luckily not filled her role and was able to reinstate her employment. For Long Service Leave purposes, her service will start from her re-instatement date, as Ying resigned.

Example 2:

Vince has been terminated due to poor performance by his employer. Unfortunately, the role was in administration, and Vince is better suited to sales.

After 4 weeks, the employer has a role in sales and remembers Vince had excellent sales skills and is rehired.

As the period is under 2 months and the original termination was instigated by the employer, Vince's prior service is recognised, but the period of 4 weeks will not count towards service.

Example 3:

Renuka has been terminated due to redundancy. The employer offers to hire her back in another role 3 months later. For Long Service Leave purposes, her prior service is not recognised as she is returning after 2 months.

Workers Compensation?

Yes, Long Service Leave still accrues whilst an employee is on Workers Compensation.

This is covered in s49 of the Workers Compensation Act 1987 (NSW).

Transfer of Service/Sale of a Business?

The continuity of the worker's service is not considered to be broken if a business is sold in whole or in part, and that business:

- Continues by the new owner as the same business, and
- The worker is employed in that business,

Service with any previous owner(s) of the business counts as service with the new owner.

When a business changes ownership, copies of the record of all long service leave taken and accrued by workers must be transferred from the previous employer to the new owner of the business.

Example: Raj works for Allambie Software.

Allambie Software has sold the business to Tech Kings.

Raj continues working with the new owner.

- His service is deemed to be continuous from his original start date with Allambie Software.

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

Yes, if not less than 1 day and agreed by both the employer and employee. Refer to Section 4 (3A) of the Act.



PRO TIP

Best practice would be to have the agreement:

- In writing
- Clearly outlining the amount of leave in weeks being taken and
- How any leave would be recouped if the employee left before the entitlement had been reached.

Can Leave Be Cashed Out?

No, this is covered in s4(8).

The long service leave entitlement must be taken as leave (other than upon termination of employment).

Are There Specified Amounts That Can Be Taken?

LSL can be taken in one continuous period or as agreed by the employer and employee as follows (Section 4 (3)):

Amount of Leave	How Can It Be Taken
2 months	In 2 separate periods
More than 2 months but less than 19.5 weeks	In 2 or 3 separate periods
More than 19.5 weeks	In 2, 3 or 4 separate periods

** Each period must not be less than one day

Can the Employer Direct an Employee to Take Leave?

Yes. The employer must give at least 1 month's written notice of the requirement to take the leave.

Refer to Section 4 (10).

The notice would need to be:

- In writing,
- With at least 1 month's notice of when leave is to commence.

It should also stipulate the amount of leave that needs to be taken in weeks.

Are Public Holidays Included in the LSL Taken?

Long Service Leave does not include public holidays.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave

Refer to Section 4 (4A) of the Act.

Example:

If an employee takes a week's LSL from the 24th of January 2024 to the 30th of January 2024.

I.e. the 26th of January is not counted as a Long Service leave day.

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	PH		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Remuneration?

Definition of ordinary pay is found in Section 3(2) of the Act.

Include	Do Not Include
Salary and Wages	Overtime
Casual Loading	Penalty Rates, e.g. Shift penalties, weekend and public holiday loadings
Allowances for Skills and qualifications, e.g. First Aid, Leading Hand, All-purpose	Expense Allowances, e.g. meal and phone allowances
Allowances for Board and Lodging	
Add to the Weekly Rate if the employee is under the high-income threshold** currently this is \$183,100 per annum: Bonus, performance pay or incentive scheme, that are usually paid with salary and wages, refer to Bonus section below	
Commissions and Piece Work	

**High Income Threshold is the employee's base wage before super. This rate changes on 1 July each year.

What Is the Value of a Week?

Calculations for the Value of a Week are based on the employees' status on the prescribed date.

The prescribed date is the day before leave starts or the day before the termination date.

Remuneration on the Prescribed Date	Rate to Pay
Remunerated wholly in relation to a fixed rate of pay and fixed hours – E.g. Full-time and part-time and hours do not vary	The greater of: - Fixed time rate of pay on the prescribed date x normal weekly hours - Average weekly ordinary remuneration over the last 5 years 5-year average: The period is determined in days. Total days are 1825 or 1826 if 1 leap year or 1827 if 2 leap years in the period less days not counted (refer to the table for Hours to Pay for those with varied hours to see what days do not count). Ordinary remuneration over 5 years = Total remuneration over the period / (days in the period (1825, 1826 or 1827) less days not counted) x 7.

Remuneration on the Prescribed Date	Rate to Pay
Remunerated wholly in relation to a fixed rate of pay and varied hours. E.g. - Casual and - Part-time employees who perform additional hours that are not overtime at the same rate of ordinary pay	The greater of: - Current Hourly Rate x (Total Hours over the last 12 months / Total Days in the period) x 7 (Total remuneration over 5 years at fixed rate of pay / Total Days in the period) x 7 12 month average. Total days are 365 or 366 if 1 leap year in the period less days not counted (see below) 5-year average: Total days are 1825 or 1826 if 1 leap year or 1827 if 2 leap years in the period less days not counted Days not Counted: - Unpaid leave days that either did or did not count as service - Casuals days not remunerated for working outside their typical pattern of work - Any days worked not wholly in relation to a fixed rate of pay - Days subject to JobKeeper direction - Days stood down due to COVID 19 without pay
Remunerated otherwise than wholly in relation to a fixed rate of pay. E.g. - Employees paid by results, - Commission, - Employees with varying rates of pay, - Paid retainer and commission, - An employee receiving discretionary payment or - At the prescribed date receives bonus or incentive payments	The greater of: - Average weekly wage over 12 months - Average weekly wage over the last 5 years 12 month average The period is determined in days. Total days are 365 or 366 if 1 leap year in the period less days not counted (refer to the table for days not counted) Ordinary remuneration over 12 months = (Total amount paid over the period / days in the period (365 or 366) less days not counted) x 7 5-year average: The period is determined in days. Total days are 1825 or 1826 if 1 leap year or 1827 if 2 leap years in the period less days not counted (refer to the table for days not counted) Ordinary remuneration over 5 years = (Total amount paid over the period / days in the period (1825, 1826 or 1827) less days not counted) x 7 Days not counted: - Days not counted as service - Days of unpaid leave that did count towards service - Days subject to JobKeeper direction - Days stood down due to COVID 19 without pay

Fixed Rate No Varied Hours Example

Work out Michelle's weekly rate for leave. She is part-time and works 3 days per week, the hours of 22.8 hours per week do not vary.

She has taken 52 weeks of unpaid parental leave in Year 3.

Last Pay Weekly Rate	\$1,235 per week
Year 1 – 365 days	\$63,600
Year 2 – 366 days	\$62,800
Year 3 – 365 days	\$0
Year 4 – 365 days	\$61,950
Year 5 – 365 days	\$61,040
5-year average	$(63600+62800+0+61950+61040) / (1826-(52 \times 7)) \times 7 = (249,390) / (1,462) \times 7$ $= \$1,194.07 \text{ per week}$ N.B. – 52 weeks is calculated as $52 \times 7 = 364$ days to be deducted from the total days in the period
Michelle's current rate of pay of \$1,235 per week is higher so that is rate used.	

Fixed Rate Hours Vary Example

Liam is a casual employee with 12 years of continuous service and wants to take long service leave. Liam has also had sick leave of 5 weeks unpaid in Years 3 & 4.

His remuneration in the last 5 years are in the table below

His current hourly rate including casual loading is \$37.50 per hour. Hours worked in the last 12 months is 1613.33.

Work out the weekly rate for Liam and the total amount payable for taking 3 weeks' leave.

Year	Yearly Remuneration
Year 1 (most recent year) 365 days	60,500
Year 2 – 366 days	60,000
Year 3 – 365 days	57,000
Year 4 – 365 days	56,500
Year 5 – 365 days	54,000
12 Month Average	$\$37.50 \times (1613.33 / 365) \times 7 = \$1,160.27$
5-year average	$(60,500 + 60,000 + 57,000 + 56,500 + 54,000) / (1826 - 35) \times 7 =$ $288,000 / 1791 \times 7 = \$1,125.63$ N.B. – 5 weeks is calculated as $5 \times 7 = 35$ days to be deducted from the total days in the period
Value of a Week	\$1,160.27 as the 12 month average is the higher
Total Amount Payable	$\$1,160.27 \times 3 = \$3,480.81$
As the 12-month average of \$1,160.27 is higher, you would calculate the average week on \$1,160.27. For 3 weeks of LSL, Liam is paid a total of \$3,480.81	

Otherwise Wholly Remunerated in Relation to a Fixed Rate of Pay Example

Rinaldo is a piece worker and paid by results with 11 years of continuous service and wants to take long service leave. Below are his wages over the last 5 years. Work out the weekly rate for Rinaldo.

Year	Amount Paid
Year 1 (most recent year) 365 days	71,600
Year 2 – 366 days	75,000
Year 3 – 365 days	69,997
Year 4 – 365 days	75,102
Year 5 – 365 days	68,363
12 Month Average	71,600 (is the Year 1 wages) / 365 x 7 = 1,373.15 per week
5-year average	(71,600+75,000+69,997+75,102+68,363) / 1826 x 7 = 360,062 / 1826 x 7 = 1,380.30 per week
As the 5-year average of \$1,380.30 is higher you would calculate the amount payable on this rate.	

Bonus Payments

How bonuses are added to rates of pay will depend on whether an employee is receiving them on the prescribed date or not and if they are paid under the high income threshold. Follow the steps below to work out how to pay.

STEP 1. Is the employee entitled to or eligible for a bonus on the prescribed date? If yes go to Step 2. If not go to Step 3.

STEP 2. Determine if the employee is under or over the high-income threshold by determining their annual ordinary pay using the formula below:

Weekly rate using the formula for remunerated otherwise than wholly in relation to an ordinary rate of pay x total days in the 12-month period (365 or 366 if a leap year) / 7

If this amount is under the high income threshold, then go to Step 4. If this amount is over the high income threshold then there is no need to add the bonus to the rate of pay.

STEP 3. Determine if the employee is under or over the high-income threshold by determining their annual ordinary pay using the formula below:

Weekly rate using the formula for remunerated wholly in relation to a fixed rate of pay (either the varied or fixed hours approach depending on the employee) x total days in the 12-month period (365 or 366 if a leap year) / 7

If this amount is under the high income threshold, then go to Step 4, otherwise no need to add bonus in the rate of pay.

STEP 4. If using either the current rate of pay or a 12 month average rate of pay, then the bonus weekly average to add is calculated as follows:

Total Bonus paid in the 12 month period / total days (either 365 or 366 if a leap year) x 7

If using the 5 year average rate of pay, then the bonus weekly average to add is calculated as follows:

Total Bonus paid in the 5 year period / total days (either 1825 or 1826 if a leap year or 1827 if 2 leap years) x 7

STEP 5. Add the amount in Step 4 to the weekly rate of pay.

N.B. No amount should be double counted in the ordinary remuneration/average weekly wage and average weekly bonus or incentive calculations.

Example Current Pay:

Commission earned in the last 12 months is \$13,000.00

Add to the weekly rate $\$13,000 / 365 \times 7 = \249.32 .

Example 5-year average:

Commissions earned over the last 5 years were \$78,000

Add to the weekly rate $\$78,000 / 1826 \times 7 = \299.01 .

If Michelle also earned these bonuses, then we would use the current pay of \$1,235 from the earlier example as this is the higher rate per week, plus the current pay/12 month average bonus calculation of \$249.32 per week.

Her total weekly rate, including a bonus, would be $\$1,235 + \$249.32 = \$1,484.32$ per week.

We also check that she is under the high income threshold as follows:

$(\$1235 \times 365) / 7 = \$64,396.43$ is under the threshold.

What Is the Value of a Day?

Remuneration on the Prescribed Date	Value of a Day
Remunerated wholly in relation to a fixed rate of pay and fixed hours – E.g. Full-time and part-time and hours do not vary	Value of a Day in Hours = Normal Weekly Hours / Days worked per week Value of a Day in Weeks = Value of a Day in Hours / Normal Weekly Hours Example: 38 hours per week / 5 days per week = 7.6 hours per day in hours Value of a Day in Weeks = 7.6 / 38 = 0.2 weeks of LSL Example: 22.8 hours per week / 3 days per week = 7.6 hours per day in hours Value of a Day in Weeks = 7.6 / 22.8 = 0.3333 weeks of LSL
Remunerated wholly in relation to a fixed rate of pay and varied hours. E.g. - Casual and - Part-time employees who perform additional hours that are not overtime at the same rate of ordinary pay	Value of a Day = A/B (Clause 4A(3B)) Value of a Day in Weeks = Value of a Day / Average Weekly Hours A – higher of average weekly hours over the last 12 months or 5 years B – average number of days per week during the period used in calculating A Calculations for part A: 12 month average is higher: total ordinary hours worked / 365 or 366 if a leap year x 7 5 year average is higher: total ordinary hours worked / 1825, 1826 if 1 leap year or 1827 if 2 leap years x 7 Calculations for part B: 12 month average is higher: total number of days worked / 365 or 366 if a leap year x 7 5 year average is higher: total number of days worked / 1825, 1826 if 1 leap year or 1827 if 2 leap years x 7 For casual workers, periods between engagements that fall within a worker's pattern of service should be excluded from these calculations to ensure the amount of ordinary pay for a single day of leave is proportionate to the worker's ordinary weekly pay.
Remunerated otherwise than wholly in relation to a fixed rate of pay. E.g. - Employees paid by results, - Commission, - Employees with varying rates of pay, - Paid retainer and commission, - An employee receiving discretionary payment or - At the prescribed date receives bonus or incentive payments	Value of a Day = Ordinary Pay x (1 / A) Value of a Day in Weeks = Value of a Day / Average Weekly Hours A – higher of average weekly days over the last 12 months or 5 years Calculations for part A: 12 month average is higher: total ordinary hours worked / 365 or 366 if a leap year x 7 5 year average is higher: total ordinary hours worked / 1825, 1826 if 1 leap year or 1827 if 2 leap years x 7

Working Out Leave Taken in Weeks for 1 day - Varied Hours

Liam is a casual employee with 12 years of continuous service and wants to take long service leave. Liam has also had unpaid sick leave of 5 weeks in Years 3 & 4.

Work out the weekly rate for Liam and the total amount payable for taking 3 days leave.

	Hours (Part A)	Days Worked (Part B)
Year 1 (most recent year) 365 days	1,560	208
Year 2 – 366 days	1,300	173
Year 3 – 365 days	1,450	194
Year 4 – 365 days	675	90
Year 5 – 365 days	804	108
12 Month Average	1,560 (is Year 1) / 365 x 7 = 29.92 hours	208 (is the Year 1 days) / 365 x 7 = 3.99 days per week
5-year average	$(1,560 + 1,300 + 1,450 + 675 + 804) / (1,826 - 35) \times 7 = 5,789 / 1,791 \times 7 =$ 22.63 hours N.B. – 5 weeks is calculated as 5 x 7 = 35 days to be deducted from the total days in the period	$(208 + 173 + 194 + 90 + 108) / (1,826 - 35) \times 7 = 773 / 1,791 \times 7 = 3.02$ days per week
Value of a Day	29.92 / 3.99 = 7.4987 hours per day	
Value of a Day in Weeks	7.4987 / 29.92 = 0.2506 weeks	
Leave Taken in Weeks	22.4961 / 29.92 = 0.7518 weeks or 0.2506 x 3 = 0.7518 weeks	
Leave Entitlement Remaining	8.6667 – 0.7518 = 7.9149 weeks	

As the 12-month average of 29.92 hours is higher you would calculate the average week on 29.92 hours. This is part A of the Calculation. Then Use the Average Days calculation for the 12-month average which is 3.99 days. This is part B of the Calculation.

You would also need to deduct 0.7518 weeks from Liam's leave entitlement.

When Is Long Service Leave Being Taken Paid?

- In full when the employee commences leave or
- Pay it in the pay period where the leave occurs or
- In any other ways as agreed by the employer and employee

Refer to S 4(7)

Payment on Termination

What Is Payable on Termination?

Refer to S4(2)

What is Payable on Termination	
Before 5 years	No Entitlement
5 Years but less than 10 Years Section 4 (2)(iii)	Pro- Rata of years and months for Special Reasons • Termination by the employer other than for serious and wilful misconduct • Illness • Incapacity • Domestic or other pressing necessity • Death
10 Years or more	Pro rata amount if employment ends for any reason

What Is Meant by Illness, Incapacity or Domestic or Pressing Necessity?

Illness and Incapacity – there is no definition supplied in the Act, this would be determined based on legal advice or case law.

Questions to consider are:

- Did the illness or injury necessitate termination?
- Was the evidence sufficient that had it not been illness or incapacity that the termination would not have occurred?

Domestic and Pressing Necessity - there is no definition supplied in the Act, the test is usually a subjective one and a court would view each case on its own merit and may refer to previous case law (examples below).

Case Examples of Domestic and Pressing Necessity

- A pregnant employee leaving work to take on the responsibility of “home duties” (Donnelly v South Maitland Railway Pty Ltd 1964 AILR 450)
- An employee forced to leave work to take care of a sick wife or take care of children (Franks v Kembla Equipment Co Pty Ltd 1969 AILR 55)
- Changing jobs to lessen travel expenses when in a difficult financial situation (Crennan v Oliver Furniture Pty Ltd (1962) 17 IIB 799)
- The taking of a higher-paid job to cope with increasing financial commitments (Eyles v Cook (1967) 13 FLR 42)
- Leaving a job because the night shift has become a strain on the employee’s family relationships and repeated requests for a transfer to the day shift had not been met (Williams v MacArthur Press (Sales) Pty Ltd 1990 AILR 137(14))
- Leaving employment because the employer was relocating and the employee would have been required to drive two hours each way to and from work, and the employee was not prepared to move houses or to require her husband to change jobs (Kershaw v Electricity Commission of NSW 1991 AILR 91(7)).

When Should Long Service Leave Be Paid on Termination?

S4(5) (a)... shall forthwith pay to the worker

This means immediately.

Where long service leave is paid out upon the death of the employee, the payment must be made to the employee's personal representative upon request. S4(5)(b)

What Are the Record Keeping Requirements?

Covered in S8 of the Act.

Employers must keep long service leave records for their workers and transfer those records to a successor employer when applicable. The records must be kept for at least 6 years after a worker's employment ends.

Content of Records - General

The records must contain the following information about the worker:

- Employer's name and ABN
- Worker's name
- Employment conditions (e.g. classification, type of employment)
- Worker's status (e.g. apprentice, full-time, casual)
- Dates of employment and termination (if applicable).

Content of Records - Long Service Leave

The records must include:

- Long service leave taken - dates and gross payments.
- Worker's entitlement to leave after 10 years of service and every 5 years thereafter.
- Bonuses included in pay calculations.
- Payments on termination.
- Applications and agreements regarding leave.

Keeping Records

Records must be:

- Legible, in English, and either in paper or electronic form that can be converted into legible English.
- Accessible to authorised inspectors and the worker.

Transfer of Records to Successor Employers

When a business is transferred to a new employer:

- The former employer must transfer all relevant records to the new employer.
- The new employer must treat these records as their own and retain them for at least 6 years.
- The former employer must keep a copy of the records for 6 years after they were made.
- The new employer is not required to create new records for the worker's prior employment.
- These requirements ensure that long service leave entitlements and employment history are properly tracked and preserved.

PRACTICE ACTIVITY 1(A):

Kate is going on a trip to Europe and wants to use 5 weeks of her LSL.

Length of Continuous Service: 13.5 years

Employment Status: Full-time 38 hours per week

Ordinary Remuneration: \$2,000.00 per week (current rate of pay) this is the higher of the current and 5-year average

Bonus payments: She has bonus payments of \$15,600 in the last 12 months. The 12 month period has 365 days.

Calculate the value of Kate's LSL entitlement and the total LSL payment for 5 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	
Bonus Payment Weekly Rate	
Total Weekly Rate of Pay	

Total Payable for 5 weeks	
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PRACTICE ACTIVITY 1(B):

Josephine has been made redundant, calculate her LSL payout.

Length of Service: 7 years

Unpaid Parental Leave 6 years ago: 1 year (365 days)

Employment Status: Part-time (25 hours per week) She has always been part-time on these hours.

Current Ordinary Remuneration: \$750.00 per week (\$30 per hour)

Ordinary Remuneration over the last 5 years (1,826 days): \$188,500.00

STEP 1: CONTINUOUS SERVICE

Years of Continuous Service:

Are they entitled to LSL?

STEP 2: LSL WEEKS ENTITLEMENT

LSL Entitlement:

STEP 3: VALUE OF WEEK

Ordinary Weekly Rate of Pay

Total Payable on Termination

PRACTICE ACTIVITY 1(C):

Bevan has found permanent employment with another company and has resigned. What is his LSL payout?

He has previously taken 9 weeks LSL.

Length of Continuous Service: 16 years

Employment Status: Casual

Ordinary Remuneration: \$40 per hour (inclusive of casual loading)

Total Ordinary Hours in the last 12 months (365 days): 1,664

Total Remuneration in the last 5 years (1,826 days): \$345,792.23

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Average Pay - 12 months	
Average Pay - 5 years	
Ordinary Weekly Rate of Pay	

Total Payable on Termination	
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NSW - Matrix

Key Legislation

Legislation

Long Service Leave Act 1955 (NSW) [NSW Government](#) ⇐

Absences That Do Not Count As Service

Typical Exclusions

- Unpaid Parental Leave (unless a company policy or contracts states service is recognised),
- Any other leave granted by the employer except for annual leave, LSL, or on account of illness or injury.
- Absence made by the employer with the intention of avoiding any obligation imposed on the employer by this Act or sick leave under a NSW industrial instrument
- Absence due to slackness of trade
- Absence due to an industrial dispute

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 2 months (8.6667 weeks) after 10 years
- Then 1 month (4.3333 weeks) for each 5 years thereafter.

On Termination

Years of Continuous Service

Before 5 years – no entitlement.

After 5 and before 10 years pro-rata of 10 years (2months) if:

- Dismissed by the employer for a reason other than serious misconduct, e.g. Redundancy
- Illness, incapacity, domestic or other pressing necessity
- Death

10 years and more - Pro rata amount if terminated for any reason

Timing of Payment on Termination

When Must LSL be Paid?

Day of termination

What Is the Rate of Pay

Ordinary Pay includes: Salary, Wages, Casual Loading, Allowances for skill and qualifications, Allowances for Board and Lodging, commission and piece work rates, bonus if under the high income threshold.

Fixed Rate and Fixed Hours - The greater of:

- Fixed time rate of pay on the prescribed date x normal weekly hours
- Average weekly ordinary remuneration over the last 5 years (divide this by the number of calendar days in the period to include any leap years)

Fixed Rate and Varied Hours - The greater of:

- Current Fixed rate x Total Hours in the period / Total days in the Period (calendar days in the period) x 7
- Average weekly ordinary remuneration over the last 5 years (divide this by the number of calendar days in the period to include any leap years)

Varied Rate of Pay - The greater of:

- Average weekly wage over 12 months (divide this by the number of calendar days in the period to include any leap years)

- Average weekly wage over the last 5 years (divide this by the number of calendar days in the period to include any leap years)

Cashing out Long Service Leave

Is Cash Out Allowed?

No

Key Conditions to Note

The Long Service Leave Act 1955 contains no provision for payment in lieu while still employed. Entitlement is paid only on termination or under approved portable scheme claims.

Taking Long Service Leave in Advance

May Leave Be Taken Early?

Yes—by agreement

Casual Employees – Are They Entitled to LSL?

Yes

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer - breaks of 2 months or less do not break service. The break in between does not count as service.

No time limit applies for stand down due to slackness of trade.

Employer Notice Requirements to Take Leave

Timing Rules

Employers must give at least 1 month's notice (or less by agreement)

How Leave Can Be Taken?

Rules

One continuous period or separate periods may be agreed as follows, based on leave owing:

Leave Owing	Periods to Take Leave In
2 months	Up to 2 separate periods
2 months to 19.5 weeks	2 or 3 separate periods
More than 19.5 weeks	Then 2, 3, or 4 separate periods

An employer and employee can agree to a shorter period of LSL, as little as one day.

Public Holidays Falling During LSL

Exclusive – means that the public holiday is paid in addition to LSL and does not count as a day of LSL taken.

Effect on Leave

Exclusive

Working Elsewhere While on LSL

Restriction

Silent

STATE LEGISLATION VIC

Long Service Leave Act 2018 - <https://www.legislation.vic.gov.au/in-force/acts/long-service-leave-act-2018/004> ↗

Resources: <https://business.vic.gov.au/business-information/staff-and-hr/long-service-leave-victoria> ↗



Long Service Leave State Entitlements

Who Is Entitled?

- This covered in Part 1 Section 3 of the Act
- Full time, Part time and Casual employees. This also includes seasonal and fixed term employees.
- Each employee will be entitled to the same number of weeks long service leave regardless of their current or previous status of employment.

What Is the Long Service Leave Entitlement?

All employees are entitled to 1/60 of the total period of continuous employment after 7 years of continuous service. After 7 years, all continuous service accrued is an entitlement. This is in Part 2 Section 6 of the Act.

Formula to work out accrual is follows:

Years of Continuous Service x 52 x 1/60 or,

Years of Continuous Service x (8.6667/10)



PRO TIP

It is important to note that long service leave in VIC does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 7 years of continuous service.

Example 1:

Will has had 10 years of Continuous Service and has resigned. His accrued leave to payout is 8.6667 weeks as follows:

$$10 \times 52 \times 1/60$$

$$10 \times 52 \times 0.0166667 = 8.6667$$

$$10 \times (8.6667/10) = 8.6667$$

Example 2:

Alicia is leaving due to redundancy and has 8 years continuous service. She is entitled to 6.9333 weeks as follows:

$$8 \times 52 \times 1/60$$

$$8 \times 52 \times 0.0166667 = 6.9333$$

$$8 \times (8.6667/10) = 6.9333$$

Continuous Service VIC

What Constitutes Continuous Service?

- This is covered in Section 12 to 14 of the Long Service Leave Act 2018 & Section 62 to 63 of the Long Service Leave Act 1992.
- Counting as Service means - accrual will continue
Example: Vera has taken 2 week's annual leave in the past year her service will still accrue during this time off.
- Does not count as Service means that accrual is paused and this effectively pushes out the employee's entitlement date.

Example: Olivia has a start date of 1/7/2014, she has taken 1.5 years of unpaid parental leave from 1/5/2018 to 31/10/2019. Without taking the leave her entitlement would have been seven years from 1/7/2014 but this has now been pushed out by 6 months, so her entitlement date is now 1/1/2022. In this case the last 52 weeks still count as service, but the first 6 months do not count as service, as unpaid parental leave from 1/5/2018 to 31/10/2018 did not count as service.

VIC – Continuous Service from 1/11/2018	
Does Count	Does not Count
All forms of paid leave – e.g. Paid annual leave, paid sick leave, paid long service leave, paid company funded parental leave, carers leave	Unpaid Leave after 52 weeks – e.g. LWOP, unpaid parental leave unless: • The period of absence is taken to be a period of employment in accordance with the relevant written or oral employment agreement • The employee and employer agree in writing before the leave is taken that the leave is taken to be a period of employment • The leave taken is because of illness or injury • It is any other form of leave provided for in the relevant written or oral employment agreement.
Unpaid Leave up to 52 weeks – e.g. LWOP, unpaid parental leave. N.B. - For casual or seasonal workers this is up to 104 weeks	If employment ends by either the employer or employee and is subsequently re-employed within 12 weeks. Prior service is recognised but the absence will not count as service. This also applies to the renewal of fixed/maximum term contracts. Example: Mary contract ended on 30/6/24, however a new contract with the same employer was issued to her with a start date of 1/8/24. In this case Mary's prior service is recognised but the time between contracts is not counted as service.
Absence due to illness or injury (including workers compensation) – this includes unpaid sick leave	Stood down due to slackness of trade. E.g. Equipment breakage stopping work and no other work is available to the employee. The break would still count towards service.
Transmission of business Example: The business is sold to another company, and the employee is kept on, then the period of employment with the previous employer is transferred to the new employer.	Leave taken due to Industrial Action either directly or indirectly. Example: An employee who is part of strike action for 1 week would not have this counted towards LSL.

VIC – Continuous Service from 1/11/2018	
Transferring within a company or group.	
Apprentices who have entered a contract of service with that employer within 52 weeks of completion of the apprenticeship. Example: Walid's apprenticeship with ABC Kitchen's ceases on 30/6/24. He comes back as a qualified trades person on 1/10/24 as one of the other tradies has retired. As Walid is re-employed within 52 weeks his prior service as an apprentice is recognised. The time in between is not counted as service.	
An interruption to, or termination of, employment caused by the employer with the intention of avoiding an obligation in relation to long service leave.	
Any other form of leave that is provided for under a relevant employment agreement	
Casual and seasonal workers – refer to section on Casual/Seasonal Workers	

VIC – Continuous Service before 1/11/2018	
Does Count	Does not Count
Annual Leave Long Service Leave Carer's Leave – unless the employee requests in writing it not to count as service	Unpaid parental leave
Any other form of paid or unpaid leave approved by the employer, including careers leave but excluding adoption, maternity or paternity leave	If employment ends by the employer and is subsequently re-employed within 3 months. Prior service is recognised but the absence will not count as service.
Absence due to illness or injury of up to 48 weeks in any year (including workers compensation) – this includes unpaid sick leave	Absence due to illness or injury exceeding 48 weeks in any year (including workers compensation) – this includes unpaid sick leave.
Paid parental leave up to 12 months or any other period specified in the relevant employment contract or federal instrument, or provided for under the National Employment Standards	Leave taken due to Industrial Action either directly or indirectly. Example: An employee who is part of strike action for 1 week would not have this counted towards LSL.
Transmission of business Example: The business is sold to another company, and the employee is kept on, then the period of employment with the previous employer is transferred to the new employer.	Stand downs due to slackness of trade

VIC – Continuous Service before 1/11/2018

Transferring within a company or group.

Apprentices who have entered a contract of service with that employer within 12 months of completion of the apprenticeship. **Example:** Walid's apprenticeship with ABC Kitchen's ceases on 30/6/24. He comes back as a qualified trades person on 1/10/24 as one of the other tradies has retired. As Walid is re-employed within 12 months his prior service as an apprentice is recognised. The time in between is not counted as service.

An interruption to, or termination of, employment caused by the employer with the intention of avoiding an obligation in relation to long service leave;

Casual and seasonal workers – refer to section on Casual/Seasonal Workers

Casual/Seasonal Workers?

From 1 November 2018 (Section 12(3))

Continuous if:

- There is an absence of more than 12 weeks between any two instances of employment, where the employee and the employer agree before the start of the absence, or
- The absence is in accordance with the terms of the engagement, or
- The absence is caused by seasonal factors, or
- The employee has been employed on a regular and systematic basis and has a reasonable expectation of being re-engaged.

Under the new Act, a casual or seasonal employee is also entitled to take up to 104 weeks paid or unpaid parental leave before their continuous employment may be deemed interrupted.

Before 1 November 2018 (Section 62A)

Continuous if:

- There must not be an absence of more than 3 months between each instance of employment
- There is more than an absence of 3 months between two instances of employment, but the length of the absence is due to the terms of the engagement of the employee by the employer.
- The absence is caused by seasonal factors

Example 1: Jennifer is a casual waitress at the local pub. She is going away to Europe for 2 months.

- As the absence is under 12 weeks then her service will be deemed continuous.

Example 2: Johan is a fruit picker and often has no work during times that the crop is dormant, this is often a period of over 12 weeks.

- This time off will still count towards his service, as the absence is due to seasonal factors.

Terminated and Re-employed?

From 1 November 2018 (Section 12(3))

If an employee resigns or is dismissed by the employer but is re-employed within 12 weeks, then prior service is recognised but the period between is not counted as service.

Before 1 November 2018 (Section 62(2)(g) & 63(4))

If an employee is dismissed by the employer but is then re-employed within 3 months, then prior service is recognised but the period between is not counted as service.

Example 1: Deepa has resigned as her mother is sick and resides overseas and she was unsure how long she would need to be away.

After 6 weeks Deepa's mother is better, and she can return to Australia.

Her employer had luckily not filled her role and was able to re-instate her employment.

- For Long Service Leave purposes, her prior service will be recognised but the 6-week gap won't count towards service.

Example 2: Mohammed has been terminated due to poor performance by his employer, unfortunately the role was in admin and Mohammed is better suited to sales.

After 2 months the employer has a role in sales and remembers Mohammed had excellent sales skills and is re-hired.

- As the period is under 12 weeks Mohammed's prior service is recognised, however the gap of 2 months is not counted towards service.

Example 3: Liam has been terminated due to redundancy.

The employer offers to hire him back in another role 4 months later.

- For Long Service Leave purposes, his prior service is not recognised as he is returning after 12 weeks.

Workers Compensation?

From 1 November 2018

Counts towards the period of continuous employment for long service leave purposes.

Unpaid leave due to illness or injury includes a Work Cover absence.

Before 1 November 2018

Only the first 48 weeks of Workers' Compensation leave in any year counts towards service, after 48 weeks in any year it does not count.

Transfer of Service/Sale of a Business?

Covered in Section 12(5) & 13(1)(e)(ii)

Where a business is sold, transferred or assigned and an employee remains with the business, the new employer becomes responsible for the employee's long service leave entitlement.

- Period of employment with the old employer effectively transfers to the new employer, this means the new employer has to recognise prior service with the old employer
- If an employee is dismissed by the old business owner but is employed by the new business owner within 12 weeks after their dismissal to do work which is the same (or substantially the same) as the work the employee did for the old owner, employment is deemed continuous for the purposes of long service leave accrual.

Example: Ria works for Beauty on the Beach.

Beauty on the Beach has sold the business to Zen Massage and Beauty.

Ria continues working with the new owner.

- Her service is deemed to be continuous from her original start date with Beauty on the Beach.

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

- This is covered in Part 2 Section 8.

Yes, this is by employer and employee agreement.



PRO TIP

Best practice would be to have the agreement:

- In writing
- Clearly outlining the amount of leave in weeks being taken and
- How any leave would be recouped if the employee left before the entitlement had been reached.

Can Leave Be Cashed Out?

No, it cannot be 'cashed out' – it is an offence under the LSL Act 2018 to give or receive payment instead of the employee taking the break from work.

This is covered in Part 3 Division 3 section 34.

Are There Specified Amounts That Can Be Taken?

This is covered in Section 18.

Yes, the only rule is that it must not be less than one day at a time.

Once the employee requests leave it must be granted by the employer as soon as practicable, unless the employer has reasonable business grounds.

Reasonable Business Grounds include (Section 3 – definitions):

- No capacity to change working arrangements to accommodate the leave
- It is impractical to accommodate the request
- The request is likely to cause significant loss in efficiency or productivity
- The request is likely to have significant negative impact on customer service

Can the Employer Enforce LSL to Be Taken?

Yes. The employer must give at least 12 weeks written notice of the requirement to take the leave.

Refer to Section 19

The notice would be to:

- In writing
- With at least 12 weeks' notice
- Specify the amount of leave being taken and the leave period

Are Public Holidays Included in the LSL Taken?

Long Service Leave does not include public holidays.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave

This means LSL is not 'deducted' from the LSL balance on a public holiday.

Refer to Section 7 of the Act.

Example:

If an employee takes a week’s LSL from the 24th of Jan 2024 to the 30th of Jan 2024.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave (i.e. the 26th of January is not counted as an LSL day).

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	PH		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Pay?

Definition of ordinary pay is found in Section 15.

Ordinary Pay

‘Ordinary pay’ is the actual pay received by an employee for working their normal weekly hours at the time the employee takes long service leave or ceases employment and has long service leave paid out.

Half Pay Option Section 22 - An employer may agree to an employee taking a period of long service leave at half pay.

For example, an employee with 13 weeks’ accrued long service leave could take 26 weeks’ long service leave at half pay.

An employer must grant the request unless they have reasonable business grounds for refusing the request.

Employees with a Fixed Rate of Pay	
Include	Do not Include
Salary and Wages	Overtime
Casual Loading	Penalty Rates e.g. Shift penalties, weekend and public holiday loadings
Cash Value of any Board and Lodging	
Allowances that form part of the employees’ contract e.g. personal use portions of phone or car allowance.	
Bonus payments that form part of the employee’s contract.	

Example: An employment contract which advises an employee is paid as part of a modern award and states the minimum base salary they will be paid under that award

Employees without a Fixed Rate of Pay (Use the greater of the average weekly rate for the last 52 weeks, 260 weeks or during the period of continuous employment)	
Include	Do not Include
Salary and Wages	Overtime (if not included in the contract)
Casual Loading	Penalty Rates e.g. Shift penalties, weekend and public holiday loadings (if not included in the contract)
Cash Value of any Board and Lodging	
Allowances that form part of the employees’ contract e.g. personal use portions of phone or car allowance.	
Commissions or Bonus payments that form part of the employee’s contract.	

Example: Piece Workers, employees on retainer plus commission

Rates of Pay for Employees on Workers Compensation

Refer to section 17 in the ACT.

Use the higher of current weekly hours and ordinary time rate of pay or the ordinary weekly hours and rate before the injury for:

- Workers with no capacity
- Workers with partial capacity on a Return to Work Plan

Example: Jonah is currently on workers compensation and wants to take long service leave. He is currently receiving a weekly payment of \$1,200 per week. Before his injury he was receiving an ordinary rate of pay of \$1,500 per week for 38 hours of work. As the pre-injury pay is higher his long service leave will be paid at the pre-injury rate of \$1,500 per week.

How Do You Calculate the Weekly Hours?

Employment Type	Hours to Pay
Full time (no change in hours the last 104 weeks)	Normal Weekly Hours
Part time (no change in hours the last 104 weeks)	Normal Weekly Hours
Casual or Hours that have changed in the last 104 weeks (2 years) prior to taking/paying out leave	Average Weekly Hours is the greater of the average: - Over the last 52 weeks or, - Last 260 weeks or - Period of continuous employment

Formulas for No Fixed Weekly Hours or Fixed Hours That Have Changed in the Last 104 Weeks (2 Years)

	52 weeks	260 weeks	Period of Continuous Employment
Formula	$A = (B+C)/(52-D)$ A = Average Weekly Hours B = Hours worked during the 52 weeks C = Hours of paid leave during 52 weeks D = Number of weeks of unpaid leave during the 52 weeks	$A = (B+C)/(260-D)$ A = Average Weekly Hours B = Hours worked during the 260 weeks C = Hours of paid leave during 260 weeks D = Number of weeks of unpaid leave during the 260 weeks	$A = (B+C)/(D-E)$ A = Average Weekly Hours B = Hours worked during the whole of employment C = Hours of paid leave during whole of employment D = Number of weeks in the period of continuous employment E = Number of weeks of unpaid leave during the whole of employment
Step 1	Add the number of hours worked in the last 52 weeks to the number of hours of paid leave in the last 52 weeks	Add the number of hours worked in the last 260 weeks to the number of hours of paid leave in the last 260 weeks	Add the number of hours worked over the entire period of continuous employment to the number of hours of paid leave in that time
Step 2	Subtract the number of weeks of unpaid leave taken in the last 52 weeks (if any) from 52.	Subtract the number of weeks of unpaid leave taken in the last 260 weeks (if any) from 260.	Subtract the number of weeks of unpaid leave taken over the entire period of continuous employment (if any) from the number of weeks worked in that period.
Step 3	Divide the answer you got at step 1 by the answer you got at step 2.	Divide the answer you got at step 1 by the answer you got at step 2.	Divide the answer you got at step 1 by the answer you got at step 2.

Example: Dani has worked at a dance studio as a casual instructor for the past 10 years. She works according to a roster but depending on lesson schedules, her hours can change from one week to the next.

In February 2022 to February 2023, she took 52 weeks of unpaid parental leave.

No LSL has previously been taken

Hours Over the Last 10 Years	
Year	Hours Worked
2014	600
2015	550
2016	620
2017	640
2018	638
2019	580
2020	655
2021	635
2022	100
2023	550
2024	635
Hours in Each Period	
Total Hours in last 52 weeks	635
Total Hours in last 260 weeks	2,575
Total Hours period of whole of employment	6,203
Weeks of Continuous Employment	
Total Weeks of Continuous Employment	520
Calculations: 52 Weeks – (635+0)/(52-0) = 12.21 hours per week	
260 Weeks – (2,575+0)/(260-52) = 12.38 hours per week (unpaid parental leave is deducted for this period)	
Whole employment – (6,203+0)/(520-52) = 13.25 hours per week (unpaid parental leave is deducted for this period)	
Use the highest weekly average of the above three which is for the period of continuous employment being 13.25 hours per week.	

What Is the Value of a Week?

Employment Type	Value of a Week
Full time/Part time – fixed rate of pay and no change in hours in the last 104 weeks	Value of a Week = Normal Weekly Rate of Pay
Casual or Hours that have changed in the last 104 weeks (2 years) prior to taking/paying out leave – fixed rate of pay	Value of a Week = Average Weekly Hours x Ordinary Rate of Pay
Employees with no fixed rate of pay	Value of a Week = Greater of the Average Pay over the last 52 wks, 260 wks or period of employment

Casual Example of Value of a Week

Example: Using the data in the example of Dani above.

Weekly Hours	13.25
Hourly Rate (including casual loading)	\$35 per hour
Calculation: $\$35 \times 13.25 = \463.75 value of a week	

No Fixed Rate of Pay: Example of the Value of a Week

Example: Allan works on retainer and commission and therefore has no fixed rate of pay. He is paid a retainer of \$50,000 per annum, plus commission monthly, which varies.

He has had continuous employment for 8 years as follows:

Year	Retainer	Commission	Total
2017	50,000	25,000	75,000
2018	50,000	40,000	90,000
2019	50,000	30,000	80,000
2020	50,000	20,000	70,000
2021	50,000	45,000	95,000
2022	50,000	40,000	90,000
2023	50,000	35,000	85,000
2024	50,000	40,000	90,000

Average in the Last 52 Weeks – $90,000/52 = \$1,730.77$ per week

Average in the Last 260 Weeks – $(90,000+85,000+90,000+95,000+70,000)/260$
 $430,000/260 = \$1,653.85$ per week

Average for the whole period of employment - $(90,000+85,000+90,000+95,000+70,000+80,000+90,000+75,000)/(8*52)$
 $675,000/416 = \$1,622.60$ per week

Since the highest average is 52 weeks we would use that as the Value of a Week.

The value of a week is \$1,730.77.

When Is Long Service Leave Being Taken Paid?

- In any way or at any time by agreement between the employee or employer before the leave starts or
- In full when the leave starts
- At the same time and the same manner as if they were not taking leave e.g. in the normal pay run for the period the leave is being taken

Refer to Section 20 of the Act.

Payment on Termination

What Is Payable on Termination?

Refer to Section 6 in the Act

What is Payable on Termination	
Before 7 years	No Entitlement
7 Years	After 7 years of completed service, all accrual is entitlement

When Should Long Service Leave Be Paid on Termination?

Termination reason other than Death refer to Section 9(1)(b)

- Payable on the day of termination

Termination due to the Death of an employee refer to Section 10

- Payable to the personal representative of the employee as defined in the Administration and Probate Act 1958

What Are the Record Keeping Requirements?

Employers must keep long service leave records for their workers and transfer those records to a successor employer when applicable. The records must be kept for at least 7 years after a worker's employment ends.

An employer must keep a long service leave record so that it is able to be readily produced to an authorised officer if the authorised officer requires its production.

An employer must not refuse a request from an employee to provide their long service leave record.

Refer to Section 37 of the Act

PRACTICE ACTIVITY 2(A):

Angela is taking 3 weeks of her LSL.

Length of Continuous Service: 12.6 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Remuneration: \$2,300.00 per week

Calculate the value of Angela's LSL entitlement and the total LSL payment for 3 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	

Total Payable for 3 Weeks	
---------------------------	--

PRACTICE ACTIVITY 2(B):

Armend has been made redundant, calculate his LSL payout.

Length of Service: 12.1 years

Unpaid Annual Leave: 1.5 years taken after 1/11/2018

Employment Status: Part-time (25 hours per week) He has always been part-time on these hours.

Current Ordinary Remuneration: \$700.00 per week (\$28 per hour)

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	
Total Payable on Termination	

PRACTICE ACTIVITY 2(C):

Biljana has found permanent employment with another company and has resigned. Work out her LSL payout.

Length of Continuous Service: 16.4 years

She has previously taken 9.2 weeks LSL

Employment Status: Casual

Ordinary Remuneration: \$40 per hour (inclusive of casual loading)

Total Ordinary Hours in the last 52 weeks: 1,664

Total Ordinary Hours in the last 260 weeks: 8,645

Total Ordinary Hours over the whole of employment: 26,907

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Average Hours per Week - 52	
Average Hours per Week - 260	
Average Hours per Week - Whole	
Average Hours to Use	
Ordinary Weekly Rate of Pay	
Total Payable on Termination	

VIC - Matrix

Key Legislation

Legislation

Long Service Leave Act 2018 (Vic) [VIC Government](#) ⇄

Absences That Do Not Count As Service

Typical Exclusions

On or After 1 November 2018

- Up to 52 weeks unpaid Leave will count as service,
- And in the case of a casual or seasonal employee, paid or unpaid parental leave that is not longer than 104 weeks will count towards service.
- Any absence on account of illness or injury counts towards service

Before 1 November 2018

- Unpaid adoption, maternity or paternity leave
- An absence due to illness or injury exceeding 48 weeks

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 6.067 weeks after 7 years
- All accrual after 7 years is entitlement

On Termination

Years of Continuous Service

Before 7 years – no entitlement

After 7 years, all accrual is entitled to be paid out

Timing of Payment on Termination

When Must LSL be Paid?

Day of termination

What Is the Rate of Pay?

Full Time/Part Time: If hours fixed for 2+ years then it's Ordinary weekly rate of pay immediately prior to taking the leave, including cash value of any board or lodging.

However, if hours have changed in the last 2 years, then refer to casual calculation below.

Commissions and bonuses may be counted as part of ordinary pay if they are included in the employee's oral or written contract of employment.

Commission based and piece work employees: the greater of average weekly pay over last 52 weeks, 260 weeks or full period of continuous employment.

Casual: If hours have changed within the 2 years immediately preceding the leave, then the average number of weekly hours immediately prior to commencement of leave for 52 weeks, 260 weeks or whole period of continuous employment, whichever is the greater. Disregard any periods the employee was on unpaid leave for the week.

Cashing out Long Service Leave

Is Cash Out Allowed?

No

Key Conditions to Note

Paying or receiving money instead of the employee actually taking leave is an offence under s.67 of the Long Service Leave Act 2018.



Taking Long Service Leave in Advance

May Leave Be Taken Early?

Yes—by agreement

Casual Employees – Are They Entitled to LSL?

Yes

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer or employee - breaks of 12 weeks or less do not break service. The break in between does not count as service.

Employer Notice Requirements to Take Leave

Timing Rules

Employers must give at least 12 weeks' notice in writing.

How Leave Can Be Taken?

Rules

The period requested must not be less than one day.

The employer can decline the request based on reasonable business grounds.

LSL can be taken at half pay for twice as long, if it is reasonable considering the needs of the employee and the business.

Public Holidays Falling During LSL

Exclusive – means that the public holiday is paid in addition to LSL and does not count as a day of LSL taken.

Effect on Leave

Exclusive

Working Elsewhere While on LSL

Restriction

No, it is an offence to engage in paid work during LSL. Exceptions would be if an employee had 2 jobs. They could still work the hours at the 2nd job as long as they are not working the hours they are on paid leave for, at the job they are taking leave from.

Resources

VIC.GOV.AU - *Long service leave* | vic.gov.au ■

STATE LEGISLATION QLD

Industrial Relations Act 2016 – Part 3 Division 9 - <https://www.legislation.qld.gov.au/view/html/inforce/2018-03-02/act-2016-063> ↗

Resources: <https://www.business.qld.gov.au/running-business/employing/legal-obligations/long-service-leave> ↗



Long Service Leave QLD Entitlements

Who Is Entitled?

- This covered in Section 8 of the Act
- Full time, Part time and Casual employees.
- Each employee will be entitled to the same number of weeks long service leave entitled, regardless of their current or previous status of employment.

What Is the Long Service Leave Entitlement?

Full-time employees – i.e. Have always been full-time employees

All employees are entitled to 8.6667 weeks after 10 years of continuous service, then a further 1 month (4.3333 weeks) at 15 years continuous service. After 15 years of continuous service LSL can be accessed as it accrues. (Covered in Section 95)

Formula to work out accrual is as follows

Years of Continuous Service x (8.6667/10)

Casual, Part-time or at any time during employment been Casual or Part-time

Total Ordinary Hours Worked divided by 52, multiplied by 8.6667 divided by 10 (Covered in Section 105)

Formula to work out accrual is as follows

(Total Ordinary Hours Worked/52) x (8.6667/10)

Seasonal Workers in the sugar and Meat Industry – S107

Entitlement x (actual service/10)

Service means actual service expressed as a part year



PRO TIP

It is important to note that long service leave in QLD does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 10 years of continuous service.

Example 1:

Will has had 10 years of Continuous Service and has resigned. His accrued leave to payout is 8.6667 weeks as follows:

$$10 \times (8.6667/10) = 8.6667$$

If Will was Casual or had not worked always as a full-time employee

Example 1:

Will has had 10 years of Continuous Service and has resigned. His accrued leave to payout is 8.6667 weeks as follows:

Total Hours Worked – 15,600

$(15,600/52) \times (8.6667/10)$

$300 \times 0.86667 = \mathbf{260 \text{ hours}}$

Example 2:

Alicia is leaving due to redundancy and has 8 years continuous service. She is entitled to 6.9333 weeks as follows:

$8 \times (8.6667/10) = 6.9333$

If Alicia was Casual or had not worked always as a full-time employee

Total Hours Worked – 9,984

$(9,984/52) \times (8.6667/10)$

$192 \times 0.86667 = \mathbf{166.4 \text{ hours}}$

Example 3:

Ben is on the Sugar Industry as a seasonal worker. He works 6 months each year over a 10 year period. He is entitled to 4.3334 weeks as follows:

Since he has only worked 6 out of 12 months over 10 years his total actual service is 5 years.

$8.6667 \times 5/10 = 4.3334 \text{ weeks}$

Continuous Service QLD

What Constitutes Continuous Service?

Refer to Chapter 2 Part 4

- Counting as Service means accrual will continue
Example: Ruby has taken 2.5 week's annual leave in the past year her service will still accrue during this time off.
- Does not count as Service means that accrual is paused and this effectively pushes out the employee's entitlement date.
Example: Kyle has a start date of 12/5/2018, he has taken 1 years of unpaid leave. Without taking the leave his entitlement would have been ten years from 12/5/2018 but this has now been pushed out by 1 year, so his entitlement date is now 12/5/2029.

QLD Continuous Service	
Does Count	Does not Count
All forms of paid leave – e.g. Paid annual leave, paid sick leave, paid long service leave, paid company funded parental leave, carers leave	Unpaid Leave
Leave taken for service in reserve forces e.g. Army Reserve, Air Force Reserve and Navy Reserve.	Where the employer terminated the employee due to illness or injury and re-employed the employee and the employee has not worked elsewhere in between. There is no time limit on this leave.
Paid Workers Compensation	Termination of the employee's employment if the employee is re-employed by the same employer within 3 months. Termination can be by the employer or employee. Example: If an employee resigns and then comes back to work within 2 months prior service is recognised but the 2 months in between do not count towards service.
Transmission of business Example: The business is sold to another company, and the employee is kept on, then the period of employment with the previous employer is transferred to the new employer.	Leave taken due to Industrial Action either directly or indirectly. Example: An employee who is part of strike action for 1 week would not have this counted towards LSL.
Transferring within a company or group.	Stood down due to slackness of trade.
An employee while employed starts an apprenticeship or traineeship. Apprentices who have entered a contract of service with that employer within 3 months of completion of the apprenticeship. Example: Walid's apprenticeship with ABC Kitchen's ceases on 30/6/24. He comes back as a qualified trades person on 1/9/24 as one of the other tradies has retired. As Walid is re-employed within 3 months his prior service as an apprentice is recognised. The time in between is not counted as service.	

QLD Continuous Service	
An interruption to, or termination of, employment caused by the employer with the intention of avoiding an obligation in relation to long service leave;	
Casual and seasonal workers – refer to section on Casual/ Seasonal Workers	
Employee's service is temporarily lent or let on hire by the employer to another employer	
Service with a partnership and an employer who was, or becomes, a member of the partnership is taken to be continuous service with the same employer.	

Casual/Seasonal Workers?

For Casuals – refer to S103

Continuous even if:

- The employment is broken; or
- Any of the employment is not full-time employment; or
- The employee is employed by the employer under 2 or more employment contracts; or
- The employee would, apart from this section, be taken to be engaged in casual employment; or
- The employee has engaged in other employment during the period.

Continuous service may end if the employment is broken by more than 3 months between the end of one employment contract and the start of the next.

- Service before 23/6/1990 is not counted
- Service between 23/6/1990 and 30/3/1994 – service is counted if having worked at least 32 hours in each consecutive 4-week period. S11.27 of the Industrial Relations Act 1990

What Counts as Service for Seasonal Worker in Sugar and Meat Industry – refer to S107

Does Not Count

- Time worked in either industry before 23 June 1990 does not count

Does Count

- The period between seasons when the employee is not employed is taken into account when:
 - a. Season 1 the employment continued until the end of the season or an earlier date if the employer terminated the employee and
 - b. In the following season the employee started at the opening of the season or a later date when the employer required the employee to start
- Employment between seasons

Entitlement for Seasonal Worker in Other Industries – refer to S109

- This is determined by the commission

Example 1: Jana is a casual retail assistant. She is going on unpaid approved parental leave for 12 months.

- As the absence is approved unpaid leave, service is not broken but the 12 months does not count as service

Example 2: Vanak is a seasonal worker in the sugar industry and only works in the harvest season.

- This time off will still count towards his service, as employment continues until the season ends and commences working again at the beginning of the next season.

Terminated and Re-employed?

If employment is terminated by the employer or employee but is then re-employed within 3 months, then prior service is recognised but the period between is not counted as service.

Refer to S134(5) and (9).

Example 1: Avit has resigned as his mother is sick and resides overseas and he was unsure how long he would need to be away.

After 6 weeks Avit's mother is better, and he can return to Australia.

His employer had luckily not filled her role and was able to re-instate his employment.

- For Long Service Leave purposes, his prior service will be recognised but the 6-week gap won't count towards service.

Example 2: Jamal has been terminated due to poor performance by his employer, unfortunately the role was in admin and Jamal is better suited to sales.

After 6 months the employer has a role in sales and remembers Jamal had excellent sales skills and is re-hired.

- As the period is over 3 months Jamal's prior service is not recognised, his service will start from his new employment date

Example 3: Petra has been terminated due to redundancy.

The employer offers to hire her back in another role 4 months later.

- For Long Service Leave purposes, her prior service is not recognised as she is returning after 3 months.

Workers Compensation?

- Accrual continues during paid illness or injury including Workers Compensation.
- The period of absence is considered service, whilst on workers compensation leave.

Transfer of Service/Sale of a Business?

Covered in Section 132 and 134(8)

The *Industrial Relations Act 2016* provides for accumulated long service leave entitlements to transfer from one employer to another (e.g. When a business changes hands and the new employer continues to employ existing staff).

- A transferred employee is entitled to all long service leave accumulated for the total period of their employment - including long service leave accumulated with the previous employer. This provision is not negotiable.
- Long service leave entitlements also transfer if an employee is dismissed at the time the business changes hands or within the preceding month and is then employed by the new employer within 3 months.

Example: Ted works for Glenwood Butchery.

Glenwood Butchery has sold the business to Top Town Meats.

Ted is dismissed by the old employer at the time the business is sold but is then re-hired 3 weeks after the sale by the new owner.

- His break in service is less than service 3 months so his is deemed to be continuous from his original start date with Glenwood Butchery, however the 3 weeks in between is not counted as service.

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

- Yes, this is at the discretion of the employer. Refer to Section 97(2).



PRO TIP

Best practice would be to have the agreement:

- In writing
- Clearly outlining the amount of leave in weeks being taken and
- How any leave would be recouped if the employee left before the entitlement had been reached.

Can Leave Be Cashed Out?

It can only be cashed out if

- Allowed in the relevant award or industrial instrument
- If applied for by the employee to Queensland Industrial Relations Commission (QIRC), the application may only be made on the bases of compassionate reasons or on the grounds of financial hardship. This may only be applied for once an employee has qualified for entitlement.

Refer to Section 110

Are There Specified Amounts That Can Be Taken?

Leave is taken by agreement between the employer and employee

Refer to Section 97

Can the Employer Enforce LSL to Be Taken?

Yes. The employer must give at least 3 months written notice of the requirement to take the leave. The leave must be at least 4 weeks in length.

As an example, if the employer wanted to bring down its leave liability for Long Service Leave, they could provide notice to an employee that they are required to take Long Service Leave. The notice would need to be in writing, with at least 3 months' notice of when leave is to commence. It should also stipulate the amount of leave (at least 4 weeks) that needs to be taken in weeks.

Refer to Section 97(3)

Are Public Holidays Included in LSL Taken?

Long Service Leave does not include public holidays.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave

This means LSL is not 'deducted' from the LSL balance on a public holiday.

Refer to Section 95(5)

Example:

If an employee takes a week’s LSL from the 24th of Jan 2024 to the 30th of Jan 2024.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave
i.e. The 26th of January is not counted as an LSL day)

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	PH		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Pay?

Definition of ordinary pay is found in Section 98

Ordinary Pay

Is the current ordinary rate of pay for the period of leave. This means the rate at which the employee is paid for ordinary time and that is higher than the ordinary rate of pay.

Ordinary Pay	
Include	Do not Include
Salary and Wages	Overtime
Casual Loading	
Penalty Rates e.g. Shift penalties, weekend and public holiday loadings	
Commission – See S99	
Commission – calculated as follows: Default Average Commission Last year of commission divided by 52.179 x weeks of leave being taken. Example: An employee in sales has earned a total of \$13,500 in Commission in the last year. They are taking 5 weeks LSL. Additional Payment per week is as follows: $\$13,500 / 52.179 \times 5 = \$1,293.62$ \$1,293.62 is added to the employee's 5 weeks or an extra \$258.72 per week.	

How Do You Calculate the Weekly Hours?

Employment Type	Hours to Pay
Full time	Normal Weekly Hours
Casual, Part time or Mixed Employment – section 105	Total Ordinary Hours Worked divided by 52 x 8.6667 divided by 10 If the leave is being taken, then the employer and employee can agree to the amount being taken in the full time equivalent based in weeks. This means you calculate the hours in the above formula and then divide by 38 to get the FT equivalent in weeks.

Example 1: Vlad is a Full-time employee and has always been full-time. He works 38 hours per week.

His weekly hours for LSL purposes are 38 hours per week.

Example 2: Raina has worked at a Fast-Food Restaurant as a casual assistant for the past 12 years. She also took unpaid leave for 1 year in 2022 and has not taken any LSL previously.

Hours Each Year	
Year	Hours Worked
2013	520
2014	830
2015	547
2016	605
2017	727
2018	619
2019	424
2021	871
2022	0
2023	545
2024	629
2025	711
Total Hours on Employment	7,028
Calculations: $7028/52 \times (8.6667/10)$	
$135.1538 \times 0.86667 = 117.1338$ hours available to take	
To convert this to the full-time equivalent then the hours available are divided by 38	
$117.1338 / 38 = 3.082$ weeks FT equivalent	

What Is the Value of a Week?

Employment Type	Value of a Week
Full time	Value of a Week = Normal Weekly Rate of Pay
Casual, Part time or Mixed Employment – section 105	Value of LSL Available = Total Ordinary Hours Worked divided by 52 x 8.6667 divided by 10 X hourly rate.
Commission – section 99	$C / 52.179 \times W = DAC$ C – total Commission 1 year before leave is taken W – number of weeks for which payment is being made DAC – default average commission

Casual Example of Value of a Week	
Example: Using the data in the example of Raina, hours available are 117,1338. She is paid \$27.50 per hour.	
Hours	117.1338
Hourly Rate (including casual loading)	\$27.50 per hour

Casual Example of Value of a Week

Calculation: $\$27.50 \times 117.1338 = \$3,221.18$ Value of all leave available.

If this is converted to the FT equivalent of 3.082 weeks,
then the employee can take 1 week as $\$3,221.18 / 3.082 = \$1,045.00$ per week.

Commission Example

Example: Fahid works in sales and is taking LSL. Work out the Commission portion using data below.

Total Commission in the last 12 months

\$32,357.00

Weeks being taken

3

Calculation: $\$32,357.00 / 52.179 \times 3$

$\$620.12 \times 3 = \$1,860.36$ is added to his LSL payment for commission.

When Is Long Service Leave Being Taken Paid?

- An employee and employer may agree on when, and the way in which, the employee will be paid for long service leave. E.g. the whole amount at the time leave starts or paid as per the dates coinciding with the regular pay period.
- The commission may decide any matter relating to payment for long service leave that the employee and employer cannot agree on.
- An amount payable for long service leave becomes payable at a time agreed between the employee and employer or, if they cannot agree, at a time decided by the commission.

Refer to S101 of the Act.

Payment on Termination

What Is Payable on Termination?

Refer to Section S95 (3) & (4)

What is Payable on Termination	
Before 7 years	No Entitlement
7 to 10 Years	Proportionate amount if termination is for the following reasons: • The employee's service is terminated by their death. • The employee terminates their service because of their illness* or because of a domestic or other pressing necessity. • The employer dismisses the employee because of the employee's illness*. • The employer dismisses the employee for a reason other than the employee's conduct, capacity or performance. • The employer unfairly dismisses the employee.
10 or more years	All accrual is entitlement

When Should Long Service Leave Be Paid on Termination?

Refer to S373(6)

Payment is due within 3 days of termination date.

What Are the Record Keeping Requirements?

- As long service leave entitlements are based on continuous service, it is important that complete and accurate time and wages records are kept by the employer.
- An employer is required to keep a record of the total number of ordinary hours worked by each casual employee from the start of the employee's service worked out to and including 30 June each year.
- It is recommended that a similar record is also kept for part-time employees.
- This record must be kept for a period of 6 years following termination of employment.

Refer to S339 (1)(d) & (4) of the Act.

PRACTICE ACTIVITY 3(A):

Bevan is taking 4 weeks of his LSL.

Length of Continuous Service: 11.2 years

Employment Status: Full-time 38 hours per week for all his employment

Ordinary Remuneration: \$3,159.00 per week

Calculate the value of Bevan's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	

Total Payable for 4 Weeks	
---------------------------	--

PRACTICE ACTIVITY 3(B):

Samantha has been made redundant, calculate her LSL payout.

Length of Service: 8.9 years

Unpaid Parental Leave: 0.75 years

Employment Status: Part-time (15.2 hours per week)

Total Hours Worked: 7,034.56

Current Ordinary Remuneration: \$29.54 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
Total Payable for Termination	

PRACTICE ACTIVITY 3(C):

Karen has found permanent employment with another company and has resigned. Work out her LSL payout.

Length of Continuous Service: 18 years

She has previously taken 5 weeks of LSL

Employment Status: Casual

Ordinary Remuneration: \$42 per hour (inclusive of casual loading)

Total Ordinary Hours over the whole of employment: 14,072

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining LSL:	

STEP 3: VALUE OF WEEK	
Average Hours per Week	
Ordinary Weekly Rate of Pay	

Total Payable on Termination	
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QLD - Matrix

Key Legislation

Legislation

Industrial Relations Act 2016 (Qld), ch 2 pt 3 div 9 [QLD Government](#) ⇄

Absences That Do Not Count As Service

Typical Exclusions

- Absence due to illness or injury where the employee is not paid;
- Employee has been on unpaid leave granted by the employer (e.g. Unpaid parental leave),
- Absences due to industrial dispute, absence due to slackness of trade

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 8.6667 weeks after 10 years
- Then 4.3333 weeks for each 5 years thereafter.
- After 15 years can take it as it accrues

On Termination

Years of Continuous Service

Before 7 years – no entitlement

After 7 and before 10 years pro-rata of 10 years (2months) if:

- Dismissed by the employer for reason other than serious misconduct, capacity or performance, e.g. Redundancy
- Due to illness, incapacity, domestic or other pressing necessity
- Death

After 10 years – pro rata based on the full period of continuous service

Timing of Payment on Termination

When Must LSL be Paid?

Within 3 days of termination

What Is the Rate of Pay?

Full Time: What the employee would have received for working their ordinary hours, not including overtime. If the employee has been part-time or casual at any time during their service, then it is Total ordinary hours worked during the period of service x 0.86667 / 52

Commission averaged by: Commission paid in last 12 months/52.179

Part Time/Casual: Total ordinary hours worked during the period of service x 0.86667 / 52 – at the current hourly rate of pay.

Cashing out Long Service Leave

Is Cash Out Allowed?

Restricted

Key Conditions to Note

Cash-out is possible only if: (a) an award or enterprise agreement expressly permits it, or (b) the Queensland Industrial Relations Commission approves an application on compassionate or financial-hardship grounds after the employee's entitlement has accrued.

Taking Long Service Leave in Advance

May Leave Be Taken Early?

Yes—by agreement

Casual Employees – Are They Entitled to LSL?

Yes—from 30/3/1994. Before that, from 23/06/1990 to 29/03/1994 if they worked 32 hours in each consecutive 4-week period.

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer or employee - breaks of 3 months or less do not break service. The break in between does not count as service.

No time limit applies for stand down due to slackness of trade.

Employer Notice Requirements to Take Leave



Timing Rules

Employers must provide 3 months' written notice for the employee to take at least 4 weeks LSL.

How Leave Can Be Taken

Rules

Leave is taken by agreement between the employer and employee.

Public Holidays Falling During LSL

Exclusive – means that the public holiday is paid in addition to LSL and does not count as a day of LSL taken.

Effect on Leave

Exclusive

Working Elsewhere While on LSL

Restriction

Silent

Resources

Business QLD - *Long service leave in Queensland* | *Business Queensland* ■

STATE LEGISLATION WA

Long Service Leave Act 1958 - https://www.legislation.wa.gov.au/legislation/statutes.nsf/main_mrtitle_555_homepage.html 

Resources: <https://www.wa.gov.au/organisation/private-sector-labour-relations/overview-of-long-service-leave-wa> 



Long Service Leave WA Entitlements

Who Is Entitled?

- Full time, Part time and Casual employees.
- Each employee will be entitled to the same number of weeks long service leave entitled, regardless of their current or previous status of employment.
- Refer to Section 4 of the Act

What Is the Entitlement?

- 2 months (8.6667 weeks) after 10 years of continuous service, then
- A further 1 month (4.3333 weeks) for each additional 5 years continuous service.
- Refer to Section 8 of the Act

How to Work Out Accrual:

Years of Continuous Service x (8.6667 / 10)



PRO TIP

It is important to note that long service leave in WA does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 10 years of continuous service

Example 1:

Romany is leaving due to redundancy and has an entitlement of 11.25 years continuous service. Work out the entitlement

Years of Continuous Service	11.25
Entitlement in Weeks	$11.25 \times (8.6667/10) = 9.75 \text{ weeks}$

Example 2:

Ajit has had 10.67 years of Continuous Service and has resigned. He has already taken 4 weeks of LSL. Work out the entitlement.

Years of Continuous Service	10.67
Entitlement in Weeks	$10.67 \times (8.6667/10) = 9.2474 \text{ weeks}$
Less Leave Taken	4
Entitlement Remaining	$9.2474 - 4 = 5.2474 \text{ weeks}$

Continuous Service WA

What Constitutes Continuous Service?

- This is covered in Section 6 & 6(A) of the Act

- Counting as Service means - accrual will continue.

Example: Bimla has taken 2 week's annual leave in the past year her service will still accrue during this time off.

- Does not count as Service means that accrual is paused, and this effectively pushes out the employee's entitlement date.

Example: Akari has a start date of 1/7/2014, she has taken 1 year of unpaid parental leave. Without taking the years leave her entitlement would have been ten years from 1/7/2014 but this has now been pushed out by 1 year, so her entitlement date is now 1/7/2025.

WA – Continuous Service Entitlement Reached Before 20 June 2022	
Does Count	Does not Count
Paid Annual Leave Paid Long Service Leave Paid Personal/sick/carers leave up to 15 working days per year of employment	Leave due to illness or injury of more than 15 working days per year of employment
Paid Public Holidays worked and not worked	Unpaid parental leave or LWOP
Any period following the termination of the employee by their employer irrespective of the duration, if this was done by the employer with the intent of avoiding their long service leave or annual leave obligations	Stood down due to slackness of trade within 6 months Stood down due to an award,/agreement, order or determination. N.B. Special conditions apply for JobKeeper payments
Service with the Defence Forces Reserves, whether paid or unpaid.	Absence due to an industrial dispute
	Absence due to reasonable legitimate union business for which the employee has requested leave but been refused.

WA – Continuous Service Entitlement reached from 20 June 2022	
Does Count	Does not Count
Paid Annual Leave Paid Long Service Leave Paid Personal/sick/carers leave Paid Company funded parental leave Government Paid Parental Leave Paid Compassionate/Bereavement Leave Paid Family Domestic Violence Leave	Unpaid Leave
Any other form of leave provided as part of the employee's employment, including leave authorised by their employer or provided in legislation or in an award, agreement or contract of employment, for which the employee has received payment	Stood down due to slackness of trade within 6 months Stood down due to an award,/agreement, order or determination. N.B. Special conditions apply for JobKeeper payments

WA – Continuous Service Entitlement reached from 20 June 2022	
Paid Public Holidays worked and not worked	Any gap in service for an apprentice within 52 weeks of finishing the apprenticeship and starting with the employer on a new contract
Any period following the termination of the employee by their employer irrespective of the duration, if this was done by the employer with the intent of avoiding their long service leave or annual leave obligations	Absence due to an industrial dispute Absence due to reasonable legitimate union business for which the employee has requested leave but been refused.
Service with the Defence Forces Reserves, whether paid or unpaid.	Other authorised absences which are not listed as counting as service
Apprentices who have entered into a contract of service with that employer within 52 weeks of completion of the apprenticeship. Example: Walid's apprenticeship with ABC Kitchen's ceases on 30/6/24. He comes back as a qualified trades person on 1/10/24 as one of the other tradies has retired. As Walid is re-employed within 52 weeks his prior service as an apprentice is recognised.	

Casual/Seasonal Workers?

Has continuous service and will count as service if:

- If a break is due to the break between shifts due to the regular and systematic nature of employment or the seasonal nature of the work
- The break is part of the employee's terms of employment.
- Even if they have 2 or more contracts of employment or
- Work with another employer

Refer to S6(5) & (6)

Example 1: Lorretta is a casual waitress at a local restaurant.

She is taking 1 month off to study for upcoming Uni exams and then she will return to work.

- This time off will still count towards service as there is an expectation of her returning to work.

Example 2: Franz works 6 months a year as a seasonal worker. He always comes back to work each season. Time off will still count towards his service, as the absence is caused by seasonal factors.

- Time off will still count towards his service, as the absence is caused by seasonal factors

Terminated and Re-employed?

Interruption to service or re-employment within 2 months after service is interrupted.

- **Only applies** if the employer instigated termination.
- If the employee has resigned, then service will start anew.
- A 6-month limit applies to stand down due to slackness of trade.

Time off between the employer terminating the employee and re-hire will not count towards service.

Refer to S6(4) of the Act

Example 1:

Tamara has resigned as her mother is sick and resides overseas and she was unsure how long she would need to be away.

After 6 weeks Tamara's mother is better, and she can return to Australia.

Her employer had luckily not filled her role and was able to re-instate her employment.

- For Long Service Leave purposes her service will start from her re-instatement date as Tamara resigned.

Example 2:

Carl has been stood down due to a slackness in trade

After 3 months the employer re-instates him as business has picked up.

- As the period is under 6 months and the reason was due to a stand down due to slackness of trade Carl's service is continuous.
- The 3 month period in between won't count as service.

Example 3:

Holly has been terminated due to redundancy.

The employer offers to hire her back in another role 1 month later.

- For Long Service Leave purposes, her prior service is recognised as she is returning before 2 months.
- The 1 month period in between won't count as service.

Workers Compensation?

From 1 July 2024

- Counts towards service (s61 (d) of the Workers Compensation and Injury Management Act 2023)

Before 1 July 2024

Entitlement reached **before 20 June 2022**

- Leave due to illness or injury up to 15 days per year of employment counts towards service this includes workers compensation

Entitlement reached **from 20 June 2022**

- Does not count as service, unless casual

<https://www.wa.gov.au/organisation/private-sector-labour-relations/long-service-leave-and-workers-compensation> 

Transfer of Service/Sale of a Business?

The continuity of the worker's service is not considered to be broken if a business is sold in whole or in part and that business:

- Continues by the new owner as the same business, and
- The worker is employed in that business,

Service with any previous owner(s) of the business counts as service with the new owner.

When a business changes owner, copies of the record of all long service leave taken and accrued by workers must be transferred from previous employer to the new owner of the business.

Refer to Division 7

Example: Manesh works for Cute Accounting.

Cute Accounting has sold the business to Top Books.

Manesh continues working with the new owner.

- His service is deemed to be continuous from his original start date with Cute Accounting.

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

Yes, if agreed by both the employer and employee. Refer to Section 10 of the Act.

- An employee who enters into this agreement is not entitled to additional long service leave until they have accrued back the amount they were given in advance.
- If terminated or resigns before they have accrued their long service leave the employer may deduct from their final pay the amount that represents payment for any period for which the employee has been granted long service leave in advance.



PRO TIP

Best practice would be to have the agreement:

- In writing
- Clearly outlining the amount of leave in weeks being taken and
- How any leave would be recouped if the employee left before the entitlement had been reached.

Can Leave Be Cashed Out?

Yes, this is covered in s5.

- Once entitlement has been reached
- Paid the same rate as if they had taken the leave.
- The agreement must be in writing and signed by both parties
- The agreement needs to include details of the amount of leave and dollar value of the leave being cashed out
- A copy must be kept on the employees files
- LSL does not accrue on the cashed out leave.

Are There Specified Amounts That Can Be Taken?

LSL can be taken as soon as practicable after entitlement in one continuous period or as per agreement between the employer and employee in separate periods.

Leave by agreement can also be taken at

- Double Pay for half the amount of time or
- Half pay for twice the amount of time

Refer to S9 of the Act

Can the Employer Direct an Employee to Take Leave?

No. This is not covered by the Act.

However, an employee can give an employer 2 weeks' notice that they are taking leave if an agreement on when to take leave has not been reached and they became entitled to leave more than 12 months before.

Refer to S9(1a & 1b)

Are Public Holidays Included in the LSL Taken?

Long Service Leave does not include public holidays.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave

Refer to Section 9(4) of the Act.

Example:

If an employee takes a week's LSL from the 24th of January 2024 to the 30th of January 2024.

I.e. the 26th of January is not counted as a Long Service leave day.

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	PH		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Remuneration?

Definition of ordinary pay is found in Division 2 of the Act

Include	Do Not Include
Salary and Wages	Overtime
Casual Loading	Penalty Rates e.g. Shift penalties, weekend and public holiday loadings
Cash value for Board and Lodging	Allowances

How Do You Calculate the Weekly Hours?

Employment Type	Hours to Pay
Full-time & Part-time and hours have not varied over employment	Normal Weekly Hours
Casual or hours have varied over employment	Average Weekly Hours over the whole of employment: Do not include any hours for leave taken that did not count as service in the averaging calculation. Include Overtime Hours worked if overtime is worked regularly. N.B. The WA government have advised that any overtime worked could be viewed as regular. The averaging is worked out separately over each accrual period. This means the first 10-year average is worked out separately from the 10 – 15 year average, and so on. On termination, the average in the final period is worked out on completed years of service only.

Casual/Varied Hours Over Employment Example of Hours Calculation

Taking Leave

Jeffrey is a full-time employee who was previously casual with 16 years of continuous service and wants to take long service leave. In Year 4, he took 4 weeks unpaid leave.

Work out the average hours.

Year 1	1,976
Year 2	1,976
Year 3	1,976
Year 4	1,824
Year 5	1,976
Year 6	1,801
Year 7	1,659
Year 8	525
Year 9	1,295
Year 10	1,458

Casual/Varied Hours Over Employment Example of Hours Calculation	
Year 11	1,253
Year 12	1,107
Year 13	854
Year 14	1,587
Year 15	1,369
Year 16 (most recent year)	1,752
Total Hours over first 10 years	16,466
Total Weeks over first 10 years	$(10 \times 52) - 4 = 516$
Weekly Average over first 10 years	$16,466/516 = 31.91$ hours per week
Total Hours of LSL in First 10 years	31.91×8.6667 weeks of LSL entitlement = 276.5544 hours
Total Hours over 11 – 15 years	6,170
Total Weeks over 11 – 15 years	$5 \times 52 = 260$
Weekly Average over 11 – 15 years	$6,170/260 = 23.73$ hours per week
Total Hours of LSL in 11 – 15 years	23.73×4.3333 weeks of LSL entitlement = 102.8292 hours
Total hours available to take	$276.5544 + 102.8292 = 379.3836$ hours
As Jeffrey is taking LSL we only look at each period of entitlement so the averages at 10 years and 15 years. So the total hours available to take are 379.3836.	

Termination	
If Jeffrey were to leave after 16 years, we would add to that the average hours above the next period in this case 16 – 20 years on completed years of service only as follows:	
Total Hours over 16 – 20 years	1,752
Total Weeks over 16 – 20 years	$1 \times 52 = 52$
Weekly Average over 16 – 20 years	$1,752/52 = 33.69$ hours per week
Total Hours of LSL in 16 – 20 years	$33.69 \times (1 \text{ year} / 10 \times 8.6667)$ weeks of LSL entitlement = $33.69 \times (0.86667)$ weeks of LSL entitlement = 29.20 hours
Total hours to pay on termination	$276.5544 + 102.8292 + 29.20 = 408.5836$ hours

How Do You Calculate the Rate of Pay?

Employment Type	Rate to Pay
Full time & Part-time and hours have not varied over employment	Ordinary Rate of Pay
Casual or hours have varied over employment	Ordinary Rate of Pay (for casuals this includes the casual loading)
Commission, Commission/Retainer, Piece Work or Payment by results	Weekly Pay = $((\text{Total Commission/Earnings} + \text{Base ordinary Pay earned 365 days before leave/termination}) / 365) \times 7$

What Is the Value of a Week?

Employment Type	Value of a Week
Full time & Part-time and hours have not varied over employment	Value of a Week = Ordinary Rate of Pay x Weekly Hours
Casual or hours have varied over employment	Value of a Week = Ordinary Rate of Pay x Average Weekly Hours over whole of employment
Commission, Commission/Retainer, Piece Work or Payment by results	Weekly Pay = ((Total Commission/Earnings + Base ordinary Pay earnt 365 days before leave/termination) / 365) x 7

Commission Calculation Example	
Kelly-Ann is a real estate agent who is paid by base salary (retainer) and commission. She is due to take long service leave. Using the data below her weekly rate of pay for LSL is calculated as follows:	
Commission in the last 365 days	\$85,700
Salary in the last 365 days	\$62,500
Weekly Pay	$((\$85,700 + \$62,500) / 365) \times 7$ $(\$148,200 / 365) \times 7$ $\$406.0274 \times 7 = \$2,842.19 \text{ per week}$

When Is Long Service Leave Being Taken Paid?

- Pay it in the pay period where the leave occurs or
- Payment in advance if the employee requests it in writing
- In any other way as agreed by the employer and employee

Refer to S 9(3).

Payment on Termination

What Is Payable on Termination?

Refer to S8(2)

What is Payable on Termination	
Before 7 years	No Entitlement
7 Years but less than 10 Years Section 8(3)	Pro- Rata for any reason other than serious misconduct
10 Years and After	Paid on Completed Years of Continuous Service Only

When Should Long Service Leave Be Paid on Termination?

Refer to S9(2A) on the day of termination.

Where long service leave is paid out upon the death of the employee, the payment must be made to the employee's personal representative upon request.

What Are the Record Keeping Requirements?

Covered in S26 & 26A of the Act.

An employer must keep a record of the employee's:

- Name and, if under the age of 21, their date of birth;
- Date of commencement of service;
- The gross and net amounts paid to the employee under their contract of employment, and any deductions and the reasons for them;
- All leave taken by the employee whether paid, partly paid or unpaid;
- Details of any agreement with the employee to cash out their long service leave entitlements;
- All details necessary to allow for the calculation of the employee's long service leave entitlement; and
- Occupation or duties;
- Rate of pay;
- Number of hours worked per week;
- Entitlement to long service leave;
- Any long service leave taken;
- Any payment made in lieu of long service leave;
- Manner of termination and any payment of long service leave on termination (if applicable).

Because of the need to average an employee's hours over their entire period of service, these records should be kept for as long as the employee is employed, plus a further seven years after the employee's employment comes to an end.

PRACTICE ACTIVITY 4(A):

Peggy is going on a trip to Europe and wants to use 4 weeks of her LSL.

Length of Continuous Service: 11.5 years

Employment Status: Full-time 38 hours per week

Ordinary Remuneration: \$3,620.00 per week

Calculate the value of Peggy’s LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	
Total Payable for 4 Weeks	

PRACTICE ACTIVITY 4(B):

Rebekah has been made redundant, calculate her LSL payout.

Length of Service: 8 years

Unpaid Parental Leave: 1 year (no GPPL was paid in this time)

Employment Status: Part-time for 6 years. She was casual before this.

Current Ordinary Remuneration: \$28.75 per hour

Total Hours Worked over whole of employment: 12,272

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	

STEP 3: VALUE OF WEEK	
Average Weekly Hours	
Ordinary Weekly Rate of Pay	

Total Payable for Termination	
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PRACTICE ACTIVITY 4(C):

Maggie has found permanent employment with another company and has resigned. What is her LSL payout?

She has previously taken 7.5 weeks (180 hours) of LSL.

Length of Continuous Service: 12 years

Employment Status: Casual

Ordinary Remuneration: \$36.58 per hour (inclusive of casual loading)

Total Hours Worked in the first 10 years: 12,480

Total Hours Worked from 11 – 12 years: 2,600

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining LSL:	

STEP 3: VALUE OF A WEEK	
Average Hours per Week in the First 10 Years	
Average Hours in Years 11 to 12	
LSL Entitlement in Hours:	
LSL Taken:	
Remaining LSL in Hours:	
Total Payable for Termination	

WA - Matrix

Key Legislation

Legislation

Long Service Leave Act 1958 (WA) [WA Government](#) ⇐

Absences That Do Not Count As Service

Typical Exclusions

Entitlement reached before 20th June 2022

- Leave due to illness or injury of more than 15 working days per year of employment and
- Unpaid parental leave or LWOP.
- Absence due to slackness of trade
- Absence due to an industrial dispute

Entitlement reached from 20th June 2022

- Periods of leave for which the employee has not received payment.
- N.B. GPPL is included as service
- Absence due to slackness of trade
- Absence due to an industrial dispute

Workers' Compensation after 1st July 2024 counts towards service

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 8.6667 weeks after 10 years
- Then 4.3333 weeks for each 5 years thereafter

On Termination

Years of Continuous Service

Before 7 years – no entitlement

After 7 and before 10 years - pro-rata of 10 years (2 months) except termination for serious misconduct.

After 10 years – paid on completed years of service only

Timing of Payment on Termination

When Must LSL be Paid?

Day of termination

What Is the Rate of Pay?

Full Time: Paid at the ordinary rate of pay applicable at the time the leave is taken. Ordinary pay does not include shift premiums, overtime, penalty rates and allowances. If they have not always been full-time then use the calculation for Part-time/Casual.

For an employee who is paid by results, such as piece rates or commission work: the rate of pay while on long service leave is the average weekly rate earned during the past 12 months of employment. Including overtime hours.

Part-time/Casual: A part-time or casual employee is paid LSL at the ordinary rate of pay for the average number of hours worked over the period of employment. (This will include overtime hours).

Cashing out Long Service Leave

Is Cash Out Allowed?

Yes

Key Conditions to Note

Employer and employee may agree in writing to cash out some or all of an accrued entitlement once the minimum qualifying service is reached. The employee must be paid at least what would have been earned during the leave period.

Taking Long Service Leave in Advance

May Leave Be Taken Early?

Yes—by agreement

Casual Employees – Are They Entitled to LSL?

Yes

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer - breaks of 2 months or less do not break service. The break in between does not count as service.

A 6-month limit applies for stand down due to slackness of trade.

Employer Notice Requirements to Take Leave

Timing Rules

An employer cannot direct an employee who is covered by the Long Service Leave Act to take long service leave at a particular time.

How Leave Can Be Taken?

Rules

One continuous period, or if the employer and employee agree, can be taken in separate periods.

An employee may also request that an employer grant them leave at half pay or double pay. An employer is not obligated to agree to a request to take long service leave in a flexible manner.

Public Holidays Falling During LSL

Exclusive – means that the public holiday is paid in addition to LSL and does not count as a day of LSL taken.

Effect on Leave

Exclusive

Working Elsewhere While on LSL

Restriction

No, there is a statutory prohibition on employment elsewhere during leave. Where an employee has two or more jobs and is accessing long service leave for one of those jobs, generally the employee may continue working in their other job or jobs while on long service leave, as this employment is not in substitution for the job for which they are taking long service leave.

Resources

WA.GOV.AU - [Overview of long service leave in WA](#)

STATE LEGISLATION SA

Long Service Leave Act 1987 (SA) <https://www.legislation.sa.gov.au/lz?path=/c/a/long%20service%20leave%20act%201987> ↗

Resources: <https://www.safework.sa.gov.au/workers/wages-and-conditions/long-service-leave> ↗



Long Service Leave SA Entitlements

Who Is Entitled?

- Full time, Part time and Casual employees.
- Each employee will be entitled to the same number of weeks long service leave entitled, regardless of their current or previous status of employment.

What Is the Long Service Leave Entitlement?

All employees are entitled to 13 weeks after 10 years of continuous service.

For each subsequent year of continuous service, the employee accrues a further 1.3 weeks of long service leave per year of continuous service (Refer to Section 5 of the Act).

Formula to work out accrual is follows:

$$\text{Years of continuous Service} \times (13/10) = \text{Amount of leave in weeks}$$



PRO TIP

It is important to note that long service leave in SA does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 10 years of continuous service.

Example 1:

Rhonda has had 10 years of Continuous Service and has resigned. Her accrued leave to payout is 13 weeks as follows:

$$10 \times (13/10) = 13$$

Example 2:

Matthew is leaving due to redundancy and has 8 years continuous service. He is entitled to 10.4 weeks as follows:

$$8 \times (13/10) = 10.4$$

Continuous Service SA

What Constitutes Continuous Service?

- This is covered in Section 6 of the Act
- Counting as Service means - accrual will continue
Example: Stephanie has taken 2 week's annual leave in the past year her service will still accrue during this time off.
- Does not count as Service means that accrual is paused and this effectively pushes out the employee's entitlement date.
Example: Ted has a start date of 1/7/2014, he has taken 2 years of unpaid annual leave. Without taking the leave his entitlement would have been ten years from 1/7/2014 but this has now been pushed out by 2 years, so his entitlement date is now 1/7/2026.

Continuous Service	
Does Count	Does not Count
Any Paid Leave – will include company funded parental leave if specific long service terms are covered in an EA.	Parental Leave – both company funded and government paid parental leave
Unpaid Sick Leave or workers compensation	Any other kind of unpaid leave
An interruption or ending of service with intent to avoid Long Service Leave obligations.	Stood down due to slackness of trade and is re-employed.
Apprenticeships where the employee commences service with the same employer after completing the apprenticeship within 12 months. Example: Walid's apprenticeship with ABC Kitchen's ceases on 30/6/24. He comes back as a qualified trades person on 1/10/24 as one of the other tradies has retired. As Walid is re-employed within 12 months his prior service as an apprentice is recognised.	Leave taken due to Industrial Action where the employee returns to work as part of a settlement or is re-employed when the dispute is settled.
Service in the Defence Force	

Casual Workers?

Refer to Section 6

- Generally, casuals have a continuity of service unless they have prolonged period of time between contracts or there is a clear termination of the contract.
- Time when they are not rostered to work is still counted.

Casual Example

Sally is a casual employee. Yesterday Sally's workmates surprised her with a 10th anniversary morning tea in celebration of her long service working at Bunches Florist.

Sally approached her employer to discuss when a suitable time would be to take her long service leave entitlement.

When working back through Sally's time sheets, Sally and her employer discover:

- Sally took 4 weeks of unpaid leave when her mother was ill 18 months ago
- There were four separate weeks where Sally did not work any shifts because she was not rostered
- Sally also took 2 weeks leave without pay to go on a holiday.

Counts as Service

- The 4 weeks not rostered count as service but are considered 0 hour weeks when calculating LSL.

Does not count as Service

- 4 weeks unpaid leave, as unpaid leave does not count as service
- 2 weeks' holiday leave, as this is also unpaid it does not count as service

Terminated and Re-employed?

Refer to Section 6(1)(i)

- If terminated by the employer and re-employed within 2 months prior service is recognised
- The time in between does not count towards service

Example 1:

Leanne was made redundant. After 3 months the firm has a new role for Leanne and she is re-employed

- For Long Service Leave purposes, her prior service will not be recognised as she was terminated by the employer and re-hired outside the 2 month period.

Example 2:

Ollie has resigned to go to another job. After 4 weeks he asks to come back to his old employer, and the employer agrees to re-hire him.

- As the Ollie initiated the termination by resigning the employer does not need to recognise the prior service even though the gap is under 2 months.

Example 3:

Jing has been terminated due to redundancy.

The employer offers to hire him back in another role 1 month later.

- For Long Service Leave purposes, his prior service is recognised as he is returning after 1 month, and the original termination was initiated by the employer

Workers Compensation?

Yes, Long Service still accrues while on workers compensation, as the time off is due to illness or injury.

Refer to S6(1)(d)

Transfer of Service/Sale of a Business?

Covered in Section 3(3)

Where a business is sold, transferred or assigned and an employee remains with the business, the new employer becomes responsible for the employee's long service leave entitlement.

- Period of employment with the old employer effectively transfers to the new employer, this means the new employer has to recognise prior service with the old employer
- Transfers to associated companies must also recognise prior service

Example: Carissa works for Engaging Events.

Engaging Events has sold the business to Pure Parties.

Carissa continues working with the new owner.

- Her service is deemed to be continuous from her original start date with Engaging Events

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

- Leave in advance is taken by agreement between the employer and employee
- The agreement should be signed by both parties and a copy put on the employees file
- Employers, have the right to deduct from any long service leave owing on termination the amount which has already been taken in advance.

Refer to Clause 7 (4)(d) & (6)

Example on Recovering Negative Leave

Evelyn has worked for her employer for 8 years. Evelyn does not have any annual leave left but wants to take leave to look after her child, who is recovering from an operation. As Evelyn would be eligible for pro-rata leave if she left her current employment, Evelyn and her employer have made an agreement that will allow Evelyn to take 4 weeks of her long service leave entitlement.

At the end of her leave, Evelyn decides that she will leave her employment to spend more time with her child. As Evelyn has completed 8 years in her current employment, she would be eligible for a pro-rata long service leave payment of 10.4 weeks (8 years x 1.3 weeks). However, her employer is entitled to deduct the 4 weeks leave that Evelyn has already taken from her final payment. Evelyn will therefore receive a payment that covers the remaining 6.4 weeks of her pro rata long service leave entitlement.

Can Leave Be Cashed Out?

Yes, it can be cashed out by agreement once entitlement is reached.

- The agreement needs to be in writing
- Signed by both parties and a copy kept on the employees file.

Further advise the following:

When the payment is made to the worker, the employer must give to the worker a written statement setting out:

- Worker's name
- Date of the written statement
- Current entitlement of long service leave (expressed in weeks or fraction of a week in hours)
- Payment amount
- The period of leave in lieu of which the payment is made
- The number of long service leave days (if any) that will remain due to the worker after the payment is made
- Name of employer
- Employer must sign and date notice.

Refer to S5(1a)

<https://safework.sa.gov.au/workers/wages-and-conditions/long-service-leave/payment#In-lieu>

Are There Specified Amounts That Can Be Taken?

- Ideally, it should be granted as soon as practicable after reaching entitlement and
- In one continuous period
- However, by agreement it can be deferred and taken in separate period.

Refer to S7(1), (2) and (4)

Can the Employer Enforce LSL to Be Taken?

Yes. The employer must give at least 60 days written notice of the requirement to take the leave.

Refer to Section 7(3)

Are Public Holidays Included in the LSL Taken?

Long Service Leave includes public holidays.
The Public holiday is **Inclusive** = This means the public holiday are counted as a day of Long Service Leave
This means LSL is ‘deducted’ from the LSL balance on a public holiday.
Refer to Section 7(7) of the Act

Example:

If an employee takes a week’s LSL from the 24th of Jan 2024 to the 30th of Jan 2024.
The Public holiday is **Inclusive** = This means the public holiday is counted as a day of Long Service Leave
i.e. the 26th of January is counted as an LSL day)

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	LSL		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Pay?

Definition of ordinary pay is found in Section 3(2).

Include	Do Not Include
Salary and Wages (including any above award payments)	Overtime
Casual Loading	Penalty Rates (e.g. night shift, weekend penalties)
Commissions	Shift Premiums
Where the employee is provided with board and lodging by his or her employer, an amount equal to the value of that board and lodging	Allowances for work related expenses such as uniform, locality or car allowance. If unsure about an allowance you can apply to SafeWork SA for a private ruling.

How Do You Calculate the Weekly Hours?

Refer to S3(2)

Employment Type	Hours to Pay
Full time/Part-time and no changes to hours in the last 3 years	Normal Weekly Hours
Part time or Full-time with changes to hours in the last 3 years (mixed employment)	Average Weekly Hours = Total Hours Worked in the previous 3 years / 156 * Include Overtime hours worked N.B. – The 156 week period does not include whole weeks of unpaid leave or workers compensation. If whole weeks of unpaid leave or workers compensation have been taken then they are excluded and substituted for the next week back that was a working week.
Casual	Average Weekly Hours = Total Hours Worked in the previous 3 years / 156 * Include Overtime hours worked N.B. – Any week the employee did not request unpaid leave is considered a working week. This includes: • A worker has undertaken paid employment with the employer • A worker was available for paid employment but did not receive a shift • A worker made themselves unavailable to work but did not request leave.
Commission/Piece Work Includes: • Paid partly by commission/retainer	No Hourly calculation, however the Weekly Rate of pay is determined by: Weekly Rate of Pay = Total Income over 52 weeks / 52

Example Mixed Employment

Lowana has worked as a part-time employee for the past 2 years.

She was previously worked full-time for 8 years but moved to part-time 2 years ago.

She also took 4 weeks unpaid leave in the last 3 years. This means the average will be over the last 160 weeks as the 4 weeks in the original 156 period are excluded.

Hours worked over the last 156 weeks	4,257
Hours worked over weeks 157 to 160	152
Calculation: $(4257 + 152) / 156 = 28.2628$ hours per week	

Example for a casual employee

Renaldo is a casual employee and is leaving after 8 years. He is entitled to a pro-rata payment on termination.

He has not taken any unpaid leave but has had weeks where he marked himself as not available or was not rostered on to work by his employer.

As there is no unpaid leave these weeks not worked are included in the averaging calculation.

Year	Hours Worked
2023	837
2024	1,076
2025	1,654
Total Hours Worked	3,567
Calculations: $3567 / 156 = 22.8654$ hours per week	

What Is the Value of a Week?

Employment Type	Hours to Pay
Full time/Part-time and no changes to hours in the last 3 years	Value of a Week = Current Ordinary Weekly Remuneration
Part time or Full-time with changes to hours in the last 3 years (mixed employment)	Value of a Week = Average Weekly Hours over the last 156 weeks x Current Ordinary Rate of Pay
Casual	Value of a Week = Average Weekly Hours over the last 156 weeks x Current Ordinary Rate of Pay N.B. – Casuals are also paid their casual loading
Commission/Piece Work Includes: Paid partly by commission/retainer	Weekly Rate of Pay = Total Income over 52 weeks / 52

Mixed Employment Example of Value of a Week

Example: Using the data in the example of Lowana above.

Weekly Hours	28.2628
Hourly Rate	\$44.32 per hour
Calculation: $\$44.32 \times 28.2628 = \$1,252.61$ value of a week	

Casual Employment Example of Value of a Week

Example: Using the data in the example of Renaldo above.

Weekly Hours	22.8654
Hourly Rate	\$33.58 per hour

Calculation: $\$33.58 \times 22.8654 = \767.82 value of a week

Example for Commission/Piece Work

Veronica is a sales agent and works on retainer and commission.

After 12 years she is retiring. Using the data below we will work out her weekly rate of pay.

Hours worked over the last 156 weeks	\$72,500
Hours worked over weeks 157 to 160	\$85,500

Calculations: $(\$72,500 + \$85,500) / 52 = \$158,000 / 52 = \$3,038.46$ per week

When Is Long Service Leave Being Taken Paid?

When an employee takes a period of Long Service Leave, it must be paid:

- In advance for the whole period of the leave; i.e. as a lump sum payment, or
- At the same time as the employer would have paid the employee if the employee had not taken the leave i.e. During the regular pay cycles that fall during the period of leave; or
- In any other way as agreed between the employer and employee.

If the payment is made in advance and, after payment is made, the amount of ordinary remuneration payable increases, the payment of the increase must be made on the employees return to work.

Refer to Section 8 of the Act

Payment on Termination

What Is Payable on Termination?

Refer to Section 5 in the Act

What is Payable on Termination	
Less than 7 years continuous service	No Entitlement
7 Years continuous service but less than 10 Years continuous service Section 5(3) & (4)	1.3 weeks for each year of completed service on termination for any reason except: - Contract of service is unlawfully terminated by the employee. E.g. not giving enough notice. - Termination by the employer that is due to serious or wilful misconduct Calculation of Entitlement is: Fully Completed Years of Continuous Service x 1.3
10 Years continuous service and beyond Section 5(1) & (3)	Paid on all terminations, and calculated on completed years of continuous service only

Example of Value of a Pro-rata Termination Calculation	
Quinn is resigning after 8 years, 4 months and 2 days of continuous service. She is full-time and has always been full-time. She has a weekly rate of \$3,350.00.	
Years of Service to Pay Out	8 years as this is on completed years only
Entitlement in Weeks	$8 \times 1.3 = 10.4$ weeks of entitlement
Value of LSL to payout	$\$3,350.00 \times 10.4 = \$34,840.00$

Example of Value 10 Years or More	
Using the data above for Quinn if she had been 12.3 years of continuous service.	
Years of Service to Pay Out	12 years as only paying on completed years
Entitlement in Weeks	$12 \times 1.3 = 15.6$ weeks of entitlement
Value of LSL to payout	$\$3,350.00 \times 15.6 = \$52,260.00$

When Should Long Service Leave Be Paid on Termination?

Refer to Section 8(4)(a)

“Immediately on termination.”

This typically means on termination date.

What Are the Record Keeping Requirements?

An employer must keep a record of the employee's:

- Date of commencement of service;
- Occupation or duties;
- Rate of pay;

Number of hours worked per week;

- Entitlement to long service leave;
- Any long service leave taken;
- Any payment made in lieu of long service leave;
- Manner of termination and any payment of long service leave on termination (if applicable).

Records must be kept throughout the employee's service and for at least three years after termination.

Refer to Section 10 of the Act.

PRACTICE ACTIVITY 5(A):

Kim is taking 2.5 weeks of her LSL.

Length of Continuous Service: 12.5 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Remuneration: \$1,950 per week

LSL already taken: 5 weeks

Calculate the value of Kim's LSL entitlement and the total LSL payment for 2.5 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	

Total Payable for 2.5 Weeks	
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PRACTICE ACTIVITY 5(B):

Tamika has been made redundant, calculate her LSL payout.

Length of Service: 11.76 years
Unpaid Parental Leave: 1 year taken 3 years ago
Employment Status: Part-time (25 hours per week) moved from FT to PT 2 years ago
Total Hours In the last 3 years: 2,600 (this is only for the last 2 years as no hours worked in the year 3 years ago)
Total Hours the year worked 4 years ago: 1,976
Current Ordinary Remuneration: \$28.45 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	
Ordinary Weekly Rate of Pay	
Total Payable for Termination	

PRACTICE ACTIVITY 5(C):

Kenji is taking 2 weeks of LSL. Work out the amount to pay him for the 2 weeks.

Length of Continuous Service: 10.58 years

LSL already taken: 3 weeks

Employment Status: Casual (always been casual)

Ordinary Remuneration: \$32.21 per hour (inclusive of casual loading)

Total Hours Worked in the last 156 weeks: 3,675

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Average Weekly Hours:	
Ordinary Weekly Rate of Pay	

Total Payable for Termination	
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SA - Matrix

Key Legislation

Legislation

Long Service Leave Act 1987 (SA) [SA Government](#) 

Absences That Do Not Count As Service

Typical Exclusions

Generally, absences on leave without pay, maternity leave and absences for industrial disputes and stand downs do not count as time worked.

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 13 weeks after 10 years
- Then 1.3 weeks for each year of service. Payment made on completed years only.

On Termination

Years of Continuous Service

Before 7 years – no entitlement

After 7 and before 10 years – pro-rata on completed years only except dismissal for serious or wilful misconduct or the employee unlawfully terminating employment e.g. not giving enough notice.

After 10 years – paid on completed years of service only

Timing of Payment on Termination

When Must LSL be Paid?

Day of termination

What Is the Rate of Pay?

Full Time: If full-time for at least 3 years, employee is paid at the ordinary rate of pay, not including shift penalties and overtime.

Commission-based employees: Use the average weekly wage over the past 12 months, excluding any period where the employee was on unpaid leave for the full week.

Part Time/Casual: If part-time or casual during the last 3 years, then the average hours over the last 3 years. When averaging hours for part-time/casual employees, disregard any periods where the employee was on unpaid leave for the week. (This includes overtime hours)

Cashing out Long Service Leave

Is Cash Out Allowed?

Yes

Key Conditions to Note

Section 5 (1a) of the Long Service Leave Act 1987 allows a written agreement to pay an employee in lieu of all or part of an accrued entitlement. The agreement must be kept with the employee's records.

Taking Long Service Leave in Advance

May Leave Be Taken Early?

Yes—by agreement

Casual Employees – Are They Entitled to LSL?

Yes

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer - breaks of 2 months or less do not break service. The break in between does not count as service.

Employer Notice Requirements to Take Leave



Timing Rules

The employer should give a worker at least 60 days' notice of the date from which leave is to be taken.

How Leave Can Be Taken

Rules

One continuous period or as agreed between the employer and employee.

Public Holidays Falling During LSL

Inclusive – means that the public holiday is counted as a day of LSL taken.

Effect on Leave

Inclusive

Working Elsewhere While on LSL

Restriction

No, it is an offence to work elsewhere without employer consent. Exceptions would be if an employee had 2 jobs. They could still work the hours at the 2nd job as long as they are not working the hours they are on paid leave for, at the job they are taking leave from.

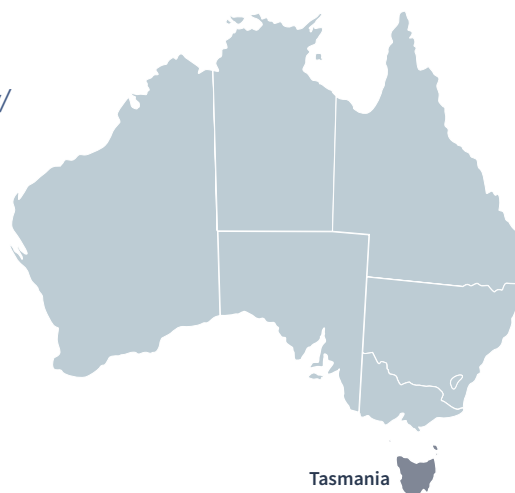
Resources

SafeWork SA - [Long service leave](#) | [SafeWork SA](#) 

STATE LEGISLATION TAS

Long Service Leave Act 1976 - <https://www.legislation.tas.gov.au/view/html/inforce/current/act-1976-095> ↗

Resources: <https://worksafe.tas.gov.au/topics/laws-and-compliance/long-service-leave> ↗



Long Service Leave TAS Entitlements

Who Is Entitled?

- Full time, Part time and Casual employees.
- Each employee will be entitled to the same number of weeks long service leave entitled, regardless of their current or previous status of employment.
- Refer to Section 2 of the Act.

What Is the Entitlement?

- 2 months (8.6667 weeks) after 10 years of continuous service, then
- A further 1 month (4.3333 weeks) for each additional 5 years continuous service.
- Refer to Section 8(2) of the Act

How to Work Out Accrual:

Years of Continuous Service x (8.6667 / 10)



PRO TIP

It is important to note that long service leave in TAS does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 10 years of continuous service.

Example 1: Naomi is leaving due to redundancy and has a pro-rata entitlement of 8.75 years continuous service.

Work out the entitlement.

Years of continuous Service	8.75
Entitlement in Weeks	$8.75 \times (8.6667/10) = 7.5834$ weeks

Example 2: Kovak has had 13.67 years of Continuous Service and has resigned. He has already taken 3 weeks of LSL. Work out the entitlement.

Years of continuous Service	13.67
Entitlement in Weeks	$13.67 \times (8.6667/10) = 11.8474$ weeks
Less Leave Taken	3
Entitlement Remaining	$11.8474 - 3 = 8.8474$ weeks

Continuous Service TAS

What Constitutes Continuous Service?

- This is covered in Section 5 of the Act
- Counting as Service means - accrual will continue
Example: Ferdinand has taken 6 week's annual leave in the past year his service will still accrue during this time off.
- Does not count as Service means - that accrual is paused, and this effectively pushes out the employee's entitlement date.
Example: Omayma has a start date of 1/7/2014, she has taken 1 year of unpaid parental leave. Without taking the years leave her entitlement would have been ten years from 1/7/2014 but this has now been pushed out by 1 year, so her entitlement date is now 1/7/2025.

TAS – Continuous Service	
Does Count	Does not Count
Paid Annual and Long Service Leave	Maternity Leave – paid and unpaid
Public Holidays paid and not worked	Any interruption arising from an industrial dispute, but only if the employee returns to work in accordance with a settlement of the dispute.
Any absence due to illness or injury that has been certified as necessary by a medical practitioner.	Any other absence approved by the employer.
Any interruption or termination of employment by the employer, if done to avoid annual leave or long service leave obligations.	Stood down due to slackness of trade and provided they are re-engaged within 6 months and within 14 days of an offer by an employer to return to work.
Any period of approved leave to attend meetings of either the Tasmanian State Training Authority or committees established under the Vocational and Education Training Act 1994.	Any other break in the employee's service brought about by the employer where the worker returns to work or is re-employed by the employer within two months.
Jury service or other prescribed attendance at court	
Transmission of business Example: The business is sold to another company and the employee is kept on doing the same or similar role.	
Apprentices who have entered into a contract of service with that employer within 3 months of completion of the apprenticeship. The apprenticeship period is then counted as service.	
Defence leave	

Casual/Part-time Workers?

- Casual and Part-time employees are continuously employed if they have been regularly working for 32 hours or more in each consecutive period of four weeks.
- An employee engaged before 21 December 1979 is considered to be continuously employed if the employee was regularly employed throughout any period. An employee in this situation is not required to regularly work a minimum of 32 hours in each four-week period.

Refer to S5(3) of the Act.

Example 1: Kerry-ann is a casual bar attendant at the local pub.

She has worked regularly 10 hours per week

- As the hours over a 4 week period total 40 hours, this is counted as service as it exceeds the 32 hour requirement.

Terminated and Re-employed?

Interruption to service or re-employment within 3 months after service is interrupted.

- Termination for any reason other than slackness of trade a 6 month limit applies to slackness of trade.

Time off between termination and re-hire will not count towards service.

Refer to S5(1)(g) and S5(2).

Example 1:

Mei-Lee has resigned as her mother is sick and resides overseas and she was unsure how long she would need to be away.

After 6 weeks Mei-Le's mother is better, and she can return to Australia.

Her employer had luckily not filled her role and was able to re-instate her employment.

- For Long Service Leave purposes her service will be recognised from her original start date but the 6 weeks in between will not count as service

Example 2:

Kai has been terminated due to poor performance by his employer, unfortunately the role was in admin and Kai is better suited to sales.

After 4 months the employer has a role in sales and remembers Kai had excellent sales skills and is re-hired.

- As the period is over 3 months, prior service is not recognised and service will start again.

Example 3:

Robin has been terminated due to redundancy.

The employer offers to hire her back in another role 2 months later.

- For Long Service Leave purposes, her prior service is recognised as she is returning within 3 months. However, the 2 months in between are not counted as service.

Workers Compensation?

Yes, Long Service Leave still accrues whilst an employee is on Workers Compensation, as it is an absence due to illness or injury certified by a medical practitioner.

This is covered in s5(1)(c) of the Act.

Transfer of Service/Sale of a Business?

The continuity of the worker's service is not considered to be broken if a business is sold in whole or in part and that business:

- Continues by the new owner as the same business, and
- The worker is employed in that business,

Service with any previous owner(s) of the business counts as service with the new owner.

When a business changes owner, copies of the record of all long service leave taken and accrued by workers must be transferred from previous employer to the new owner of the business.

Refer to S5(4)

Example: Edward works for Precious Pets.

Precious Pets has sold the business to Animal Kingdom.

Edward continues working with the new owner.

- His service is deemed to be continuous from his original start date with Precious Pets.

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

No, there is no provision under the Act for taking long service leave in advance of entitlement.

Can Leave Be Cashed Out?

Yes, this can be cashed out by agreement once entitlement is reached.

Refer to S10 of the Act

Are There Specified Amounts That Can Be Taken?

LSL can be taken in one continuous period or 2 periods as agreed by the employer and employee.

Refer to S12 of the Act

Can the Employer Enforce LSL to Be Taken?

No. If a mutual agreement cannot be made on when an employee can take LSL then WorkSafe will adjudicate and make the decision.

Refer to Section 12(1)

Are Public Holidays Included in the LSL Taken?

Long Service Leave does not include public holidays.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave

Refer to Section 12(9) of the Act.

Example:

If an employee takes a week's LSL from the 24th of Jan 2024 to the 30th of Jan 2024.

I.e. the 26th of January is not counted as a Long Service leave day.

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	PH		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Remuneration?

Definition of ordinary pay is found in Section 11 of the Act.

Include	Do Not Include
Salary and Wages	Overtime
Casual and Part-time Loading	Allowances for inconvenience, danger or hardship. E.g. Hot, cold or Dirt allowances
Allowances which are generally paid both for all hours worked and for all purposes of the award e.g. all-purpose allowances in an award.	Travel Allowances and payments – including Living Away From Home
Cash Value for Board and Lodging	Bonus Payments
Shift Penalties	Meal allowances
Commissions	

How Do You Calculate the Weekly Hours?

Employment Type	Hours to Pay
Full time	Normal Weekly Hours
Part time	Normal Weekly Hours
Casual	Average Weekly Hours worked over the last 12 months prior to taking leave/termination

Casual Example of Hours Calculation

Quang is a casual employee with 10 years of continuous service and wants to take long service leave. Work out the average hours for Quang.

Hours worked in the last 12 months	1,560
Average Weekly Hours	$1,560 / 52 = 30 \text{ hours}$

How Do You Calculate the Rate of Pay?

Employment Type	Rate to Pay
Full time & Part time	Base Weekly rate plus any other inclusions in the Ordinary Rate of pay table above. The rate day to day may vary depending on when leave is taken and what allowances/penalties if any apply on the day leave is taken
Casual	Base Hourly rate including casual loading plus any other inclusions in the Ordinary Rate of pay table above.
Employees paid Commission	Weekly Rate = Total of remuneration over the last 3 months / 13 This would include any retainer/base salary plus commission payments.

Full-time/Part-time Example

Connie is a part-time employee and is paid as follows for all days worked:

Base Rate: \$27.95 per hour

Industry Allowance: \$1.20 per hour

Total Rate of Pay = \$27.95 + \$1.20 = **\$29.15 per hour**

Casual Example

Bernadette is a casual employee and is paid as follows:

Base Rate: \$24.95 per hour

Casual Loading: 25%

Shift Penalty as always works afternoon shift: 12.5%

Total Rate of Pay = \$24.95 + (\$24.95x25%) + (\$24.95 x 12.5%)

\$24.95 + \$6.2375 + \$3.11875 = **\$34.31 per hour**

What Is the Value of a Week?

Employment Type	Value of a Week
Full time and Part time	Value of a Week = Normal Weekly Hours x Base Rate + any inclusions for shift penalties/allowances
Casual	Value of a Week = Average Weekly Hours over the last 12 months before taking leave x Base Rate including casual loading + any inclusions for shift penalties/allowances
Employees paid Commission	Weekly Rate = Total of remuneration over the last 3 months / 13 This would include any retainer/base salary plus commission payments

Full-time/Part-time Example of the Value of a Week

Rodney is a full-time employee with 11 years of continuous service and is retiring and has resigned. Rodney's weekly roster is below. He currently has a base weekly rate of pay of \$37.50 per hour. Hours worked after 6pm and before midnight have a 15% shift penalty. Hours worked on Saturday are paid at 150%

Breaks are taken 4 hours after starting work.

Day	Start	Finish	Break	Total Hours	Amount Paid
Monday	9.00am	5.00pm	0.5	7.5	\$37.50 x 7.5 = \$281.25
Tuesday					
Wednesday	9.00am	5.00pm	0.5	7.5	\$37.50 x 7.5 = \$281.25
Thursday	12.00pm	8.00pm	0.5	7.5	(\$37.50 x 7.5) + (\$37.50 x 2 x 15%) = \$281.25 + \$11.25 = \$292.50
Friday	12.00pm	8.00pm	0.5	7.5	(\$37.50 x 7.5) + (\$37.50 x 2 x 15%) = \$281.25 + \$11.25 = \$292.50
Saturday	10.00am	6.00pm	0.5	7.5	\$37.50 x 7.5 x 150% = \$421.88
Sunday					

Full-time/Part-time Example of the Value of a Week

Total Weekly Rate	$\$281.25 + \$281.25 + \$292.50 + \$292.50 + \$421.88 =$ \$1,569.38
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Casual Calculation Example

Quang has average weekly hours of 30 hours as calculated previously.

His rate of pay is \$33.12 per hour including casual loading.

Calculation: $\$33.12 \times 30 =$ **\$993.60 per week**

Commission Calculation Example

Metuk is a real estate agent and works on retainer plus commission.

Use the below data to calculate the weekly rate of pay

Retainer paid in the last 3 months: \$20,000

Commission earned in the last 3 months is \$32,500.00

Calculation: $(\$20,000 + \$32,500) / 13 = \$52,500 / 13 =$ **\$4,038.46 per week**

When Is Long Service Leave Being Taken Paid?

- In full when the employee commences leave or
- Pay it in the pay period where the leave occurs or
- In any other way as agreed by the employer and employee

Refer to S 12(6)

Payment on Termination

What Is Payable on Termination?

Refer to S8

What is Payable on Termination	
Before 7 years	No Entitlement
7 Years but less than 10 Years Section 8 (2) & (3)	Pro- Rata of 10 years for Special Reasons
	• Attains retirement age (65 for men and 60 for women) • Termination by the employer other than serious and wilful misconduct • Illness • Incapacity • Domestic or other pressing necessity • Death
10 Years and After	All accrued leave

What Is Meant by Illness, Incapacity or Domestic or Pressing Necessity?

Illness and Incapacity – there is no definition supplied in the Act, this would be determined based on legal advice or case law.

Questions to consider are:

Did the illness or injury necessitate termination?

Was the evidence sufficient that had it not been illness or incapacity that the termination would not have occurred?

Domestic and Pressing Necessity - there is no definition supplied in the Act, the test is usually a subjective one and a court would view each case on its own merit and may refer to previous case law (examples below).

Case Examples of Domestic and Pressing Necessity

- A pregnant employee leaving work to take on the responsibility of “home duties” (Donnelly v South Maitland Railway Pty Ltd 1964 AILR 450)
- An employee forced to leave work to take care of a sick wife or take care of children (Franks v Kembla Equipment Co Pty Ltd 1969 AILR 55)
- Changing jobs to lessen travel expenses when in difficult financial situation (Crennan v Oliver Furniture Pty Ltd (1962) 17 IIB 799)
- The taking of a higher paid job to cope with increasing financial commitments (Eyles v Cook (1967) 13 FLR 42)
- Leaving a job because the night shift has become a strain on the employee’s family relationships and repeated requests for a transfer to the day shift had not been met (Williams v MacArthur Press (Sales) Pty Ltd 1990 AILR 137(14))
- Leaving employment because the employer was relocating and the employee would have been required to drive two hours each way to and from work, and the employee was not prepared to move houses or to require her husband to change jobs (Kershaw v Electricity Commission of NSW 1991 AILR 91(7)).

When Should Long Service Leave Be Paid on Termination?

S12(4) ...the employee shall be deemed to have commenced to take his leave on the date of the termination.

This means pay on the termination date.

What Are the Record Keeping Requirements?

As per S7 of the Long Service Leave Regulations 2017.

- Employee's name, address & position;
- Date employment commenced;
- Details of any additional period of employment to be served due to an absence or interruption that does not count towards continuous employment;
- End date of the qualifying period;
- Details of leave taken (start & finish dates, number of dates taken, amount paid and method of payment);
- Details of termination of employment (date, reason and rate of ordinary pay at the date of termination).

The legislation stipulates no time limit on how long these records must be kept, and they must therefore be kept in perpetuity.

PRACTICE ACTIVITY 6(A):

Toni is going on a trip to South America and wants to use 5 weeks of her LSL.

Length of Continuous Service: 12.65 years

Employment Status: Full-time 38 hours per week

Shift Penalties: 1 day a week (7.6 hours) is paid at 125%

Base Rate: \$42.00 per hour

Calculate the value of Toni's LSL entitlement and the total LSL payment for 5 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	
Penalty Rate Pay	
Total Weekly Rate of Pay	

Total Payable for 5 weeks	
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PRACTICE ACTIVITY 6(B):

Veronica has been made redundant, calculate her LSL payout.

Length of Service: 8.9 years

Unpaid Parental Leave: 1 year

Employment Status: Part-time (25 hours per week) She has always been part-time on these hours and has no additional allowances or penalties payable

Base Rate: \$39.50 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	
Total Payable for Termination	

PRACTICE ACTIVITY 6(C):

Helen has found permanent employment with another company and has resigned. What is her LSL payout she has previously taken 4 weeks LSL.

Length of Continuous Service: 13 years

Employment Status: Casual

Ordinary Remuneration: \$40 per hour (inclusive of casual loading)

Total Hours worked in the last 12 months: 1,626

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Average Weekly Hours:	
Ordinary Weekly Rate of Pay	

Total Payable for Termination	
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TAS - Matrix

Key Legislation

Legislation

Long Service Leave Act 1976 (Tas) [TAS Government](#) ⇨

Absences That Do Not Count As Service

Typical Exclusions

Generally, absences on leave without pay, maternity leave and absences due to industrial disputation and stand-downs.

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 8.6667 weeks after 10 years
- Then 4.3333 weeks for each 5 years thereafter

On Termination

Years of Continuous Service

Before 7 years – no entitlement

After 7 and before 10 years, pro rata of 10 years if:

- Reaches retirement age (60 for women and 65 for men)
- Death
- Termination by the employer for any reason other than serious and wilful misconduct
- Illness, incapacity, domestic or pressing necessity

After 10 years, pro rata based on the full period of continuous service

Timing of Payment on Termination

When Must LSL be Paid?

Day of termination

What Is the Rate of Pay?

Full Time: Rate of pay that the employee would receive if the employee remained at work during that period - including shift penalties/loadings and all-purpose allowances but not including overtime, bonus payments or meal allowances.

Commission employees: Average weekly rate over the last 3 months..

Casual: Average hours over the last 12 months x current rate including casual loading immediately prior to the commencement of leave.

Cashing out Long Service Leave

Is Cash Out Allowed?

Yes

Key Conditions to Note

By agreement once entitlement is reached

Taking Long Service Leave in Advance

May Leave Be Taken Early?

No – leave becomes available at 10 years; advance leave is not permitted.

Casual Employees – Are They Entitled to LSL?

Yes – if they have worked 32 hours or more in each consecutive period of 4 weeks. This also applies to part-time employees. This does not apply to employees who started before 21/12/1979 if they were regularly employed throughout.

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations for any reason other than slackness of trade - breaks of 3 months or less do not break service. The break in between does not count as service.

6 month limit applies for stand down due to slackness of trade.

Employer Notice Requirements to Take Leave

Timing Rules

Employers cannot direct an employee to take leave. If an agreement can't be reached, then they can apply to WorkSafe Tasmania to adjudicate.

How Leave Can Be Taken

Rules

One continuous period or as agreed between the employer and employee.

Public Holidays Falling During LSL

Exclusive – means that the public holiday is paid in addition to LSL and does not count as a day of LSL taken.

Effect on Leave

Exclusive

Working Elsewhere While on LSL

Restriction

Silent

Resources

WorkSafe Tasmania - *Long service leave* -

STATE LEGISLATION ACT

Long Service Leave Act 1976 (ACT) - <https://www.legislation.act.gov.au/a/1976-27/default.asp> ↗

Resources: <https://www.worksafe.act.gov.au/laws-and-compliance/long-service-leave/guidance-material> ↗



Long Service Leave ACT Entitlements

Who Is Entitled?

- Refer to Definition of employee in the Dictionary of the Act
- Full time, Part time and Casual employees.
- Each employee will be entitled to the same number of weeks long service leave entitled, regardless of their current or previous status of employment.

What Is the Long Service Leave Entitlement?

All employees are entitled to 6.0667 weeks after 7 years of continuous service.

For each subsequent year of continuous service, the employee accrues a further 1/5 of a month of long service leave (Refer to Section 4 of the Act).

Formula to work out accrual is follows:

$$\frac{(1/5 \times \text{period of continuous service in years}) \times 52}{12} = \text{Amount of leave in weeks}$$



PRO TIP

It is important to note that long service leave in ACT does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 7 years of continuous service.

Example 1: Virginia has had 10 years of Continuous Service and has resigned. Her accrued leave to payout is 8.6667 weeks as follows:

$$((1/5 \times 10) / 12) \times 52$$

$$(2/12) \times 52 = 8.6667$$

$$10 \times (8.6667/10) = 8.6667$$

$$10 \times (6.0667/7) = 8.6667$$

Example 2: Michael is leaving due to redundancy and has 8 years continuous service. He is entitled to 6.9333 weeks as follows:

$$((1/5 \times 10) / 12) \times 52$$

$$(1.6/12) \times 52 = 6.9333$$

$$8 \times (8.6667/10) = 6.9333$$

$$8 \times (6.0667/7) = 6.9333$$

Continuous Service ACT

What Constitutes Continuous Service?

- This is covered in Section 2G & 10A of the Act
- Counting as Service means - accrual will continue
Example: Melanie has taken 3 week's annual leave in the past year her service will still accrue during this time off
- Does not count as Service means that accrual is paused and this effectively pushes out the employee's entitlement date.
Example: James has a start date of 1/7/2014, he has taken 2 years of unpaid leave. Without taking the leave his entitlement would have been seven years from 1/7/2014 but this has now been pushed out by 2 years, so his entitlement date is now 1/7/2023.

Continuous Service	
Does Count	Does not Count
Paid Annual Leave	Leave taken due to Industrial Action. Example: An employee who is part of strike action for 1 week would not have this service counted towards Long Service Leave
Paid Long Service Leave	Stood down due to slackness of trade and is re-employed within 6 months of the stand down. Example: An employee is stood down due to the employer not having work available for 3 months. This 3 month period does not count towards service.
Leave due to illness or injury (paid or unpaid) up to 2 weeks in any one year.	Any other period of absence with the employers leave. Example: Unpaid leave, Company Paid Parental Leave, Government Paid Parental Leave
An interruption or ending of service with intent to avoid Long Service Leave obligations	Leave due to illness or injury (paid or unpaid) exceeding 2 weeks in any one year.
Apprenticeships where the employee commences service with the same employer after completing the apprenticeship within 12 months. Example: Walid's apprenticeship with ABC Kitchen's ceases on 30/6/24. He comes back as a qualified trades person on 1/10/24 as one of the other tradies has retired. As Walid is re-employed within 12 months his prior service as an apprentice is recognised.	Interruption to service or re-employment within 2 months after service is interrupted. This applies if the employer or employee instigated the termination. Example: Sara resigned and left employment on 25 May 2025. Sara didn't like her new job and asked for her old job back. She was re-employed by her old employer on 5 May 2025. Sara's previous service period is recognised.
Service in the Defence Force (not Full time continuous) where the employee was employed immediately before Defence Service began	
Service outside the ACT if temporary and normally service would be continuous if working in the ACT. Example: Evan is required to work at a client's premises in NSW for 6 weeks as part of a contract. This would be considered to count as service	
Absence due to workplace injury (including Worker Compensation) from 9 June 2023	

Seasonal Workers?

Refer to Section 2G(3)

- An interruption of an employee's service of longer than 2 months does not break the continuity of service if the interruption is caused by the seasonal nature of the work.
- The period in between periods of seasonal work does not count as service as per Section 2G(5)

Example: Wesley is a seasonal worker and often has no work during the off season, this is often a period of over 2 months.

- This time off will not break service but will not count towards service.

Terminated and Re-employed?

Refer to Section 2G(2)(e)

- Interruption to service or re-employment within 2 months after service is interrupted. This applies if the employer or employee instigated the termination. Prior service is recognised.
- The time in between does not count towards service

Example 1:

Eva was made redundant. After 6 weeks the firm has a new role for Eva and she is re-employed.

- For Long Service Leave purposes, her prior service will be recognised as she was terminated by the employer and re-hired within 2 months. The 6 week gap won't count towards service.

Example 2:

Ken has resigned to go to another job. After 4 weeks he asks to come back to his old employer, and the employer agrees to re-hire him.

- The employer does need to recognise the prior service as the gap is under 2 months.

Example 3:

Joel has been terminated due to redundancy.

The employer offers to hire him back in another role 5 months later.

- For Long Service Leave purposes, his prior service is not recognised as he is returning after 2 months

Workers Compensation?

Prior to 9 June 2023

- Workers compensation leave taken, did **not** count as service once the employee exceeded 2 weeks of leave per year due to illness or injury.

From 9 June 2023 (This is due to a change in s46 of the Workers Compensation Act 1951)

- Workers compensation will count as service, provided that the employee would have otherwise been entitled to accrue Long Service Leave if they had not been absent due to their injury or illness

Transfer of Service/Sale of a Business?

Covered in Section 10A & 11

Where a business is sold, transferred or assigned and an employee remains with the business, the new employer becomes responsible for the employee's long service leave entitlement.

- Period of employment with the old employer effectively transfers to the new employer, this means the new employer has to recognise prior service with the old employer
- Transfers to associated companies must also recognise prior service

Example: Jamala works for CheesZ Burgers.

CheesZ Burgers has sold the business to Best Burgers.

Jamala continues working with the new owner.

- Her service is deemed to be continuous from her original start date with CheesZ Burgers.

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

- There are no provisions in the Act that allow for Long Service Leave to be taken before an employee becomes entitled to it.

Can Leave Be Cashed Out?

Yes, it can be cashed out by agreement after entitlement is reached.

Even though this is not explicitly covered WorkSafe ACT has advised the following:

“The purpose of Long Service Leave is to allow the employee to take a break from work, however the Act enables the employer and employee to agree on how the employee will be paid. You can refer to Section 8 (c). Section 8 (c) says “if the employer and the employee agree – in another way.”

The value of a cash out of Long Service Leave is calculated the in the same manner as when an employee is taking a period of Long Service Leave.



PRO TIP

Best practice, would be to have the agreement:

- In writing
- Clearly outlining the amount of leave being cashed out in weeks
- What the remaining leave balance will be in weeks
- You may want to consider having this governed by a company policy, outlining terms such as minimum/maximum amounts that can be cashed out, and how often cash out can occur.

Are There Specified Amounts That Can Be Taken?

Leave should be granted as soon as practicable after entitlement is reached or at another time by agreement.

Refer to Section 6(1) of the Act

Can the Employer Enforce LSL to Be Taken?

Yes. The employer must give at least 60 days written notice of the requirement to take the leave.

Refer to Section 6(2)

The notice would be :

- In writing
- With at least 60 days' notice before the leave commences.
- Specify the amount of leave being taken and the leave period

Are Public Holidays Included in the LSL Taken?

Long Service Leave does not include public holidays.

The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave

This means LSL is not 'deducted' from the LSL balance on a public holiday.

Refer to Section 9 of the Act

Example:

If an employee takes a week’s LSL from the 24th of Jan 2024 to the 30th of Jan 2024.
The Public holiday is **Exclusive** = This means the public holiday is not counted as a day of Long Service Leave
i.e. the 26th of January is not counted as an LSL day).

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	PH		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Pay?

Definition of ordinary pay is found in Section 7(1)

Ordinary Pay

"‘Ordinary pay’ payment for long service leave shall be made at the rate of an amount equivalent to the **ordinary remuneration** the employee would have received in respect of the period of leave if he or she had not taken the leave."

Include	Do Not Include
Salary and Wages	Overtime
Casual Loading	Penalty Rates (e.g. night shift, weekend penalties)
Allowances for Skill and qualifications e.g. First Aid, All Purpose Allowances	Allowances which, under an award or agreement, are not to be taken into account in determining a rate of remuneration in respect of overtime (meaning, include all-purpose allowances, and do not include allowances that are not paid for all purposes)
Allowances for Board and Lodging	
Bonus, performance pay or incentive scheme, that are usually paid with salary and wages e.g. Bonuses paid for achieving a particular KPI	
Commissions	
Where the employee is provided with board and lodging by his or her employer, an amount equal to the value of that board and lodging	

How Do You Calculate the Weekly Hours?

Employment Type	Hours to Pay
Full time	Normal Weekly Hours
Part time or casual – section 7(2)	
- Always been part-time or casual - Previously part-time and now casual or previously casual and now part-time - Currently part-time or casual for more than 2 years and was previously full-time before entitlement	Average Weekly Hours = Total Hours Worked before the entitlement date in the last 12 months / 52 * Include Overtime hours worked N.B. – The 12 months is prior to when they last reached an entitlement to LSL not the date they are taking leave.
Part time or casual for less than 2 years and was previously full-time before entitlement – section 7(3)	Value of a Week = Total Salary and Wages in the Last 5 years before entitlement / 5 / 52 N.B. – The Act does not provide a weekly hours calculation in this case, just a monetary calculation.
Part-time or casual – when terminating – Section 11 D	Weekly Hours = Total Hours Worked before in the last 12 months before termination / 52

Example of weekly hours for a casual/part-time using the 12 month rule:
Amanda has worked as a casual home care employee for the past 10 years.
She was previously full-time but moved to casual 3 years ago.
No LSL has previously been taken

Hours over the last 12 months before her 10 years entitlement was reached	837
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Calculation: $837/52 = 16.10$ hours per week

N.B. – The answer would be the same if Amanda was part-time instead of casual

Example of weekly hours for a casual/part-time using the 5 year rule:
Using the example of Amanda above, what if she had changed to casual only 18 months ago?

Salaries and Wages over the last 5 Years

Year	Salaries and Wages
2021	\$23,798.00
2022	\$24,254.00
2023	\$24,992.00
2024	\$23,103.00
2025	\$26,784.00

Hours in Each Period

Total Salary and Wages in the last 5 years	\$122,931.00
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Calculations: $\$122,931.00 / 5 / 52 = \472.81 per week

N.B. – The answer would be the same if Amanda was part-time instead of casual

What Is the Value of a Week?

Employment Type	Value of a Week
Full time	Value of a Week = Ordinary Weekly Remuneration
Part-time or casual – section 7(2)	
- Always been part-time or casual - Previously part-time and now casual or previously casual and now part-time Currently part-time or casual for more than 2 years and was previously full-time before entitlement	Value of a Week = Average Weekly Hours over 12 months before reaching entitlement x Ordinary Rate of Pay
Part time or casual for less than 2 years and was previously full-time before entitlement – section 7(3)	Value of a Week = Total Salary and Wages in the Last 5 years before entitlement / 5 / 52 N.B. – The Act does not provide a weekly hours calculation in this case, just a monetary calculation.
Commission – either paid wholly by commission or partly by salary/wages and commission	Value of a Week = Total Salary and Wages & Commission for the last year / 52

Casual/Part-time Example of Value of a Week for using the 12 month rule

Example: Using the data in the example of Amanda above.

Weekly Hours	16.10
Hourly Rate (including casual loading)	\$26 per hour
Calculation: $\$26 \times 16.10 = \418.60 value of a week	

Commission Example of Value of a Week

Example: Georgiana is a real estate agent and received retainer and commission.

Commission in the Last 12 months	\$70,000.00
Retainer paid in the last 12 months	\$65,000.00
Calculation: $(\$70,000.00 + \$65,000.00) / 52 = \$135,000.00 / 52 = \$2,596.15$ Value of a Week	

When Is Long Service Leave Being Taken Paid?

When an employee takes a period of Long Service Leave, it must be paid:

- In advance for the whole period of the leave; i.e. as a lump sum payment, or
- At the same time as the employer would have paid the employee if the employee had not taken the leave i.e. During the regular pay cycles that fall during the period of leave; or
- In any other way as agreed between the employer and employee.

If the payment is made in advance and, after payment is made, the amount of ordinary remuneration payable increases, the payment of the increase must be made on the employees return to work.

Refer to Section 8 of the Act

Payment on Termination

What Is Payable on Termination?

Refer to Section 3, 11A, 11C & 11D

What is Payable on Termination	
Less than 5 years of continuous service	No Entitlement
5 Years continuous service, but less than 7 Years continuous service Section 11A, C & D	Pro- Rata of years and months for Special Reasons Reaching Minimum Retirement Age as per an Award or 65 years of age • Illness • Incapacity • Death, • Domestic or Pressing Necessity • Termination by the employer that is not due to serious or wilful misconduct Calculation of Entitlement is: Years of Continuous Service + Months of continuous Service x (8.6667/10)
7 Years of continuous service and beyond Section 3	Paid on all terminations, and calculated on completed years of continuous service only.

Example of Value of a Pro-rata Termination Calculation

Trudy is made redundant after 6 years, 4 months and 2 days of continuous service

She is full-time and has always been full-time

She has a weekly rate of \$2,836.95.

Years of Service to Pay Out	6 years, 4 months
Entitlement in Weeks	Convert Months to a decimal in years $4/12 = 0.33$ years Add this to the whole years $6 + 0.33 = 6.33$ years of continuous service $6.33 \times (8.6667/10) = 5.486$ weeks of entitlement
Value of LSL to payout	$\$2,836.95 \times 5.486 = \$15,563.51$

Example of Value of a Completed Years Calculation

Using the data above for Trudy if she had been 9.5 years of continuous service.

Years of Service to Pay Out	9 years as only paying on completed years
Entitlement in Weeks	$9 \times (8.6667/10) = 7.8$ weeks of entitlement
Value of LSL to payout	$\$2,836.95 \times 7.8 = \$22,128.21$

When Should Long Service Leave Be Paid on Termination?

Refer to Section 11A(4)(b)

Within 90 days after the day the persons employment ceases

What Are the Record Keeping Requirements?

For each employee an employer must keep the below records for at least 7 years after the employee's service ends. This means that all records must be held from the employee's commencement date until 7 years after the employee's service ends. If the employee's service ends on the employee's death, the records must be kept for 7 years after the day all amounts owing to the employee's legal personal representative are paid

The records to be kept are:

- The name, occupation and classification of the employee;
- Whether the employee is full-time, part-time or casual;
- The employee's ordinary remuneration, including the base rate of pay and any loading payable to the employee, and the purpose of the loading;
- The number of hours the employee works each week;
- The date when the employee starts as an employee;
- Any annual leave the employee takes;
- The employee's entitlement to long service leave;
- Long service leave granted, or payment instead of leave, made to the employee;
- If the person ceases to be employed by the employer—the date when, and reason, the employee ceases to be employed;
- If overtime may be paid to the employee under an award or agreement—
 - The number of hours the employee works each day; and
 - When the employee starts and stops work;
- The employee's date of birth; and
- The name of each award or agreement under which the employee has entitlements.

Refer to Section 12 of the Act

PRACTICE ACTIVITY 7(A):

Tina is taking 4 weeks of her LSL.

Length of Continuous Service: 11.5 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Remuneration: \$3,680 per week

Calculate the value of Tina's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	

Total Payable for 4 Weeks	
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PRACTICE ACTIVITY 7(B):

Narelle has been made redundant, calculate her LSL payout.

Length of Service: 13.1 years

Unpaid Parental Leave: 2 years

Employment Status: Part-time (30.4 hours per week) moved from FT to PT 3 years ago

Average Weekly Hours in the last 12 months: 31.67 hours per week

Current Ordinary Remuneration: \$45 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
STEP 3: VALUE OF WEEK	
Average Weekly Hours	
Ordinary Weekly Rate of Pay	
Total Payable for Termination	

PRACTICE ACTIVITY 7(C):

Connor has resigned. Work out the amount to pay him on termination.

Length of Continuous Service: 8.2 years

He has previously taken 1 week LSL

Employment Status: Casual (always been casual)

Ordinary Remuneration: \$33.50 per hour (inclusive of casual loading)

Total Hours Worked in the last 12 months: 1,170

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	
Ordinary Weekly Rate of Pay	
Total Payable	

ACT - Matrix

Key Legislation

Legislation

Long Service Leave Act 1976 (ACT) [ACT Government](#) 

Absences That Do Not Count As Service

Typical Exclusions

- Unpaid Parental Leave,
- Any other leave granted by the employer except for annual leave, LSL and up to 14 days' absence per year on account of illness or injury (includes workers' compensation before 9th June 2023). Worker's compensation from 9th June 2023 is included in service.
- Absence due to slackness of trade
- Absence due to an industrial dispute

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 6.0667 weeks after 7 years,
- Then 0.8667 weeks per completed year.

On Termination

Years of Continuous Service

Before 5 years – no entitlement

After 5 and before 7 years, pro-rata of 7 years on completed years and months if:

- Illness, incapacity, domestic or pressing necessity.
- Death
- Reaches retirement age (based on retirement age in an award or agreement or 65 years)
- Termination by the employer for any reason other than serious and wilful misconduct

After 7 years – paid on completed years of service only

Timing of Payment on Termination

When Must LSL be Paid?

Within 90 days of termination

What Is the Rate of Pay?

Full Time: Ordinary remuneration the employee would have received if leave had not been taken. Rate includes allowances payable for skills, qualifications, board and lodging, bonuses, but not overtime or penalties.

Part Time/Casual: Less than 2 years and was previously full-time before entitlement: payment is calculated as the average over the prior five years to becoming entitled. More than 2 years and was previously full-time before entitlement, always been part-time or casual, or was part-time/casual and now moved to being part-time or casual: The ordinary remuneration shall be calculated by multiplying the average number of hours (including overtime hours) worked each week by the employee during the period of 12 months immediately on the day on which the employee became entitled to the leave by the ordinary remuneration of the employee.

Commission: If the employee is remunerated wholly or partly by commission, the rate payable is the average of all salaries/wages/commissions over the last 12 months.

Cashing out Long Service Leave

Is Cash Out Allowed?

Silent

Key Conditions to Note?

May be cashed out if agreed in writing and once entitlement has been reached.

Taking Long Service Leave in Advance

May Leave Be Taken Early?



No – leave may be taken only once the 7-year entitlement accrues.

Casual Employees – Are They Entitled to LSL?

Yes

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer or employee - breaks of 2 months or less do not break service. The break in between does not count as service.

6 month limit applies for standdown due to slackness of trade.

Employer Notice Requirements to Take Leave

Timing Rules

Employer must provide 60 days written notice when requiring the employee to take the leave.

How Leave Can Be Taken

Rules

Leave should be granted as soon as practicable after entitlement is reached or at another time by agreement.

Public Holidays Falling During LSL

Exclusive – means that the public holiday is paid in addition to LSL and does not count as a day of LSL taken.

Effect on Leave

Exclusive

Working Elsewhere While on LSL

Restriction

Silent

Resources

WorkSafe ACT - [LSL Guidance material - WorkSafe ACT](#) -

STATE LEGISLATION NT

Long Service Leave Act 1981 (NT) - <https://legislation.nt.gov.au/Legislation/LONG-SERVICE-LEAVE-ACT-1981> 

Resources: <https://nt.gov.au/employ/for-employees-in-nt/holidays-and-leave/long-service-leave> 



Long Service Leave NT Entitlements

Who Is Entitled?

- Full time, Part time and Casual employees.
- Each employee will be entitled to the same number of weeks long service leave entitled, regardless of their current or previous status of employment.

What Is the Long Service Leave Entitlement?

All employees are entitled to 13 weeks after 10 years of continuous service.

Employees are then entitled to 1.3 weeks for each year of completed service at each subsequent 5-year period thereafter.

(Refer to Section 8 of the Act).

Formula to work out accrual follows:

$$\text{Years of continuous Service} \times (13/10) = \text{Amount of leave in weeks}$$



PRO TIP

It is important to note that long service leave in NT does not accrue the same way annual and personal leave accrues.

Instead, employees become entitled to take fixed amounts once they hit certain milestones like 10 years of continuous service.

Example 1: Debbie has had 10 years of Continuous Service and has resigned. Her accrued leave to payout is 13 weeks as follows:

$$10 \times (13/10) = 13$$

Example 2: Matthew is leaving due to redundancy and has 9.2 years continuous service. He is entitled to 11.7 weeks as follows:

$$9 \times (13/10) = 11.7$$

Continuous Service NT

What Constitutes Continuous Service?

- This is covered in Section 12 of the Act
- Counting as Service means - accrual will continue.
Example: Deepa has taken 2 week's annual leave in the past year her service will still accrue during this time off.
- Does not count as Service means that accrual is paused and this effectively pushes out the employee's entitlement date.
Example: Ellanor has a start date of 1/7/2014, she has taken 1 year of unpaid parental leave. Without taking the leave her entitlement would have been ten years from 1/7/2014 but this has now been pushed out by 1 year, so her entitlement date is now 1/7/2025.

Continuous Service	
Does Count	Does not Count
Any Paid Leave	Any Unpaid Leave
An interruption or ending of service with intent to avoid Long Service Leave obligations	Workers Compensation Leave
Defence Services Leave e.g. Army Reserve, National Service, Citizen Forces or Civil Construction Corp	Stood down due to slackness of trade and is re-employed.
	Leave taken due to Industrial disputes.
	Any other break in the employee's service brought about by the employer where the worker returns to work or is re-employed by the employer within two months.
	Apprenticeships where the employee commences service with the same employer after completing the apprenticeship within 12 months. The break in between does not count as service.

Casual Workers?

- Has no special rules for casuals when calculating continuity of service.

Terminated and Re-employed?

Refer to Section 12(4)(e)

- If terminated for any reason and re-employed within 2 months prior service is recognised
- The time in between does not count towards service

Example 1: Callum was made redundant. After 3 months the firm has a new role for Callum and he is re-employed

- For Long Service Leave purposes, his prior service will not be recognised as he was re-hired outside the 2 month period.

Example 2: Femi has resigned to go to another job. After 4 weeks he asks to come back to his old employer, and the employer agrees to re-hire him.

- Prior service is recognised as the gap is under 2 months.
- The 4 weeks in between does not count as service

Example 3: Karina has been terminated due to redundancy.

The employer offers to hire her back in another role 1 month later.

- For Long Service Leave purposes, her prior service is recognised as she is returning after 1 month.
- The 1 month in between does not count as service

Workers Compensation?

No, Long Service will not accrue while on workers compensation, as the leave is not deemed to be granted with pay by the employer.

Refer to 12(5).

Transfer of Service/Sale of a Business?

Covered in Section 12(6) to (9)

Where a business is sold, transferred or assigned and an employee remains with the business, the new employer becomes responsible for the employee's long service leave entitlement.

- Period of employment with the old employer effectively transfers to the new employer, this means the new employer has to recognise prior service with the old employer
- Transfers to associated companies must also recognise prior service

Example: June works for Top End Tours.

Top End Tours has sold the business to Outback Adventures.

June continues working with the new owner.

- Her service is deemed to be continuous from her original start date with Top End Tours

What Are the Rules Around Taking LSL?

Can Leave Be Taken Before Entitlement (in Advance)?

No, Leave can only be accessed once they become entitled.

Refer to Section 8

Can Leave Be Cashed Out?

No, cash out of LSL is not allowed in the NT

Refer to S10(4)

Are There Specified Amounts That Can Be Taken?

- Taken in one continuous period, or
- If agreed between the employer and employee, can be taken in no more than 3 periods of at least 4 weeks at a time.

Refer to S8(6)(b)

Can the Employer Direct an Employee to Take Leave?

Yes. The employer must give at least 2 months written notice of the requirement to take the leave.

Refer to Section 8(7)

Are Public Holidays Included in the LSL Taken?

Long Service Leave includes public holidays.

The Public holiday is **Inclusive** = This means the public holiday are counted as a day of Long Service Leave

This means LSL is 'deducted' from the LSL balance on a public holiday.

Refer to Section 9 of the Act

Example:

If an employee takes a week's LSL from the 24th of Jan 2024 to the 30th of Jan 2024.

The Public holiday is **Inclusive** = This means the public holiday is counted as a day of Long Service Leave i.e. the 26th of January is counted as an LSL day)

Jan-24						
Mon	Tue	Wed	Thu	Fri	Sat	Sun
22	23	24	25	26	27	28
		LSL	LSL	LSL		
29	30					
LSL	LSL					

How to Pay LSL?

What Is Included in Ordinary Pay?

Definition of ordinary pay is found in Section 11

Include	Do Not Include
Salary and Wages (including any above award payments)	Overtime
Casual Loading	Penalty Rates
Industry, all-purpose, leading hand, skill or qualification allowances	District, Climate or Site Allowances
Any amounts payable to the employee under a bonus or incentive scheme, being amounts that are usually paid to the employee with his or her pay	
Where the employee is provided with free board and lodging by his or her employer, an amount equal to the value of that board and lodging fixed by the agreement or if not fixed then \$15 per week for board and \$5 per week for lodging	

How Do You Calculate the Weekly Hours?

Refer to S11

Employment Type	Hours to Pay
Full-time & Part-time fixed hours during the whole of employment	Current Weekly Hours
Full-time & Part-time (hours have varied) and casuals or where Rate of Pay Varies, e.g. due to bonus, allowance or incentive scheme payments	Hours Worked per Week (HWW) = The total ordinary hours for each year of completed service / the number of weeks in each completed year of continuous service N.B. - Exclude overtime hours from this calculation

Example Hours have Varied	
Regina has worked as a part-time employee for the past 3.5 years. She was previously worked full-time for 7 years but moved to part-time 3.5 years ago. Her Weekly Hours are calculated as follows:	
Total Hours worked over each year of continuous employment (excluding overtime hours)	17,125.316
Total Weeks of Employment for each year of continuous service	10 x 52 = 520 The extra 0.5 years is ignored as the calculation is on each completed year of service not part years
Calculation: $17,125.316 / 520 = 32.9333$ hours per week	

What Is the Value of a Week?

Employment Type	Value of a Week
Full time & Part time fixed hours during whole of employment	Value of a Week = Current Hourly Rate (RP) x Current Ordinary Hours (HWW)
Full time & Part time (hours have varied) and casuals	Value of a Week = Current Ordinary Rate of Pay (RP) x (The total ordinary hours for each year of completed service / the number of weeks in each completed year of continuous service) (HWW)
Rate of Pay Varies e.g. due to bonus, allowance or incentive scheme payments	Value of a Week = (Total Income over the last 12 months / Total ordinary hours over the last 12 months (RP)) x (The total ordinary hours for each year of completed service / the number of weeks in each completed year of continuous service) (HWW)

** This is then multiplied by 1.3 to get the Total amount payable for a completed year of service, then multiplied by the number of years of continuous service or more simply 1.3 x years of continuous service

Example Hours Varied of Value of a Week	
Example: Using the data in the example of Regina above. She has 10 years of service and resigns	
Weekly Hours	32.9333
Hourly Rate	\$34.51 per hour
Calculation: $\$34.51 \times 32.9333 = \$1,136.53$ value of a week	
Weeks to payout: $10 \times 1.3 = 13$ weeks	
Amount to Pay: $\$1,136.53 \times 13 = \$14,774.89$	

Example Rate of pay Varies of Value of a Week	
Example: Using the data in the example of Regina above. She has 10 years of service and resigns	
If her rate of pay varies as she is paid retainer and commission as follows in the last 12 months	
Retainer: \$57,350	
Commission: \$61,700	
Hours Worked in the Last 12 months: 1793	
Weekly Hours	32.9333
Hourly Rate	$(\$57,350 + \$61,700) / 1793 =$ $\$119,050 / 1793 = \66.40 per hour
Calculation: $\$66.40 \times 32.9333 = \$2,186.77$ value of a week	
Weeks to payout: $10 \times 1.3 = 13$ weeks	
Amount to Pay: $\$2,186.77 \times 13 = \$28,428.01$	

When Is Long Service Leave Being Taken Paid?

When an employee takes a period of Long Service Leave, it must be paid:

- In advance for the whole period of the leave; i.e. as a lump sum payment, or
- At the same time as the employer would have paid the employee if the employee had not taken the leave i.e. During the regular pay cycles that fall during the period of leave; or
- In any other way as agreed between the employer and employee.

If the payment is made in advance and, after payment is made, the amount of ordinary remuneration payable increases, the payment of the increase must be made on the employees return to work.

Refer to Section 8 of the Act

Payment on Termination

What Is Payable on Termination?

Refer to Section 10 in the Act

What is Payable on Termination	
Less than 7 years of continuous service	No Entitlement
7 Years continuous service, but less than 10 Years continuous service Section 10(2)	1.3 weeks for each year of completed service on termination for the following reasons: • Reached retirement age • Terminated by the employer for reasons other than serious misconduct • Illness • Incapacity • Domestic or other pressing necessity (the reason needs to be genuine, real or motivating and in a scenario that any reasonable person would resign from their job) Fully Completed Years of Continuous Service x 1.3
10 Years of continuous service and beyond Section 10(1) & (A)	Paid on all terminations (except serious misconduct), and calculated on completed years of continuous service only. For serious misconduct, this is paid on entitlement only, i.e. 10 years' entitlement and then a further entitlement for each subsequent 5 years. Example: 12 years' service is only paid out on 10 years. 17 years' service is only paid for 15 years.

Example of Value of a Pro-rata Termination Calculation	
Eileen is being made redundant after 8.6 years continuous service She is full-time and has always been full-time She has a weekly rate of \$1,850.00.	
Years of Service to Pay Out	8 years, as this is on completed years only
Entitlement in Weeks	$8 \times 1.3 = 10.4$ weeks of entitlement
Value of LSL to payout	$\$1,850.00 \times 10.4 = \$19,240.00$

Example of Value 10 Years or More	
Using the data above for Eileen if she had been employed for 13.7 years of continuous service.	
Years of Service to Pay Out	13 years as only paying on completed years
Entitlement in Weeks	$13 \times 1.3 = 16.9$ weeks of entitlement
Value of LSL to payout	$\$1,850.00 \times 16.9 = \$31,265.00$

When Should Long Service Leave Be Paid on Termination?

Refer to Section 7

“As soon as practicable after termination.”

For a deceased employee

- Pay to the personal representative as soon as practicable but no later than 12 months after death.

What Are the Record Keeping Requirements?

An employer is required to keep the following records for each employee:

- The employee's name;
- Date when employment commenced and any previous periods of continuous service;
- Details of wages, salary or commissions paid to the employee;
- Number of hours per week worked by the employee;
- The employee's accrued long service leave credit;
- Each period of long service leave, or payment in lieu made to the employee;
- Each occasion where the employee has been absent for two months or more from that employment; and
- Where the employee ceased to be employed, the date that the employment was terminated. The employer must keep these records for the duration of the employee's employment and a further 3 years after an employee's employment has ceased, except where the employee's employment is terminated by death where the records must be kept for a further 6 years.

Refer to Section 14 of the Act

PRACTICE ACTIVITY 8(A):

Lily is taking 4 weeks of her LSL.

Length of Continuous Service: 11.25 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Hourly Rate: \$31.25 per hour

Hours per Week: 38

LSL already taken: 4 weeks

Calculate the value of Lily's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	
Total Payable for 4 Weeks	

PRACTICE ACTIVITY 8(B):

Tanya has been made redundant, calculate her LSL payout.

Length of Service: 13.67 years

Unpaid Parental Leave: 1 year, 6 years ago

Employment Status: Part-time (20 hours per week) moved from FT to PT 5 years ago

Total Hours per week each year:

Year 1 – $38 \times 52 = 1976$

Year 2 – $38 \times 52 = 1976$

Year 3 – $38 \times 52 = 1976$

Year 4 – $38 \times 52 = 1976$

Year 5 – $38 \times 52 = 1976$

Year 6 – $38 \times 52 = 1976$

Year 7 – 0

Year 8 – $20 \times 52 = 1040$

Year 9 – $20 \times 52 = 1040$

Year 10 – $20 \times 52 = 1040$

Year 11 – $20 \times 52 = 1040$

Year 12 – $20 \times 52 = 1040$

Current Ordinary Remuneration: \$30.00 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	

STEP 3: VALUE OF WEEK	
Average Weekly Hours:	
Ordinary Weekly Rate of Pay:	
Total Payable on Termination	

PRACTICE ACTIVITY 8(C):

Peter is taking 4 weeks of LSL. Work out the amount to pay him for the 4 weeks.

Length of Continuous Service: 13.84 years

LSL already taken: 5 weeks

Employment Status: Casual (always been casual)

Ordinary Remuneration: \$37.95 per hour (inclusive of casual loading)

Total Hours Worked in each completed year of service: 11,661

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	
Are they entitled to LSL?	

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	
LSL Taken:	
Remaining Weeks:	

STEP 3: VALUE OF WEEK	
Average Hours per Week	
Ordinary Weekly Rate of Pay	

Total Payable	
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NT - Matrix

Key Legislation

Legislation

Long Service Leave Act 1981 (NT) [NT Government](#) 

Absences That Do Not Count As Service

Typical Exclusions

- Generally, absences on leave without pay,
- Workers' compensation,
- Unpaid maternity leave, and
- Unpaid sick leave
- Absence due to slackness of trade
- Absence due to an industrial dispute

Entitlement Rules in Brief Taking Leave

Entitlement Based on Years of Continuous Service When Taking Leave

- 13 weeks after 10 years
- Then 6.5 weeks for each 5 years' service. Payment made on completed years only.

On Termination

Years of Continuous Service

Before 7 years – no entitlement

After 7 and before 10 years, pro-rata of 10 years on completed years of service if:

- Reached retirement age (Age pension age)
- Terminated by the employer for reasons other than serious or willful misconduct
- Illness, incapacity, domestic or pressing necessity

After 10 years – paid on completed years of service only

Timing of Payment on Termination

When Must LSL be Paid?

As soon as practicable

What Is the Rate of Pay?

Fixed Rate of Pay no variation in hours: Use the current weekly rate of pay.

For a variation in hours above: Total ordinary hours in each completed year / total weeks in each completed years x current rate of pay.

Rate of Pay Varies: Total Income over the last 12 months / Total ordinary hours over the last 12 months.

Cashing out Long Service Leave

Is Cash Out Allowed?

No

Key Conditions to Note

Section 12 of the Long Service Leave Act 1981 states that leave cannot be “cashed in” during employment; it is only paid out on termination or death.

Taking Long Service Leave in Advance

May Leave Be Taken Early?

No – leave cannot be taken until the 10-year entitlement is reached.

Casual Employees – Are They Entitled to LSL?

Yes

Breaks in Service – Termination, Then Re-employment

Continuity Rules (Summary)

Terminations initiated by the employer or employee - breaks of 2 months or less do not break service. The break in between does not count as service.

Employer Notice Requirements to Take Leave

Timing Rules

The employer can require the employee to take long service leave by providing 2 months' notice.

How Leave Can Be Taken

Rules

One continuous period unless agreed by the employer and employee, and if agreed, each period is not less than 4 weeks.

Public Holidays Falling During LSL

Inclusive – means that the public holiday is counted as a day of LSL taken.

Effect on Leave

Inclusive

Working Elsewhere While on LSL

Restriction

No, s16 - An employee shall not, during any period while on long service leave granted by the employer under this Act, engage in any other remunerative employment with duties of a kind performed by the employee in the employment from which leave was granted.

Resources

NT.GOV.AU - [Long service leave](#) | [NT.GOV.AU](#) -

LONG SERVICE HEALTH CHECK

Action Item	Action to Take
Leave Component Codes	Check leave types are flagged correctly to accrue or not accrue LSL depending on state rules
Various Unpaid Leave Codes	Have separate unpaid leave codes for personal leave, workers' compensation, jury duty, etc. Depending on the state, configure accordingly for correct leave accrual or not to accrue leave.
Payslips	Take LSL accruals off payslips; however, provide employees with balances in weeks if asked.
LSL Calculators	Save online LSL calculators to your favourites, where available for each state/territory
LSL Leave Policy	Set up a leave policy that covers • How leave can be taken • Cash out of leave (if permitted by the legislation) • Leave in advance (if permitted by the legislation) • Leave at half or double pay (if permitted by the legislation)
HR Education	Talk to HR about when an employee is entitled to a pro-rata payment on termination
Termination Reason	Have a system in place that clearly identifies to payroll what the termination reason is, so it can easily be identified if a pro-rata payout of LSL applies.
Finance and Leave Liability	Talk to Finance about how the system accrues LSL and if any adjustments need to be made to assist with providing them leave liability reports
System Providers	Talk to payroll system providers about: • If LSL can accrue in weeks, rather than hours. • How the system can assist with LSL calculations • Providing reports to help do LSL manual calculations



PRO TIP

As LSL is written in weeks rather than hours it is recommended these hourly balances not be displayed on payslips as they are often inaccurate.

Fair Work advise it is not required to be on payslips, however if an employee should ask for their balance you must advise them.

You should advise these balances in weeks as the legislation is written in weeks.

LONG SERVICE LEAVE AND INTERSTATE/ OVERSEAS SERVICE

Some employees may work in a variety of locations over a period of years. As LSL entitlements vary between states, the question then arises as to which LSL legislation applies to the continuous employment – the answer will always depend on the particular circumstances of the case so you should seek legal advice about your particular circumstances in this situation.

- Each State and Territory has its own long service leave scheme with its own rules regarding the recognition of service with associated entities.
- Where an employee is transferred to an Australian company from an associated entity overseas, the employee's service with the overseas entity may count towards the employee's continuous service with the Australian company for the purposes of long service leave.
- The transferring employee may not be required to establish that their overall employment with the group of companies was "sufficiently connected" to the Australian State or Territory in order to be entitled to long service leave on the basis of their entire employment within the group.

SYSTEM VS MANUAL CALCULATION

Long service leave is typically calculated based on the length of service and an employee's ordinary pay rate.

The formula for calculating long service leave entitlements can vary from state to state and will depend on the applicable legislation.

Systems will calculate based on hours worked rather than the state and territory requirements.

Example 1:

Let's say you have a casual who has worked for the last 10 years in NSW. Their current hourly rate is \$28.00 per hour.

	Yr 1	Yr 2	Yr 3	Yr 4	Yr 5	Yr 6	Yr 7	Yr 8	Yr 9	Yr 10
Jan	65	132	130	65	132	130	65	132	130	65
Feb	23	50	110	23	50	110	23	50	110	23
Mar	110	152	152	110	152	152	110	152	152	110
Apr	125	164.67	38	125	164.67	38	125	164.67	38	125
May	30	152	64	30	152	64	30	152	64	30
Jun	12	38	68	12	38	68	12	38	68	12
Jul	152	152	68	152	152	68	152	152	68	152
Aug	112	154	68	112	154	68	112	154	68	112
Sep	154	112	78	154	112	78	154	112	78	154
Oct	23	48	112	23	48	112	23	48	112	23
Nov	78	148	142	78	148	142	78	148	142	78
Dec	154	164.67	52	154	164.67	52	154	164.67	52	154

Most systems will add up all the hours worked from the start of employment and calculate the LSL based on all hours.

System

11,800.02 hours worked / 10 years / 52 weeks x 8.667 weeks = 196.6746 hours x \$28 = \$5,506.89

However, as we know, for casual employees in NSW, we need to look at the Average hours over the last 12 months and the average hours over the last 5 years, whichever is greater.

Average over the last 12 months

1038 hours / 52 weeks = 19.9615 hours per week x \$28.00 = \$558.92

Average over the last 5 years

5707.34 hours / 52 weeks / 5 years = 21.9513 hours x \$28.00 = \$614.64

Calculation:

As the 5-year average is higher, the value of a week is \$614.64

STEP 1: 10 years of Continuous Service

STEP 2: $8.6667 / 10 \times 10$ years Continuous Service = 8.6667 weeks

STEP 3: Value of a week = \$614.64

Total Payable: 8.6667 weeks x \$614.64 = \$5,326.90

Outcome of System vs Manual

In the above example, if the system were used, the employee would have had LSL overpaid by \$179.99, i.e. paid \$5,506.89, when they are entitled to only \$5,326.90.

Example 2:

Let's say the employee continued to work and moved to full-time employment in years 11 & 12 in NSW. Their current hourly rate is \$25.00 per hour.

	Yr 1	Yr 2	Yr 3	Yr 4	Yr 5	Yr 6	Yr 7	Yr 8	Yr 9	Yr 10	Yr11	Yr12
Jan	65	132	130	65	132	130	65	132	130	65	164.67	164.67
Feb	23	50	110	23	50	110	23	50	110	23	164.67	164.67
Mar	110	152	152	110	152	152	110	152	152	110	164.67	164.67
Apr	125	164.67	38	125	164.67	38	125	164.67	38	125	164.67	164.67
May	30	152	64	30	152	64	30	152	64	30	164.67	164.67
Jun	12	38	68	12	38	68	12	38	68	12	164.67	164.67
Jul	152	152	68	152	152	68	152	152	68	152	164.67	164.67
Aug	112	154	68	112	154	68	112	154	68	112	164.67	164.67
Sep	154	112	78	154	112	78	154	112	78	154	164.67	164.67
Oct	23	48	112	23	48	112	23	48	112	23	164.67	164.67
Nov	78	148	142	78	148	142	78	148	142	78	164.67	164.67
Dec	154	164.67	52	154	164.67	52	154	164.67	52	154	164.67	164.67

System

$15,752.10$ hours worked / 12 years / 52 weeks x 8.6667 weeks / 10 years *12 years) = 262.5360 hours x \$25 = \$6,563.40

However, as we know for full-time employees in NSW, we need to look at the Average salary over the last 5 years or the last pay whichever is greater.

Last Pay

$\$25.00 \times 38$ hours = \$950.00

Average Weekly Pay Over the Last 5 Years

\$525 average pay over the last 5 years (add all the wages excluding overtime and certain allowances over the last five years)

In this case, the last pay is the greater of the two, so we will use that in the calculation.

STEP 1: 12 years of Continuous Service

STEP 2: $8.6667 / 10 \times 12$ years Continuous Service = 10.40004 weeks

STEP 3: Value of a week = \$950.00

Calculation: $10.40004 \text{ weeks} \times \$950.00 = \$9,880.04$

Outcome of System vs Manual

In the above example, if the system were used the employee would have had LSL underpaid by \$3,316.64, i.e. paid \$6,563.40, when they are entitled to \$9,880.04.

If the employee took a week when they were casual of 21.9513 hours, then the new calculation after 12 years would be:

STEP 1: 12 years Continuous Service

STEP 2: $8.667 / 10 \times 12$ years Continuous Service = 10.4004 weeks – 1 week = 9.4004 weeks

STEP 3: Value of a week = \$950.00

Calculation: $9.4004 \text{ weeks} \times \$950.00 = \$8,930.38$

NOTES

[illegible]

[illegible]

SOLUTIONS

WARM UP ACTIVITY

Using the Formula's work out the Weeks of Accrual (round to 4 decimal places):

	Continuous Service	Weeks of Accrual
NSW	18 years	15.6000 weeks
QLD	4 years	3.4667 weeks
TAS	12 years 6 months	10.8334 weeks
WA	14.87 years	12.8874 weeks
VIC	11.63 years	10.0794 weeks
ACT	8.8 years	7.6267 weeks
SA	16 years	20.8000 weeks
NT	10.4 years	13.5200 weeks

PRACTICE ACTIVITY 1(A):

Kate is going on a trip to Europe and wants to use 5 weeks of her LSL.

Length of Continuous Service: 13.5 years

Employment Status: Full-time 38 hours per week

Ordinary Remuneration: \$2,000.00 per week (current rate of pay) this is the higher of the current and 5-year average

Bonus payments: She has bonus payments of \$15,600 in the last 12 months. The 12 month period has 365 days.

Calculate the value of Kate's LSL entitlement and the total LSL payment for 5 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	13.5
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	10 x (8.6667/10) = 8.6667 weeks (As they are taking leave, we just look at the entitlement to take leave)
LSL Taken:	0
Remaining Weeks:	8.6667 weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$2,000.00
Bonus Payment Weekly Rate	\$15,600 / 365 x 7 = \$299.18
Total Weekly Rate of Pay	\$2,000 + \$299.18 = \$2,299.18
Total Payable for 5 weeks	\$2,299.18 x 5 = \$11,495.90

PRACTICE ACTIVITY 1(B):

Josephine has been made redundant, calculate her LSL payout.

Length of Service: 7 years

Unpaid Parental Leave 6 years ago: 1 year (365 days)

Employment Status: Part-time (25 hours per week) She has always been part-time on these hours.

Current Ordinary Remuneration: \$750.00 per week (\$30 per hour)

Ordinary Remuneration over the last 5 years (1,826 days): \$188,500.00

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	6 years = 7 years less 1 year of unpaid parental leave
Are they entitled to LSL?	Yes, on a pro-rata basis due to redundancy
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$6 \times (8.6667/10) = 5.2$ weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$750 as the 5 year average of \$188,500 / 1826 x 7 is only \$722.62
Total Payable on Termination	$\$750 \times 5.2 = \$3,900$

PRACTICE ACTIVITY 1(C):

Bevan has found permanent employment with another company and has resigned. What is his LSL payout?

He has previously taken 9 weeks LSL.

Length of Continuous Service: 16 years

Employment Status: Casual

Ordinary Remuneration: \$40 per hour (inclusive of casual loading)

Total Ordinary Hours in the last 12 months (365 days): 1,664

Total Remuneration in the last 5 years (1,826 days): \$345,792.23

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	16
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$16 \times (8.6667/10) = 13.8667$ weeks
LSL Taken:	9 weeks
Remaining Weeks:	4.8667 weeks
STEP 3: VALUE OF WEEK	
Average Pay - 12 months	$12 \text{ months} - 1,664 / 365 \times 7 = 31.91 \text{ hours}$ $\$40 \times 31.91 = \$1,276.40$
Average Pay - 5 years	$(\$345,792.23 / 1,826) \times 7 = \$1,325.60$
Ordinary Weekly Rate of Pay	\$1,325.60
Total Payable on Termination	$\$1,325.60 \times 4.8667 = \$6,451.30$

PRACTICE ACTIVITY 2(A):

Angela is taking 3 weeks of her LSL.

Length of Continuous Service: 12.6 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Remuneration: \$2,300.00 per week

Calculate the value of Angela's LSL entitlement and the total LSL payment for 3 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	12.6
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$12.6 \times (8.6667/10) = 10.92$ weeks
LSL Taken:	0
Remaining Weeks:	10.92 weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$2,300
Total Payable for 3 Weeks	$\$2,300 \times 3 = \$6,900$

PRACTICE ACTIVITY 2(B):

Armend has been made redundant, calculate his LSL payout.

Length of Service: 12.1 years

Unpaid Annual Leave: 1.5 years taken after 1/11/2018

Employment Status: Part-time (25 hours per week) He has always been part-time on these hours.

Current Ordinary Remuneration: \$700.00 per week (\$28 per hour)

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	$12.1 - 0.5 = 11.6$ years (Only 0.5 years is deducted as the first year counts as service)
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$11.6 \times (8.6667/10) = 10.0534$ weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$700
Total Payable on Termination	$\$700 \times 10.0534 = \$7,037.38$

PRACTICE ACTIVITY 2(C):

Biljana has found permanent employment with another company and has resigned. Work out her LSL payout.

Length of Continuous Service: 16.4 years

She has previously taken 9.2 weeks LSL

Employment Status: Casual

Ordinary Remuneration: \$40 per hour (inclusive of casual loading)

Total Ordinary Hours in the last 52 weeks: 1,664

Total Ordinary Hours in the last 260 weeks: 8,645

Total Ordinary Hours over the whole of employment: 26,907

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	16.4 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$16.4 \times (8.6667/10) = 14.2134$ weeks
LSL Taken:	9.2 weeks
Remaining Weeks:	5.0134 weeks
STEP 3: VALUE OF WEEK	
Average Hours per Week - 52	$1664 / 52 = 32$ hours
Average Hours per Week - 260	$8645 / 260 = 33.25$ hours
Average Hours per Week - Whole	$26,907 / (16.4 \times 52)$ $26907 / 852.8 = 31.55$ hours
Average Hours to Use	260 week average of 33.25 hours
Ordinary Weekly Rate of Pay	$33.25 \times \$40 = \$1,330$
Total Payable on Termination	$\\$1,330 \times 5.0134 = \\$6,667.82$

PRACTICE ACTIVITY 3(A):

Bevan is taking 4 weeks of his LSL.

Length of Continuous Service: 11.2 years

Employment Status: Full-time 38 hours per week for all his employment

Ordinary Remuneration: \$3,159.00 per week

Calculate the value of Bevan's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	11.2 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$10 \times (8.6667/10) = 8.6667$ weeks (As they are taking leave, we just look at the entitlement to take leave)
LSL Taken:	Nil
Remaining Weeks:	8.6667 weeks

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$3,159.00
Total Payable for 4 Weeks	$3,159.00 \times 4 = \$12,636.00$

PRACTICE ACTIVITY 3(B):

Samantha has been made redundant, calculate her LSL payout.

Length of Service: 8.9 years

Unpaid Parental Leave: 0.75 years

Employment Status: Part-time (15.2 hours per week)

Total Hours Worked: 7,034.56

Current Ordinary Remuneration: \$29.54 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	$8.9 - 0.75$ (deduct unpaid leave) = 8.15 years
Are they entitled to LSL?	Yes, as they are being made redundant, they get the pro-rata amount
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$(7,034.56/52) \times (8.6667/10) = 135.28 \times 0.86667 = 117.2431$ hours
Total Payable for Termination	$\$29.54 \times 117.2431 = \$3,463.36$

PRACTICE ACTIVITY 3(C):

Karen has found permanent employment with another company and has resigned. Work out her LSL payout.

Length of Continuous Service: 18 years

She has previously taken 5 weeks' LSL

Employment Status: Casual

Ordinary Remuneration: \$42 per hour (inclusive of casual loading)

Total Ordinary Hours over the whole of employment: 14,072

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	18 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$(14,072/52) \times (8.6667/10) = 270.6154 \times 0.86667 = 234.5342$ hours
LSL Taken:	5 weeks FT equivalent $38 \times 5 = 190$ hours
Remaining LSL:	44.5342 hours
Total Payable on Termination	$\$42 \times 44.5342 = \$1,870.44$

PRACTICE ACTIVITY 4(A):

Peggy is going on a trip to Europe and wants to use 4 weeks of her LSL.

Length of Continuous Service: 11.5 years

Employment Status: Full-time 38 hours per week

Ordinary Remuneration: \$3,620.00 per week

Calculate the value of Peggy's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	11.5 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$10 \times (8.6667/10) = 8.6667$ weeks (As they are taking leave, we just look at the entitlement to take leave)
LSL Taken:	0
Remaining Weeks:	8.6667 weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$3,620.00
Total Payable for 4 Weeks	$\$3,620.00 \times 4 = \$14,480.00$

PRACTICE ACTIVITY 4(B):

Rebekah has been made redundant, calculate her LSL payout.

Length of Service: 8 years

Unpaid Parental Leave: 1 year (no GPPL was paid in this time)

Employment Status: Part-time for 6 years. She was casual before this.

Current Ordinary Remuneration: \$28.75 per hour

Total Hours Worked over whole of employment: 12,272

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	$8 - 1 = 7$ years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$7 \times (8.6667/10) = 6.0667$
STEP 3: VALUE OF WEEK	
Average Weekly Hours	$12,272 / ((8 \times 52) - 52) =$ $12,272 / (416 - 52) =$ $12,272 / 364 = 33.7143$ hours per week
Ordinary Weekly Rate of Pay	$\$28.75 \times 33.7143 = \969.29
Total Payable for Termination	$\$969.29 \times 6.0667 = \$5,880.39$

PRACTICE ACTIVITY 4(C):

Maggie has found permanent employment with another company and has resigned. What is her LSL payout?

She has previously taken 7.5 weeks (180 hours) of LSL.

Length of Continuous Service: 12 years

Employment Status: Casual

Ordinary Remuneration: \$36.58 per hour (inclusive of casual loading)

Total Hours Worked in the first 10 years: 12,480

Total Hours Worked from 11 – 12 years: 2,600

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	12 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$12 \times (8.667/10) = 10.4 \text{ Weeks}$
LSL Taken:	7.5 Weeks
Remaining LSL:	2.9 Weeks
STEP 3: VALUE OF A WEEK	
Average Hours per week in the first 10 years	$12,480 / (10 \times 52) = 12,480 / 520 = 24 \text{ hours}$
Average Hours in years 11 to 12	$2,600 / (2 \times 52) = 2,600 / 104 = 25 \text{ hours}$
LSL Entitlement in Hours:	$10 \text{ years} - 8.6667 \times 24 = 208 \text{ hours}$
	$11 \text{ to } 12 \text{ years} - (2/10 \times 8.6667) \times 25 =$
	$1.7333 \times 25 = 43.3333 \text{ hours}$
	Total Hours = $208 + 43.3333 = 251.3333 \text{ hours}$
LSL Taken:	180 hours
Remaining LSL in Hours:	71.3333
Total Payable for Termination	
	$\\$36.58 \times 71.3333 = \\$2,609.37$

PRACTICE ACTIVITY 5(A):

Kim is taking 2.5 weeks of her LSL.

Length of Continuous Service: 12.5 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Remuneration: \$1,950 per week

LSL already taken: 5 weeks

Calculate the value of Kim's LSL entitlement and the total LSL payment for 2.5 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	12.5 years
Are they entitled to LSL?	Yes

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$12 \times (13/10) = 15.6$ weeks (As entitlement is on completed years this is rounded down to 12 years)
LSL Taken:	5 weeks
Remaining Weeks:	10.6 weeks

STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$1,950.00
Total Payable for 2.5 Weeks	$\$1,950 \times 2.5 = \$4,875.00$

PRACTICE ACTIVITY 5(B):

Tamika has been made redundant, calculate her LSL payout.

Length of Service: 11.76 years

Unpaid Parental Leave: 1 year taken 3 years ago

Employment Status: Part-time (25 hours per week) moved from FT to PT 2 years ago

Total Hours In the last 3 years: 2,600 (this is only for the last 2 years as no hours worked in the year 3 years ago)

Total Hours the year worked 4 years ago: 1,976

Current Ordinary Remuneration: \$28.45 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	$11.76 - 1 = 10.76$ years
Are they entitled to LSL?	Yes

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$10 \times (13/10) = 13$ weeks

STEP 3: VALUE OF WEEK	
Average Weekly Hours:	$(2,600 + 1,976) / 156 = 29.3333$ hours per week
Ordinary Weekly Rate of Pay	$\$28.45 \times 29.3333 = \834.53
Total Payable for Termination	$\$834.53 \times 13 = \$10,848.89$

PRACTICE ACTIVITY 5(C):

Kenji is taking 2 weeks of LSL. Work out the amount to pay him for the 2 weeks.

Length of Continuous Service: 10.58 years

LSL already taken: 3 weeks

Employment Status: Casual (always been casual)

Ordinary Remuneration: \$32.21 per hour (inclusive of casual loading)

Total Hours Worked in the last 156 weeks: 3,675

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	10.58 years
Are they entitled to LSL?	Yes

STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$10 \times (13/10) = 13 \text{ weeks}$
LSL Taken:	3 weeks
Remaining Weeks:	10 weeks
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	$3,675 / 156 = 23.5577 \text{ hours per week}$
Ordinary Weekly Rate of Pay	$\$32.21 \times 23.5577 = \758.79
Total Payable for Termination	$\$758.79 \times 2 = \$1,517.58$

PRACTICE ACTIVITY 6(A):

Toni is going on a trip to South America and wants to use 5 weeks of her LSL.

Length of Continuous Service: 12.65 years

Employment Status: Full-time 38 hours per week

Shift Penalties: 1 day a week (7.6 hours) is paid at 125%

Base Rate: \$42.00 per hour

Calculate the value of Toni's LSL entitlement and the total LSL payment for 5 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	12.65 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$10 \times (8.6667/10) = 8.6667 \text{ weeks}$ (As they are taking leave, we just look at the entitlement to take leave)
LSL Taken:	0
Remaining Weeks:	8.6667 weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	$\$42.00 \times 38 = \$1,596.00$
Penalty Rate Pay	$\$42.00 \times 25\% \times 7.6 = \79.80
Total Weekly Rate of Pay	$\$1,596.00 + \$79.80 = \$1,675.80$
Total Payable for 5 weeks	$\$1,675.80 \times 5 = \$8,379.00$

PRACTICE ACTIVITY 6(B):

Veronica has been made redundant, calculate her LSL payout.

Length of Service: 8.9 years

Unpaid Parental Leave: 1 year

Employment Status: Part-time (25 hours per week) She has always been part-time on these hours and has no additional allowances or penalties payable

Base Rate: \$39.50 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	$8.9 - 1 = 7.9$ years
Are they entitled to LSL?	Yes, pro rata as being made redundant
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$7.9 \times (8.6667/10) = 6.8467$ weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	$\$39.50 \times 25 = \987.50
Total Payable for Termination	$\$987.50 \times 6.8467 = \$6,761.12$

PRACTICE ACTIVITY 6(C):

Helen has found permanent employment with another company and has resigned. What is her LSL payout she has previously taken 4 weeks LSL.

Length of Continuous Service: 13 years

Employment Status: Casual

Ordinary Remuneration: \$40 per hour (inclusive of casual loading)

Total Hours worked in the last 12 months: 1,626

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	13 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$13 \times (8.6667/10) = 11.2667$ weeks
LSL Taken:	4 weeks
Remaining Weeks:	7.2667 weeks
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	$1626 / 52 = 31.2692$ hours per week
Ordinary Weekly Rate of Pay	$\$40 \times 31.2692 = \$1,250.77$
Total Payable for Termination	$\$1,250.77 \times 7.2667 = \$9,088.97$

PRACTICE ACTIVITY 7(A):

Tina is taking 4 weeks of her LSL.

Length of Continuous Service: 11.5 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Remuneration: \$3,680 per week

Calculate the value of Tina's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	11.5 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$11 \times (8.6667 \times 10) = 9.5334 \text{ weeks}$ (As they are taking leave, we just look at the entitlement to take leave)
LSL Taken:	0
Remaining Weeks:	9.5334 weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	\$3,680.00
Total Payable for 4 Weeks	$\$3,680.00 \times 4 = \$14,720.00$

PRACTICE ACTIVITY 7(B):

Narelle has been made redundant, calculate her LSL payout.

Length of Service: 13.1 years

Unpaid Parental Leave: 2 years

Employment Status: Part-time (30.4 hours per week) moved from FT to PT 3 years ago

Average Weekly Hours in the last 12 months: 31.67 hours per week

Current Ordinary Remuneration: \$45 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	$13.1 - 2 = 11.1 \text{ years}$
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$11 \times (8.6667/10) = 9.5334 \text{ weeks}$ (Paid on completed years of service only)
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	31.67
Ordinary Weekly Rate of Pay	$\$45 \times 31.67 = \$1,425.15$
Total Payable for Termination	$9.5334 \times \$1,425.15 = \$13,586.53$

PRACTICE ACTIVITY 7(C):

Connor has resigned. Work out the amount to pay him on termination.

Length of Continuous Service: 8.2 years

He has previously taken 1 week LSL

Employment Status: Casual (always been casual)

Ordinary Remuneration: \$33.50 per hour (inclusive of casual loading)

Total Hours Worked in the last 12 months: 1,170

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	8.2 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$8 \times (8.6667/10) = 6.9334$ weeks (This is paid out on completed years of service only)
LSL Taken:	1 week
Remaining Weeks:	$6.9334 - 1 = 5.9334$ weeks
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	$1170/52 = 22.5$ hours
Ordinary Weekly Rate of Pay	$22.5 \times \$33.50 = \753.75
Total Payable	$5.9334 \times \$753.75 = \$4,472.30$

PRACTICE ACTIVITY 8(A):

Lily is taking 4 weeks of her LSL.

Length of Continuous Service: 11.25 years

Employment Status: Full-time 38 hours per week for all her employment

Ordinary Hourly Rate: \$31.25 per hour

Hours per Week: 38

LSL already taken: 4 weeks

Calculate the value of Lily's LSL entitlement and the total LSL payment for 4 weeks.

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	11.25 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	$10 \times 1.3 = 13$ weeks (As leave is being taken entitlement is worked out to 10 years)
LSL Taken:	4 weeks
Remaining Weeks:	9 weeks
STEP 3: VALUE OF WEEK	
Ordinary Weekly Rate of Pay	$\$31.25 \times 38 = \$1,187.50$
Total Payable for 4 Weeks	$\$1,187.50 \times 4 = \$4,750.00$

PRACTICE ACTIVITY 8(B):

Tanya has been made redundant, calculate her LSL payout.

Length of Service: 13.67 years

Unpaid Parental Leave: 1 year, 6 years ago

Employment Status: Part-time (20 hours per week) moved from FT to PT 5 years ago

Total Hours per week each year:

Year 1 – $38 \times 52 = 1976$

Year 2 – $38 \times 52 = 1976$

Year 3 – $38 \times 52 = 1976$

Year 4 – $38 \times 52 = 1976$

Year 5 – $38 \times 52 = 1976$

Year 6 – $38 \times 52 = 1976$

Year 7 – 0

Year 8 – $20 \times 52 = 1040$

Year 9 – $20 \times 52 = 1040$

Year 10 – $20 \times 52 = 1040$

Year 11 – $20 \times 52 = 1040$

Year 12 – $20 \times 52 = 1040$

Current Ordinary Remuneration: \$30.00 per hour

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	13.67 – 1 = 12.67 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	12 x 1.3 = 15.6 weeks (As paid out on completed years only)
STEP 3: VALUE OF WEEK	
Average Weekly Hours:	$(1976+1976+1976+1976+1976+1976+1040+1040+1040+1040+1040+1040) / (52 \times 12) = 18,096 / 624 = 29$
Ordinary Weekly Rate of Pay:	$29 \times \\$30.00 = \\870.00
Total Payable on Termination	$\\$870.00 \times 15.6 = \\$13,572.00$
	Or as per the example in the legislation
	$(38 \times \\$30 \times 1.3) + (38 \times \\$30 \times 1.3) + (38 \times \\$30 \times 1.3) + (38 \times \\$30 \times 1.3) + (38 \times \\$30 \times 1.3) + (38 \times \\$30 \times 1.3) + (20 \times \\$30 \times 1.3) + (20 \times \\$30 \times 1.3) + (20 \times \\$30 \times 1.3) + (20 \times \\$30 \times 1.3) + (20 \times \\$30 \times 1.3) + (20 \times \\$30 \times 1.3) + (\\$20 \times \\$30 \times 1.3) = \\$1482 + \\$1482 + \\$1482 + \\$1482 + \\$1482 + \\$1482 + \\$780 + \\$780 + \\$780 + \\$780 + \\$780 + \\$780 + \\$780 = \\$13,572.00$

PRACTICE ACTIVITY 8(C):

Peter is taking 4 weeks of LSL. Work out the amount to pay him for the 4 weeks.

Length of Continuous Service: 13.84 years

LSL already taken: 5 weeks

Employment Status: Casual (always been casual)

Ordinary Remuneration: \$37.95 per hour (inclusive of casual loading)

Total Hours Worked in each completed year of service: 11,661

STEP 1: CONTINUOUS SERVICE	
Years of Continuous Service:	13.84 years
Are they entitled to LSL?	Yes
STEP 2: LSL WEEKS ENTITLEMENT	
LSL Entitlement:	10 x 1.3 = 13 weeks (As leave is being taken entitlement is worked out to 10 years)
LSL Taken:	5 weeks
Remaining Weeks:	8 weeks
STEP 3: VALUE OF WEEK	
Average Hours per Week	$11,661 / (13 \times 52) = 11,661 / 676 = 17.25$ hours per week
Ordinary Weekly Rate of Pay	$17.25 \times \$37.95 = \654.64
Total Payable	$\$654.64 \times 4 = \$2,618.56$



For assistance or clarification, please contact:

Australian Payroll Association (APA)

PO Box 1208, Rozelle NSW 2039

1300 749 749

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